



ESA/REG/007, rev.14
Paris, January 2026
(Original: English)

REGULATIONS OF THE EUROPEAN SPACE AGENCY

Staff Regulations and Rules

The attached Staff Regulations and Rules constitute, together with the Convention for the establishment of the European Space Agency (ESA Convention), the basic legal framework for the employment conditions of the Agency's staff.

The Staff Regulations and Rules apply to staff appointed pursuant to Article XII.3 of the ESA Convention.

ESA Staff Regulations and Rules

ESA/REG/007, rev.14

**The present set of Staff Regulations and Rules
includes Addenda 1 to 127**

CONTENTS

CHAPTER I	SCOPE OF APPLICATION
Reg. 1	General
CHAPTER II	DUTIES, OBLIGATIONS AND PRIVILEGES
Reg. 2	Professional obligations
Reg. 3	Loyalty
Reg. 4	Discretion and intellectual property
Reg. 5	Privileges, immunities and protection
CHAPTER III	RECRUITMENT, APPOINTMENT, PROMOTION, CESSATION OF DUTY
Reg. 6	Appointing Authority and staff categories
Reg. 7	Recruitment
Reg. 8	Letter of appointment
Reg. 9	Duration of appointment
Reg. 10	Probationary period
Reg. 11	Reassignment of staff
Reg. 12	Performance assessment
Reg. 13	Merit recognition and promotion
Reg. 14	Professional training
Reg. 15	Termination of appointment
Reg. 16	Resignation
Reg. 17	Regulatory age limit
Reg. 18	Non-active status
Reg. 19	Secondment
CHAPTER IV	EMOLUMENTS AND BENEFITS
Reg. 20	Emoluments
Reg. 21	Allowances and indemnities
21.1	Family allowances
21.2	Expatriation allowance
21.3	Installation allowance
21.4	Rent allowance
21.5	Acting allowance
21.6	Language allowance
21.7	Indemnity for loss of job
21.8	Supplementary allowances
Reg. 22	Benefits
22.1	Social Security
22.2	Pension Scheme
22.2bis	Provident Fund
22.3	Travel, mission and removal expenses

CHAPTER V	WORKING HOURS AND LEAVE
Reg. 23.1	Working time
23.2	Overtime
23.3	Public holidays
23.4(i)	Annual leave
23.4(ii)	Home leave
23.4(iii)	Sick leave, pregnancy leave and bonding leave
23.4(iv)	Leave for military duty
23.4(v)	Parental/family care leave
23.5(i)	Special leave with pay
23.5(ii)	Unpaid leave
23.7	Part-time work
Reg. 24	Health and safety requirements
 CHAPTER VI	 DISCIPLINE
Reg. 25	Disciplinary sanctions
Reg. 26	Proceedings
Reg. 27	Proceedings at the request of a staff member
Reg. 28	Suspension pending further action
Reg. 29	Implementation
 CHAPTER VII	 ADVISORY BOARD
Reg. 30	Competence
Reg. 31	Composition and deliberations
Reg. 32	Procedure
 CHAPTER VIII	 DISPUTES
Reg. 33	Competence of the Administrative Tribunal
Reg. 34	Composition – Incompatibilities
Reg. 35	Privileges and immunities
Reg. 36	Appointment
Reg. 37	Resignation
Reg. 38	Dismissal
Reg. 39	Presidency
Reg. 40	Registrar – Facilities – Official seat
Reg. 41	Rules of Procedure
 CHAPTER IX	 STAFF REPRESENTATION
Reg. 42	Terms of reference of the Staff Association
Reg. 43	Work of the staff representatives
Reg. 44	Local Committees and Central Committee
Reg. 45	Chair
Reg. 46	Procedure for negotiation
Reg. 47	Special provisions
Reg. 48	Right of association
Reg. 49	Conciliation Board

CHAPTER X

**SPECIAL PROVISIONS FOR STAFF ON TRAINEESHIPS
OR RESEARCH ASSIGNMENTS**

Reg. 50

Staff on traineeships or research assignments

Reg. 51

Applicable Regulations

CHAPTER I
SCOPE OF APPLICATION

REGULATION 1

GENERAL

- 1.1** These Staff Regulations shall apply to staff appointed pursuant to Article XII.3 of the Convention for the establishment of the European Space Agency. They shall not apply to personnel governed by local labour legislation or to experts and consultants except in so far as may be provided for in the rules applicable to them or in the terms of their employment.
- 1.2** There shall be no discrimination against staff members on grounds of race, religion, or sex.
- 1.3** The Staff Regulations shall be adopted by the Council on a proposal of the Director General; they may be amended by the Council on a proposal submitted by the Director General after implementing the procedure for negotiation between the Director General and the Staff Association provided for in Regulations 42 et seq.

The procedures for applying the Staff Regulations shall be laid down in the Staff Rules which shall - apart from Chapter VIII which shall remain within the sole competence of the Council - be approved by the Administrative and Finance Committee on the proposal of the Director General; these Rules may be amended by the Administrative and Finance Committee on a proposal submitted by the Director General, after implementing the procedure for negotiation between the Director General and the Staff Association provided for in Regulations 42 et seq.

Detailed provisions for the implementation of the Staff Rules shall, as necessary, be set out in Instructions laid down by the Director General. These may be amended by the Director General after implementing the procedure for negotiation between the Director General and the Staff Association provided for in Regulations 42 et seq.

- 1.4** All amendments to the Staff Regulations, Rules and Instructions shall respect acquired rights.
- 1.5** The Director General shall keep in permanent contact with the Staff Association and its representatives. He shall keep the staff informed of the Agency's activities and general policy and in particular of all matters relating to the staff. This information shall also be given to the Staff Association, which may ask for fuller details and may make appropriate comments to the Director General.

Rule 1/1**Implementation of the Regulations**

For the purposes of the Staff Regulations, Rules and Instructions:

- (i) The term "Director General" shall be understood to mean the Director General himself and those to whom he has delegated authority.
- (ii) The term "Head of Personnel" shall be understood to mean the head of the Personnel Department, the Personnel Division or Personnel Office, depending on the duty station.

The Head of Personnel shall, within the limits laid down by the Rules and Instructions, be responsible for applying the Regulations, Rules and Instructions. Any requests or complaints concerning the application or interpretation of these texts are to be submitted to him by the staff member concerned.

- (iii) No general circular or directive dealing with implementation of the Regulations, nor any other implementing instructions, may be circulated within an Establishment without the prior approval of the Director of Administration.

CHAPTER II

DUTIES, OBLIGATIONS AND PRIVILEGES

REGULATION 2

PROFESSIONAL OBLIGATIONS

- 2.1 The duties of staff members of the Agency are international in character; staff members shall carry out their duties and regulate their conduct with the interests of the Agency always in mind. In this respect they are subject to the authority of the Director General as determined by the Council within the framework of the Convention for the establishment of the European Space Agency, and shall be responsible to him alone for the discharge of their duties and the fulfilment of the obligations laid down by these Regulations.**
- 2.2 Staff members shall neither seek nor accept instructions from any government, authority, organisation or person external to the Agency.**
- 2.3 Staff members shall be responsible for the execution of the tasks entrusted to them. If, as a result of wilful acts or gross negligence during, or in connection with, the discharge of his duties, a staff member causes damage to the Agency, it may hold him financially responsible for all or part of the damage.**

Rule 2/1 Definitions of duties

For the purposes of the Staff Regulations and of these Rules, a staff member's duties shall mean his service activities and relations with:

- (i) other staff members;
- (ii) government delegations and the governing bodies of the Agency, or their members;
- (iii) any persons or bodies outside the Agency, and in particular parties to contracts with the Agency.

Rule 2/2 Professional responsibility

A staff member shall be responsible to the Director General through his superiors for the discharge of his duties. The responsibility of his subordinates shall not relieve him of any of his own responsibilities except in so far as any such subordinate may have been guilty of deliberate disobedience.

Where a staff member considers that an order received by him is improper or is likely, if carried out, to cause serious trouble, he shall so inform his immediate superior, if necessary in writing. If his immediate superior confirms the order in writing, the staff member shall carry it out, but may ask that it be referred to higher authority. There shall be no duty to carry out an order involving an act falling within the provisions of the penal law.

Measures taken in the cases of financial controllers, expenditure controllers and internal auditors, pursuant to Regulation 25, seq. (disciplinary sanctions), Rule 11.2/1 (assignment to new duties), or Regulation 15 (termination of appointment), shall be communicated to the Administrative and Finance Committee unless the staff member concerned requests that this shall not be done.

Rule 2.3/1 Financial liability

Pursuant to Article 50 of the Financial Regulations, the Financial Instructions shall, independently of the disciplinary procedure (Chapter VI):

- (i) establish measures by which reimbursement may be sought for damage to or loss of property of the Agency, sustained as a result of wilful acts or gross negligence on the part of the staff of the Agency;
- (ii) include appropriate provision for the bonding of cashiers handling money of the Agency.

REGULATION 3

LOYALTY

- 3.1 A staff member may not accept any honour from a government or other source external to the Agency without the permission of the Director General.**
- 3.2 Staff members shall abstain from all political activities and, more generally, from any public action or statement or publication if such activity, statement or publication is incompatible with the duties or obligations of an international civil servant or liable to involve the moral or material responsibility of the Agency.**
- 3.3 A staff member shall not hold any posts or have any regular or paid occupation outside the Agency without the Director General's permission.**
- 3.4 A staff member, or his spouse, may not directly or indirectly hold such interests in a commercial firm as could, by their nature, compromise his independence in the discharge of his duties in the Agency.**

Rule 3/1 Loyalty – General provisions

- (i) The Director General shall have discretion to judge whether or not honours, and outside remunerations, activities and interests, are compatible with employment by the Agency and with the performance of a staff member's duties.
- (ii) The staff member concerned shall submit in writing, through his Personnel Officer, any applications for permission and statements which the Director General will need in order to form his judgement in the cases referred to above. The provisions relating specifically to certain of such statements and applications are given in Rules 3.1/1 to 3.4/1.
- (iii) An omission or false statement in infringement of Regulation 3 may lead to the termination of a staff member's appointment under Regulation 15.3 (iii) or his dismissal under Regulation 25.2 (iv).

Rule 3.1/1 Honours

A staff member shall apply for permission to accept an honour.

Rule 3.1/2 Gratifications and advantages offered to a staff member

Staff members may not accept from government delegates or firms maintaining relations with the Agency any gifts, gratifications or advantages that might affect their independence or lead to doubts as to their professional integrity.

Should any such gifts or advantages be offered, staff shall inform their immediate superiors.

This provision does not apply to inexpensive publicity gifts.

Rule 3.2/1 Lectures – Publications

Public communications, lectures or publications that are not of a political nature and are unconnected with the activities of the Agency shall not require prior application for the Director General's permission.

Rule 3.2/2 Political activity

A staff member shall apply, in writing, for permission to hold public office or to carry out any political activity. No special permission will be required for the purpose of exercising the right to vote or simply joining a political party.

Rule 3.4/1 Personal interest – Spouse's occupation

- (i) In order that the Director General may form his judgement in connection with the provisions of Regulation 3.4, a staff member must declare any interest held by himself or his spouse, as well as any active participation by either of them in any firm which he knows or can normally assume to have or to be likely to have commercial dealings

with the Agency, unless he judges, on his own responsibility, that these are not such as to compromise his independence in carrying out his duties.

- (ii) Any staff member who, in the discharge of his duties, is required to deal with a matter in which he has a personal interest shall inform the Director General in writing.

REGULATION 4

DISCRETION AND INTELLECTUAL PROPERTY

- 4.1** Staff members shall observe complete discretion with regard to all matters relating to the activities of the Agency. Except in the discharge of their duties, they shall not disclose any unpublished information acquired by them in the course of their official business unless authorised to do so by the Director General. This obligation shall continue after they have left the Agency.
- 4.2** All intellectual property rights, including copyright and patent rights, in any work produced by a staff member within the scope of his duty shall be the property of the Agency. However, the Director General shall, under the terms laid down in the Staff Rules:
- make an award to the inventor; or
 - authorise him, if so requested, to exploit the rights arising from his work concurrently with the Agency; or
 - waive those rights in favour of the inventor.

DISCRETION

Rule 4.1/1 Divulgence of unpublished information

- (i) "Unpublished information relating to the activities of the Agency" shall be understood to mean any information that may have come to the knowledge of the staff member in respect of these activities and which has not been made available to the public.

This information may not be divulged by the staff member, except in the discharge of his duties, to any person, organisation or firm outside the Agency, nor form the subject of a publication in any form whatsoever, without the prior permission of the Director General.

- (ii) The same obligation to exercise discretion falls on former staff members after they have left the Agency.
- (iii) Not later than the day of his departure from the Agency, a staff member shall inform the Director General in writing of the name and address of his new employer.

Rule 4.1/2 Permission to disclose or publish

- (i) The prior permission to disclose or publish provided for under the preceding Rule must be applied for, through the usual channels, by a staff member who wishes, other than in the discharge of his duties, to give a lecture or issue a statement, communication or publication relating to the Agency's scientific, technical or administrative activities not yet published by the Agency.

The Director General shall, after consulting the staff member's Director, first inform himself of the content of such communication or publication, and shall judge whether it should be made in the name of the Agency or by the staff member in his private capacity.

The Director General shall also determine whether the grant by any third party of fees or other remuneration in connection herewith is compatible with the staff member's duties.

- (ii) The obligation to obtain prior permission also applies to fellows and other experts engaged in work carried out by or for the Agency, who shall provide the Agency with copies of the published papers.

INTELLECTUAL PROPERTY

Rule 4.2/1 Discretion and liability

Staff members shall be bound by the strictest rules of professional discretion for the protection of the intellectual property rights relating to the Agency's activities; they shall not disclose any information without the prior written consent of the Director General.

They shall be directly and fully liable for any damage caused to the Agency, its Member States or its contractors, or to any third party by any failure to observe appropriate discretion and loyalty to the Agency in respect of the disclosure of its activities or of anything which is the actual or potential subject of an intellectual property right of the Agency.

Rule 4.2/2 Definition of intellectual property

For the purpose of these Rules the term "intellectual property" shall be deemed to apply in the widest sense, including not only inventions that can be protected by patents or similar forms of legal protection, but also registerable designs and copyright material as well as technical and scientific improvements and discoveries.

Rule 4.2/3 Declaration of intellectual property

On appointment a staff member shall declare to the Director General any intellectual property, such as patents, acquired within or outside the scope of his previous duties.

The Director General shall determine whether the holding of the intellectual property rights in question, their exploitation and their remuneration in any form are compatible or not with employment in the Agency.

The Director General's ruling shall be notified in writing to the staff member concerned, where appropriate after consulting the Patents Group provided for in Rule 4.2/6 and within the period specified in paragraph (v) thereof.

If the Director General is of the opinion that there is incompatibility with employment in the Agency, he shall invite the staff member to:

- relinquish his intellectual property rights; or
- transfer his rights to the Agency in return for a commonly agreed remuneration; or
- relinquish his appointment.

Rule 4.2/4 Situation after termination of appointment

After the departure of a staff member, the utilisation or exploitation of intellectual property rights and in particular of patents connected with his activities in the Agency shall be the subject of prior notice to the Director General, who shall be entitled to a period of 30 days within which to request the transfer to the Agency of the intellectual property that resulted

from the staff member's activities in the Agency or to propose concurrent exploitation by the Agency and the staff member.

This rule shall continue to apply to a former staff member for three years after his departure.

Intellectual property produced by a former staff member during the year following his departure shall be deemed, unless there is evidence to the contrary, to have been conceived during his activities in the Agency if the subject of the intellectual property relates to those activities.

Rule 4.2/5 Principle of vesting in the Agency

- (i) Subject to the procedures set out in the Rules below, any intellectual property which results from activities within the scope of the duties of a staff member or which is substantially based on experience or work of the Agency shall vest in the Agency. The Agency may take out the appropriate patents or similar forms of legal protection, provided it ensures that the name of the staff member is mentioned therein, where this is possible. The staff member shall comply with any formalities which may be required, in particular for the filing of a patent application on behalf of the Agency.
- (ii) Any technical or scientific work or invention effected by a staff member during the period of his employment by the Agency shall be declared to the Director General, even if such work or invention has not been effected within the scope of the staff member's duties in the Agency. In particular, a staff member may not file any patent application without the prior consent in writing of the Director General.

Rule 4.2/6 Special provisions relating to patents and inventions

- (i) At the written request of the staff member concerned, the Director General may recognise that an invention made by a staff member within the scope of his duties has individual merit. He will instruct a Patents Group to examine the request in order to determine with the aid, if needed, of other experts, the usefulness of the invention for the Agency and the individual merit of the inventor, verify that the invention has been made within the scope of the duties of the staff member concerned and establish whether or not the invention is patentable.

Individual merit may also be recognised in the case of an invention which has been made by several staff members working as a team.

- (ii) If the Patents Group recognises the usefulness of the invention for the Agency it shall, if the invention is patentable, recommend appropriate measures to the Director General for filing a patent application; if it also recognises individual merit, it shall recommend the Director General to grant an award to the staff member in accordance with the procedures set out hereafter.

It shall be for the Patents Group to make recommendations as to:

- (a) the countries in which patents applications shall be filed;
- (b) whether a patent application shall be continued;
- (c) whether a patent shall be abandoned.

If the Group does not recognise the usefulness of the invention for the Agency, it shall recommend the Director General to waive his intellectual property rights to the invention in favour of the staff member.

- (iii) If the Group considers that the invention has not been made within the scope of the staff member's duties, it shall find that Staff Regulation 4.2 does not apply.
- (iv) The Patents Group shall examine the dossier relating to the request promptly as soon as it has been completed and the staff member must provide all the necessary information with the written request and in good time in response to any demand by the Patents Group for further or better particulars of the invention or the circumstances in which it was made.
- (v) The staff member shall be informed of the Director General's decision, following the recommendation by the Patents Group, within 30 days of the making of this recommendation.
- (vi) The Patents Group shall take all necessary measures to ensure that the rights of the staff member are safeguarded in the event of the Agency waiving its rights or if the Group finds that Staff Regulation 4.2 does not apply.

Rule 4.2/7 Procedure for granting an award to the inventor

- (i) Where individual merit is recognised in accordance with Rule 4.2/6 (ii), the basic award to be granted per patent shall be:
 - 600 euros at the time of deciding to file a first patent application in a country;
 - 1000 euros at the time of deciding to file a corresponding patent application in at least one other country, based on a favourable novelty report by the European Patent Office or a national Patent Office.
- (ii) Five years at the latest after filing the first patent application, the Patents Group will re-examine the dossier for each patent which has been extended to at least one country, in order to determine the possible value of the exploitation of the patent on the basis of the following criteria:
 - the proceeds of selling the patent, or royalties received by the Agency for licences;
 - an estimate of the savings made in Agency programmes due to the patent;
 - an estimate of the benefit to the national programmes of the Member States.

Having regard to the value of the exploitation of the patent and to the financial investment made by the Agency for this exploitation, the Patents Group will determine the amount of an additional award to be paid to the inventor, even after his departure from the Agency, and will make a recommendation to the Director General.

Rule 4.2/8 Special provision concerning technology innovations and other technical improvements

At the request of the Director General the Patents Group will examine proposals for technology innovations and other technical improvements made by staff members.

It will advise on the novelty and the utility of any such proposal and recommend whether or not the staff member who made it should be granted an award.

The amount of this award shall be between 100 euros and 1000 euros. In the event of commercial exploitation, the provisions of Rule 4.2/7 (ii) shall be applicable by analogy.

REGULATION 5

PRIVILEGES, IMMUNITIES AND PROTECTION ¹

- 5.1 The privileges, immunities or facilities enjoyed by staff members are granted in the interests of the Agency and not for their personal benefit. In particular, they shall not excuse staff members from fulfilling their private obligations or from the strict observance of the law in force at the place where they are serving. Whenever there is any question of claiming immunity from legal action, the staff member concerned must immediately report this to the Director General, who will decide whether or not the immunity shall be waived.**
- 5.2 Staff members are entitled to protection by the Agency in the discharge of their duties and in respect of possible consequences thereof.**

¹ Cf Annex I

Rule 5/1**Application of privileges and immunities**

A staff member who experiences difficulties in the application of the privileges and immunities of the staff of the Agency shall inform the Head of Personnel forthwith, so that the competent authorities can take action, after consulting the Legal Adviser.

Rule 5/2**Protection**

The Agency shall protect a staff member or former staff member against any threat, insult, injury, defamation or attack which he or any member of his family living with him at home may suffer by reason of his duties or of his employment under the Agency; so far as it deems necessary, it shall assist him in any legal proceedings he may take against the authors of such threat, insult, injury, defamation or attack.

Rule 5/3**Conditions governing indemnification**

- (i) In the event of a staff member or former staff member sustaining damage by reason of his duties or of his employment under the Agency, the Agency shall indemnify him so far as he is not himself responsible for the damage through a wilful act or gross negligence, provided that the reparation of the damage is not governed by Rules made under Regulation 22.1 and 22.2, and on condition that he shall subrogate the Agency with regard to any rights or claims he may have against third parties.
- (ii) If the damage is caused by another staff member in the discharge of his duties, deliberately or through negligence, the Agency shall indemnify the victim, without prejudice to the Agency's rights and possible action against the person responsible under Rule 2.3/1.

Rule 5/4**Other damage**

Other damage sustained by a staff member in the discharge of his duties, provided it is not the result of an offence or negligence on his part, may give rise to indemnification, at the Director General's discretion.

CHAPTER III

**RECRUITMENT,
APPOINTMENT,
MERIT RECOGNITION AND PROMOTION,
CESSATION OF DUTY ¹**

¹ Last update : May 2021 (cf ESA/ADMIN/REG(2003)1, add. 92)

REGULATION 6

APPOINTING AUTHORITY AND STAFF CATEGORIES

6.1 Pursuant to Article XII.3 of the Convention for the establishment of the European Space Agency, the Appointing Authority referred to in these Regulations shall be:

(i) the Council, acting on the recommendation of the Director General, in the case of hors-classe staff and staff in grade A7;

(ii) the Director General in the case of staff in other grades and categories.

6.2 The staff governed by these Regulations shall be classified either:

- in accordance with the categories and grades of the Co-ordinated Organisations¹, or**
- in the Local Staff category (G grade), which shall be determined by reference to the B category of the Co-ordinated Organisations under the conditions prescribed in the Staff Regulations, Rules and Instructions.**

Last update: December 2025 (cf. ESA/ADMIN/REG(2003)1, add. 126)

¹ See Annex II

Rule 6/1**Posting of decisions**

All decisions concerning appointments, promotions, re-assignments and cessations of duty shall be immediately posted on the Agency's internal notice-boards.

Rule 6.2/1**Grading on appointment**

Appointments shall in principle be made in the first step and in the first increment in step of the grade or one of the groups of grades foreseen in Rule 13.2/1 (i).

Last update : May 2021 (cf ESA/ADMIN/REG(2003)1, add. 92)

REGULATION 7

RECRUITMENT

- 7.1 Every vacancy shall be advertised in a vacancy notice stating the duties to be performed and the qualifications for the post. This vacancy notice shall be circulated within the Establishments of the Agency and to the delegations of the Member States, as specified in the Staff Rules.**
- 7.2 Applicants are required to be physically fit to carry out their duties.**
- 7.3 Staff shall be recruited on the basis of their qualifications, taking into account an adequate distribution of posts among nationals of the Member States.**

Rule 7.1/1 Vacancy notices

- (i) Vacancy notices for grade A posts shall be circulated simultaneously in the various Establishments of the Agency and to the delegations of the Member States.
- (ii) The time allowed for submission of applications shall normally be four weeks.

However, where a post below A5 needs to be filled as a matter of urgency to meet the requirements of the service and where the Director General is in a position to assign one of his existing staff to it without delay, he may, as an exceptional measure, reduce the time allowed to two weeks.

- (iii) B, C and G grade vacancies shall be circulated in the Establishments of the Agency and to the delegations of the Member States. However, such circulation may be limited to one or more Establishments of the Agency when the requirements or the possibilities of recruitment so justify.
- (iv) In addition to circulation within the Establishments of the Agency, Category L vacancies shall be advertised in the press outside the Agency or circulated to bodies training or employing translators.
- (v) Each vacancy notice shall specify a closing date for the submission of applications and give details of the selection tests, where such tests are to be held.

Last update: December 2025 (cf. ESA/ADMIN/REG(2003)1, add. 126)

Rule 7.3/1 Selection Board

- (i) For the purpose of filling vacancies in implementation of Regulations 6, 7 and 11, the Director General shall set up a Selection Board to advise him, after consulting the departmental superiors concerned, on the choice of the most suitable candidate.

Where the choice of an applicant is a matter for the Council, the proposal shall be made by the Director General after consulting a Selection Board constituted as provided in the last subparagraph of paragraph (ii) below.

- (ii) The composition of a Selection Board shall vary according to the level and degree of specialisation of the vacant post or posts.

A Selection Board shall consist of a Chair and not fewer than two members, one of whom shall be a representative of the Personnel Office.

In the case of posts graded A7 and above the Selection Board must include two members of the Bureau of the Council as provided for under Article XI.3 of the Convention establishing the Agency.

Last update: December 2020 (cf. ESA/ADMIN/REG(2003)1, add. 98)

Rule 7.3/2 Short-listing of applicants

- (i) To ensure freedom of candidature, a staff member serving in one Establishment may apply for a vacancy in another Establishment without informing either his departmental head or the Personnel Office of his parent Establishment. Any ensuing summons to

attend at the other Establishment will, however, be issued by means of a confidential letter sent through the Head of Personnel of the parent Establishment.

- (ii) Reception of applications, and short-listing, will be effected at Establishment level provided that the post involved is of a grade for which the Director concerned holds delegated powers of appointment.
- (iii) Short-listing of applicants will be decided on by the Chair of the Selection Board, where appropriate on the recommendation of the Head of Personnel. Such short-listing will be effected after the conditions of admissibility have been verified and the applicants' qualifications examined.

A priority applicant within the meaning of Regulations 15.4 and 18.3 may not be excluded unless it is obvious from his file that he does not possess the qualifications required for the vacant post.

Last update: December 2020 (cf ESA/ADMIN/REG(2003)1, add. 98)

Rule 7.3/3 Applicants from non-member States ¹

- (i) An applicant who is a national of a State that is not a member of the Agency shall not be considered except where there is no candidate from a Member State qualified to perform the duties pertaining to the vacant post.
- (ii) If the Appointing Authority decides to appoint an applicant from a non-member State, it shall state its reasons for thus departing from the principle laid down in Regulation 7.3.

The document notifying the decision is also to state specifically to which allowances and benefits the person concerned will be entitled, or not entitled, under Regulations 21, 22 and 23.4 (ii).

¹ See Annex VII of the Staff Regulations, Rules and Instructions

REGULATION 8

LETTER OF APPOINTMENT

8.1 Staff members shall be notified of their appointment by a letter signed by the Director General or his authorised representative. The letter of appointment shall specify the terms of employment, and more especially:

- (i) the professional specialisation (among those listed in the Director General's Instructions) which corresponds with the qualifications and aptitudes taken into consideration for the applicant's appointment;**
- (ii) the grade, step and increment when taking up duty;**
- (iii) the corresponding emoluments;**
- (iv) the duration of the contract;**
- (v) the duties to be performed and the duty station, upon initial posting, as well as the Appointing Authority's powers to modify them within the limitations imposed by the Staff Rules under Regulation¹¹.**

This letter shall be accompanied by a copy of the Staff Regulations, Rules and Instructions.

8.2 The letter of appointment shall specify that these conditions of employment are governed by the provisions of these Regulations and of any other Rules and Instructions applicable to the staff, including any amendments which may be made thereto, subject to staff members' retaining their vested rights.

8.3 Staff members appointed shall notify the Agency in writing of the acceptance of the terms set out in the letter of appointment; they shall state explicitly having taken cognizance of this letter and of the Staff Regulations, Rules and Instructions.

8.4 On the Agency's receipt of the staff member's letter of acceptance the letter of appointment shall take effect and shall be binding on both parties.

Last update : May 2021 (cf ESA/ADMIN/REG(2003)1, add. 92)

Rule 8/1 Letter of appointment

- (i) Appointment to a post results from the duly notified decision to take on a new staff member to fill a vacancy.
- (ii) Appointments shall be notified in letters of appointment, in the form laid down by the Director General.

Rule 8/2 Social Security benefits and pensions

- (i) The letter of appointment shall stipulate that the benefits referred to under Regulation 22.1 are subject to the results of the examination of the staff member's medical file by a doctor designated by the Agency; this examination must take place before the staff member takes up his duties. A maximum of one year's suspension of these benefits may be imposed on the advice of the doctor in question and during that period the Agency shall be under no obligation to reimburse medical costs incurred as the result of a previous accident at work, or the cost of dental prostheses.
- (ii) Furthermore, the pension benefits referred to under Regulation 22.2 may also be suspended for a maximum period of 5 years in accordance with Article 2 of the Pension Rules.

Rule 8/3 Cancellation of appointment

The appointment shall be deemed null and void:

- (i) in the absence of a written reply within the time limit specified in the letter of appointment (see Rule 8/1);
- (ii) if the medical file called for in the letter of appointment is not obtained before the staff member is due to take up duty.

Rule 8/4 Effective date of appointment

The appointment and the right to corresponding allowances and benefits shall take effect from the date of taking up duty.

Where the specified date is the first of the month, the appointment shall take effect from that day, even if the staff member is unable to take up duty then because the month begins with one or more non-working days.

Rule 8/5 Modification of the terms and conditions of appointment

Any modification made, subject to the safeguarding of vested rights, to the terms and conditions of employment laid down in the letter of appointment signed in acceptance by a staff member on recruitment is to be the subject of a rider notified to him by the Appointing Authority (or the latter's authorised representative). This applies, in particular, to the case of assignment to a different post under the terms of Regulation 11. All riders must be signed and dated by the staff member.

Rule 8/6

Personal file

A personal file will be opened in respect of each selected applicant at the time of despatch of the letter of appointment.

- (i) Only one personal file may be kept in respect of each individual.
- (ii) The personal file is to contain all documents concerning the staff member's personal administration (career record, substantiated claims for allowances, etc.) together with all reports on his competence, efficiency and behaviour as a member of the Agency.

The comments made by the staff member concerned in respect of these documents must also be placed in his personal file.

Each document is to be serially numbered as soon as it is placed in the personal file.

- (iii) The personal file will not include medical documents, which will be handed over for safekeeping to the doctor designated by the Agency.
- (iv) The personal file will be confidential. It may be communicated to the staff member concerned, and to his departmental head, under the supervision of the Personnel Officer. Except as may be specially decided by the Director General, the personal file may be communicated to other persons only under the conditions laid down by the rules concerning the Probation Board, the Advisory Board and the Administrative Tribunal.
- (v) No document placed in the personal file may be removed, except in the following circumstances:

- When formal disciplinary proceedings have not led to a sanction.
In this case the complete file relating to the disciplinary proceedings, including in particular documents relating to any proposed sanction, is - in accordance with Rule 26/1(ix) - to be removed from the staff member's personal file and destroyed.
- In implementation of Regulation 26.6, dealing with the removal of all trace of a disciplinary sanction after a lapse of three years.
As above, all the documents relating to the disciplinary sanction in question are to be immediately removed from the staff member's personal file and destroyed.
- When the Administrative Tribunal has annulled a decision notified to the staff member concerned by the competent authority.
In this case, the Director General will remove from the personal file all the documents relating to the decision.

The complete file of the proceedings before the Administrative Tribunal, including the documents withdrawn from the personal file of the staff member concerned, is to be placed in the archives of the Registrar of the Tribunal. None of these documents may be subsequently communicated either to the staff member concerned or to any third party nominated by him, except by decision of the President of the Tribunal.

In the various cases provided for above, the Director General will provide the staff member concerned with a list of the documents thus removed.

Last update: December 2020 (cf ESA/ADMIN/REG(2003)1, add. 98)

REGULATION 9

DURATION OF APPOINTMENT

- 9.1 Staff shall be appointed for a fixed term, or for an indefinite term.**
- 9.2 It shall be stipulated in the letter of appointment of staff recruited for a fixed term, whether or not the appointment may be extended for an indefinite period, under conditions laid down in the Staff Rules.**

Rule 9/1 Contract – Hors-Classe and A7 staff

The duration of contracts for hors-classe and A7 grade staff shall be determined by the Council on an individual basis at the time of appointment.

Rule 9/2 Contract – Category B, C and G staff

Category B, C and G staff shall, as a general rule, be appointed for an indefinite duration.

Last update: December 2025 (cf. ESA/ADMIN/REG(2003)1, add. 126)

Rule 9/3 Contract – Category A and L staff

- (i) Category A and L staff other than those covered by Rules 9/1, 9/4, 9/5 and 9/6 shall be appointed for an initial period of 4 years.
- (ii) Their letter of appointment shall state that, not later than by the end of the third year of their appointment, they will be informed either:
 - (a) that their appointment will not be extended, or
 - (b) that their appointment will be extended for an indefinite period, or again
 - (c) that their appointment will be extended for a fixed period, if the Director General considers it inappropriate to grant an indefinite appointment at that stage. Not later than one year before expiry of this extension, the staff member concerned shall be informed of one of the three decisions mentioned in this paragraph (ii).
- (iii) [deleted].
- (iv) Reasons will not be given for decisions concerning the extension or non-extension of appointments; however, the staff member concerned shall be heard by his Director before the Director General takes a decision.
- (v) An A-grade (or L) staff member's previous service in Categories B or G shall be taken into account in the calculation of the periods referred to in paragraphs (i) and (ii) above. If such service amounted to three years or more by the time they transferred to Category A, they shall immediately be given an indefinite-term contract.

Last update: December 2025 (cf. ESA/ADMIN/REG(2003)1, add. 126)

Rule 9/3bis Transitional provision

- (i) This transitional provision applies to Category A or L staff in post on 31 December 1975 and having served by that date (including service in ESRO or ELDO) not less than three years:
 - either in Category A or L, or
 - in their present post, if they have been upgraded into Category A or L.

- (ii) The staff in question shall be informed by 31 December 1975 at the latest:
 - either that their contracts will not be extended on expiry, or
 - that their contracts are extended for an indefinite duration as from 1 January 1976.
- (iii) Category A and L staff in post on 1 December 1975 with less than three years' service by that date shall, before the end of the third year of their appointment - which will, if necessary, be extended to make a total of four years - be informed either that their contracts will not be extended, or that they will be extended for an indefinite duration.
- (iv) If the Director General or the Council sees fit, contracts of staff referred to in this Rule that have not been extended for an indefinite duration may be extended for not less than one year and not more than four years. The staff concerned shall be informed accordingly not later than one year before expiry of their contract, and any further extension of their appointment shall be governed by Rule 9/3 (ii).

Rule 9/4 a) Staff appointed for specific tasks [Provisions applicable to letters of appointment issued up until 31 December 2017]

Staff specially appointed for specific tasks of limited duration shall be given a fixed-term appointment; the duration of such appointments will be related to the foreseeable duration of the task, but may subsequently be extended if the task develops or changes.

Should the Appointing Authority intend extending their initial appointment, the persons concerned shall be advised of this at least six months before it is due to end.

b) Staff appointed for specific needs [Provisions applicable to letters of appointment issued as from 1 January 2018]

- (i) Staff of all grades specially appointed for specific needs shall be given a fixed-term appointment not exceeding a maximum of 8 years. In no case may the total cumulated duration of appointments for specific needs, be they consecutive or not, exceed 8 years.
- (ii) The letter of appointment shall state the nature of the specific needs justifying the appointment and that the appointment cannot be extended beyond the maximum duration of 8 years.
- (iii) At the scheduled end of an appointment for specific needs, the staff member shall receive a departure indemnity paid in full at the time of leaving the Agency. The amount of the indemnity shall correspond to one month's emoluments for each year of continuous service from the take up duty date as staff appointed for specific needs. A fraction of a year will be accounted for pro rata. The amount of the indemnity shall be subject to a maximum ceiling corresponding to five months' emoluments. The cumulated departure indemnities paid to staff members cumulating more than one fixed-term appointment under the present Rule, be they consecutive or not, shall be subject to the same ceiling and in no case exceed five months' emoluments in total.
- (iv) If at the scheduled end of an appointment for specific needs the staff member demonstrates that he cannot immediately arrange health and accident risk cover, the reimbursement of his medical expenses and those of his entitled persons may be maintained for a maximum of 6 months.
- (v) There shall be no entitlement to a departure indemnity in the following cases:

- Resignation;
- Termination of appointment in accordance with Staff Regulation 15;
- End of non-active status;
- Subsequent appointment, without interruption after the scheduled end of or at any date during the appointment for specific needs, as staff on the basis of Staff Regulation 9, as Graduate Trainee, or as Internal Research Fellow.

Last update: July 2025 (cf. ESA/ADMIN/REG(2003)1, add. 123)

Rule 9/5 Seconded staff

- (i) Staff seconded from a national Administration, or from a national Establishment shall, in principle, be appointed for a maximum fixed term of 4 years; this period will be related to the length of the secondment.
- (ii) However, on the date referred to in Rule 9/3 (ii), such staff may be offered:
 - either a contract of indefinite duration, commencing from the end of the initial appointment, if the Establishment or national Administration (consulted by the Agency approximately 15 months before the end of the initial contract) has raised no objection, or
 - the extension of their appointment for a period determined in relation to the period of secondment.
- (iii) Where the appointment of a staff member seconded under this Rule has to be terminated for one of the reasons listed in Regulation 15.4 and is to end before the date of expiry of his contract with the Agency, the latter shall inform the staff member's parent Administration or national Establishment in order to allow it to take in good time the necessary measures for his reintegration.

Rule 9/6 Nationals of non-member States ¹

Nationals of non-member States may not be appointed, or have their appointments extended, for an indefinite period unless the Appointing Authority considers it essential in the interests of the Agency. In such event, the terms and conditions laid down in Rule 9/3 shall apply to such staff.

A report on such cases shall be submitted to the Council.

Rule 9/7 Notification of decisions

The various decisions and information referred to in the foregoing provisions must be notified to the staff member concerned, in writing, by the Appointing Authority.

¹ See Annex VII of the Staff Regulations and Rules

REGULATION 10

PROBATIONARY PERIOD

10.1 The first six months of service by a staff member shall be a probationary period during which the appointment may be terminated at any time by either party at one month's notice. At the end of this probationary period, it shall be decided:

- to confirm the appointment, or**
- exceptionally, to prolong the probationary period for a further maximum period of six months, or**
- to terminate the appointment of the staff member upon one month's notice.**

10.2 The regrading of the staff member may also be decided upon at the end of the probationary period.

In the case of staff appointed by the Council itself, revision of grade or step and termination of the appointment shall be decided by the Council, acting on the proposal of the Director General.

10.3 The Director General shall have delegated authority to take all other relevant decisions at the end of the probationary period.

He may, however, refer to the Council the decision to confirm an appointment in the case of staff appointed by the Council itself. The Council's refusal to confirm an appointment shall give authority to the Director General to terminate it.

The Director General shall inform the Council, stating the reasons, if he exceptionally prolongs the probationary period of a staff member appointed by the Council.

Rule 10/1**End-of-probation report**

(i) The decisions referred to in Regulation 10 shall be taken after consideration of the report submitted by the staff member's immediate superior on his competence, efficiency and conduct.

(ii) The Director General shall determine the form of the end-of-probation report.

Rule 10.2/1**Upgrading or change of step**

Upgrading or change of step on completion of probationary period shall not be backdated; it shall be the subject of an additional clause to the contract.

Last update : May 2021 (cf ESA/ADMIN/REG(2003)1, add. 92)

REGULATION 11

REASSIGNMENT OF STAFF

- 11.1 Reassignment of staff shall be decided by the Appointing Authority.**
- 11.2 Reassignment of a staff member shall not result in his downgrading; practical details of reassignment shall be laid down in the Staff Rules, with particular reference to the guarantees granted to the staff as regards maintenance of the field of specialisation and grading.**
- 11.3 Where a staff member has, in conformity with this Regulation, been permanently reassigned to another post, the Appointing Authority may, if the staff member is unsuited to his new duties, cancel this posting within the next six months; in such event it shall reassign the staff member to a post carrying a grade not lower than that of the post he held before the above- mentioned assignment.**
- 11.4 A staff member may be reassigned in case a disciplinary sanction is imposed on him pursuant to Regulation 25.2 (i), (ii) or (iii).**

Last update: December 2020 (cf ESA/ADMIN/REG(2003)1, add. 98)

Rule 11.2/1 Assignment to new duties

- (i) After the initial posting referred to in Regulation 8, the Appointing Authority may decide to reassign staff already in post; such reassignment to other duties may take place with or without change of duty station, whether or not the person concerned has applied for such reassignment.

- (ii) The Appointing Authority, however, shall not decide to assign a staff member to other duties before the Director General has examined applications for the post in question.

After such examination it may be decided, at any point of the ongoing procedure, to reassign a person without there being need to apply one of the later stages of the procedure laid down under Regulation 7.

- (iii) The assignment to other duties of a staff member in post who has not applied for such assignment must be in keeping with the definition of his professional specialism indicated in the letter of appointment, unless he agrees otherwise. The new duties must be at least at the same level as his present duties.

- (iv) Reassignment may not involve a lowering of grade, step or increment; it will on the other hand entail a promotion to a higher grade if the staff member concerned is reassigned to a post in a higher group of grades as specified in Rule 13.2/1 (i).

In the event of moving up from one groups of grades to the next, the staff member will be appointed to the first grade of the new group.

- (v) On posting, a staff member will be required to take up residence at his new duty station as laid down in Rule 21.3/1, and shall be entitled to the corresponding benefits as provided in Regulations 21 and 22.3. The residence requirement shall not be mandatory during the first eight weeks in the new post.

Posting shall terminate any arrangement for mission allowances at the new duty station.

Last update : May 2021 (cf ESA/ADMIN/REG(2003)1, add. 92)

Rule 11.2/2 Notification

- (i) Before a decision to assign a staff member to new duties is notified, he must be informed in advance by the Head of Personnel. He will then have 8 working days during which he may submit his comments in writing.

- (ii) When this period has elapsed, the staff member will be immediately informed of the Director General's decision either to proceed with or abandon the assignment.

- (iii) The decision referred to in paragraph (ii) above shall be notified to the staff member without the reasons; however, if expressly requested by the staff member these reasons will be supplied in writing, but the Director General's right to exercise his judgement in the matter shall not be challenged.

Rule 11.2/3 Refusal by a staff member

- (i) Where a staff member is assigned to a new post at the same duty station, if he refuses the post he will be considered to have resigned: he will be entitled to the period of

notice and other terms provided under Regulation 15.5, but will not qualify for an indemnity for loss of job.

- (ii) Where a staff member is assigned to a post at a different duty station, if he refuses this and a solution cannot be found, his present post will be considered as being suppressed: he will be entitled to the period of notice and other terms provided under Regulation 15.5, and to the indemnity for loss of job referred to in Regulation 21, item 7, unless stipulated otherwise in the letter of appointment in well-defined cases.
- (iii) The above provisions apply only to staff holding an indefinite appointment or having notified acceptance of an indefinite appointment following a fixed-term appointment.

In the case of other staff, any posting under Rules 11.2/1 and 11.2/2 shall be subject to their agreement.

REGULATION 12

PERFORMANCE ASSESSMENT ¹

The performance of the staff member shall be assessed annually against the accomplishment of professional objectives of technical and behavioural nature which are required for the staff to fulfil his duties.

¹ Major update of Regulation 12, as well as of the corresponding Rules and Instructions: May 2021 (cf ESA/ADMIN/REG(2003)1, add. 92)

Rule 12/1**Assessment of performance**

- (i) The performance assessment shall be based on the achievements of objectives by the staff member. These objectives shall be set by the hierarchy in consultation with the staff member; they shall comprise functional objectives in relation to the duties of the staff member, behavioural objectives and professional development objectives.
- (ii) The fulfilment of the objectives shall be reviewed at the end of the performance assessment reference period and will lead to an assessment and a rating of the performance of the staff member by his hierarchy.
- (iii) An assessment report, the form of which shall be determined by the Director General, shall be drawn up every year in respect of each staff member.
- (iv) The purpose of the report is to assess the way in which a staff member has performed his duties during the period under review and, where appropriate, to recommend action along the lines laid down in Regulations 13 and 14.
- (v) The report does not constitute a decision by the Director General in the sense of Staff Regulations 30 and 33.
- (vi) A mid-year performance review shall be set between the staff member and his hierarchy, in addition to the performance assessment referred to in paragraph (ii) above.

Rule 12/2**Ratings**

The assessment shall be based on a performance scale with the following ratings:

- outstanding;
- above expectation;
- in line with expectation;
- below expectation;
- unsatisfactory.

Rule 12/3**Rebuttal process**

When the staff member disagrees with the assessment or rating of his performance, he may address it through a rebuttal process within eight working days after the closure of the assessment cycle, under the conditions determined by the Director General.

REGULATION 13

MERIT RECOGNITION AND PROMOTION ¹

- 13.1 Merit recognition (i.e. salary progression and bonus) shall be awarded to staff members according to their level of performance as determined by the annual performance assessment.**
- 13.2 A promotion in grade not resulting from assignment to a vacant post shall be decided on the basis of job performance, of ability to perform duties at the higher level and of the evolution of the level of duties and responsibilities of the staff member concerned.**
- 13.3 The step in the grade and the increment in step awarded on promotion will be determined as specified in the Staff Rules.**

¹ Major update of Regulation 13, as well as of the corresponding Rules and Instructions: May 2021 (cf ESA/ADMIN/REG(2003)1, add. 92)

Rule 13.1/1 Merit recognition

The merit recognition granted to staff members at the end of the annual exercise of performance assessment shall be as follows:

- (i) when the performance of the staff member is rated “unsatisfactory” or “below expectation”, the staff member shall not benefit from any award;
- (ii) when the performance of the staff member is rated “in line with expectation” or higher, the staff member shall benefit from a basic salary progression;
- (iii) when the performance of the staff member is rated “above expectation”, the staff member shall be eligible for an additional salary progression or a bonus;
- (iv) when the performance of the staff member is rated “outstanding”, the staff member shall benefit from an additional salary progression and a bonus;

The award of a salary progression within the meaning of Staff Regulation 13 shall not result in a salary² higher than the one defined by the last step in grade.

Rule 13.2/1 Promotion

- (i) The promotion provided for under Regulation 13 shall be granted within the limits provided for in the following Staff Instructions and within the A2/A3/A4 (L2/L3/L4), B5/B6 and B2/B3/B4 groups of grades. Promotion shall also be granted, within the same limits, for staff having remained in the former B4/B5/B6 group of grades.

The grade levels in the G-grade category shall be determined by replicating those applicable to the B-grade category. The principles governing the promotions within the B-grade category shall thus be similarly applied for promotion from one grade to another within the G-grade category.

- (ii) Promotion to the next grade may not be granted when the staff member concerned has already been promoted within the preceding 24 months. However, the granting of any type of merit recognition during the previous performance assessment exercise shall not preclude promotion during the following exercise. Furthermore, promotion granted the previous year shall not preclude merit recognition the following year.
- (iii) Moving up from a group of grades specified in paragraph (i) to the next group shall be subject to displaying the vacancy notice and to assignment pursuant to Rule 11.2/1.

Last update: December 2025 (cf. ESA/ADMIN/REG(2003)1, add. 126)

Rule 13.1-2/1 Petitions

Decisions by the Director General on merit recognition and promotion may not form the subject of a petition to the Advisory Board and the Administrative Tribunal other than on the grounds of misuse or abuse of powers.

² As defined by Staff Rule 20.2/1.

REGULATION 14

PROFESSIONAL TRAINING

The Director General shall draw up an annual training programme in order to ensure the continuing education of the staff. This programme should provide the means of meeting the Agency's technical and administrative needs through the most efficient use of the staff, and of developing the qualifications and potential of each staff member.

Rule 14/1**Categories of assisted training activities**

- (i) The Agency shall bear the costs of professional training for staff members in whole or in part, in accordance with the two categories of training activities set out below; for this twofold purpose, funds shall be set apart annually for each Establishment in the Agency with a view to the participation of staff members in courses of instruction, symposia, seminars and the like.
- (ii) Category I shall cover training activities of direct interest to the Agency - i.e. which are regarded as essential for performing the duties carried out by the staff member, or which his immediate superiors intend to assign to him at a later date - for which the Agency will bear the cost of all expenditure (transport, subsistence allowance, enrolment fees, participation costs and correspondence courses) and allow free time off.

Travel expenses shall not however be charged against training funds.

- (iii) Category II shall cover training activities which are designed to develop the knowledge of a staff member, without being essential to the performance of his current or future duties in the Agency, but having nevertheless a direct bearing on such activities, for which the Agency will bear part of the cost of training up to a maximum of 50%, and may grant the necessary time out of working hours.

Category II shall also include the language courses organised by each Establishment on its premises; staff members shall contribute to the cost at an hourly rate laid down each year by the Director General, and shall devote to each lesson part of their leisure time amounting to 50% of the duration of the lesson.

Rule 14/2**Procedure**

The action by the Agency shall be determined by the Head of Personnel or his representative on a proposal by the staff member's Head of Department, or at the request of the staff member himself. Regarding Category II, the Finance, Planning and Controlling Department and the Local Staff Committee shall be kept informed on a regular basis about the actions undertaken.

Last update: June 2015 (cf ESA/ADMIN/REG(2003)1, add. 68)

Rule 14/3**Retraining**

- (i) The Agency shall take specific action with a view to retraining a staff member in the event of the suppression of his post; the purpose of such action shall be to facilitate the re-employment of staff, within the Agency or elsewhere, either by developing their knowledge of their current special field or by enabling them to reorient their professional qualifications and skills.
- (ii) Applications for retraining facilities shall be addressed to the Head of Personnel and be submitted to the Board referred to in Rule 14/2 (ii), for its advice.
- (iii) The financial contribution by the Agency shall not in principle exceed [2000AU]; in addition, the Agency shall bear the cost of travel expenses and, where necessary, subsistence allowance.

The time allowed for attending retraining courses shall not, in principle, exceed thirty working days, i.e. six weeks, during which the staff member shall be paid by the Agency as if he were on active duty.

- (iv) In addition to this direct contribution, the Agency shall enter into contact with national re-employment and training bodies in order to provide its former staff with the best opportunities of re-employment.

Rule 14/4 Annual programme

- (i) At the end of each year the Personnel Office of each Establishment shall draw up the staff training programme which provides supporting evidence for the appropriations requested for the following financial year; this programme shall indicate the sectors in which a special effort is required in the light of the Agency's activities, and shall in particular take account of the recommendations made in connection with the annual assessment reports on staff members.

The programme for each Establishment shall be drawn up jointly with the Local Staff Committee.

- (ii) Training programmes shall be taken to mean strictly the equivalent of courses, groups, seminars, etc., in which staff members actually receive part of their professional training in management or scientific and technical subjects, including training courses in the use of new equipment.

For the purpose of this Rule professional training activities shall not include exchange of views, conferences or symposia for the discussion of specific activities of the Agency with representatives of a government department, body or firm participating in its activities, or associated with the execution of its programmes.

- (iii) At the beginning of each year the Personnel Office of each Establishment shall report on the results of its training programme for the previous year.
- (iv) Annual reports and programmes shall be the subject of annual exchanges of views at the Agency's Headquarters among the representatives of all the Establishments.

REGULATION 15

TERMINATION OF APPOINTMENT

15.1 A staff member's appointment may be terminated by the Appointing Authority subject to the conditions applicable to the relevant cases, stated in the following paragraphs.

15.2 Dismissal on disciplinary grounds, pursuant to Regulation 25.2 (iv) shall be without notice.

15.3 A staff member's appointment may be terminated in the following cases, subject to the period of notice laid down in accordance with Regulation 10.1 or paragraph 5 below:

- (i) During, or at the end of, the probationary period, in accordance with Regulation 10.1.
- (ii) Because of his inability to carry out his duties on completion of sick leave in the cases covered by Regulation 23.4 (iii) or because he has been called up for more than two years' military service.
- (iii) Because he does not give satisfactory service.

15.4 An appointment may be terminated in the following cases, subject to the period of notice laid down in accordance with paragraph 5 below and to the award of an indemnity calculated in accordance with the Staff Rules under Regulation 21.7:

- (i) If a staff member's post is suppressed, including the case of staff reductions.
- (ii) If a staff member's departmental unit is posted to another duty station and he refuses to be transferred with it.
- (iii) If a country, of which a staff member appointed for an indefinite term is a national, withdraws from the Agency.
- (iv) If the duties attaching to a staff member's post are modified in such a way that he no longer possesses the necessary qualifications for that post.
- (v) If a staff member can no longer adapt to the requirements of his duties, without there being any question of professional failing under paragraph 3 (iii) above.

A staff member whose appointment is terminated on any of the above grounds other than case (iii) shall, provided he has the necessary qualifications, be given priority in the filling of any vacant post at the level of the one he occupied or at a level immediately below.

The indemnity provided under the first subparagraph above shall not be awarded where, before the expiry of the period of notice, the staff member has been reassigned to a post in the same grade.

15.5 The period of notice referred to in paragraphs 3 and 4 above shall be laid down in the Staff Rules.

The Appointing Authority may dispense a staff member from actual duty during his period of notice; however, payment of emoluments for the unexpired period of normal notice shall not constitute a right in the following cases:

- (i) If the staff member asked to cease employment before the expiry of the period of notice.**
- (ii) If the staff member, returning to his previous employer pursuant to obligations entered into towards him by the latter, does so before the expiry of the period of notice.**

15.6 Termination of appointment shall take place on conclusion of a procedure laid down in the Staff Rules, providing the staff member with an opportunity to submit his observations before the final decision is taken.

Any decision to terminate an appointment shall be notified in writing, with reasons.

Rule 15.3/1 Termination after sick leave ¹

When an appointment is terminated at the end of an authorised period of sick leave pursuant to Regulation 15.3 (ii), the allowance corresponding to the period of notice shall be paid to the staff member without his having to resume service; however, this allowance in lieu of notice shall not be cumulative with the temporary incapacity benefits paid under Regulation 22.1, or with an invalidity pension or annuity payable by the Agency. Should the staff member not qualify for such a pension or annuity or not be reinstated in the Agency, payment in lieu of notice shall be made at the end of the period of temporary incapacity.

Rule 15.3/2 Termination for unsatisfactory service

When an appointment is terminated for reason of unsatisfactory service pursuant to Staff Regulation 15.3 (iii), the necessary steps as outlined in administrative instructions of the Director General shall apply and replace Staff Rule 15.6/1.

Last update : May 2021 (cf ESA/ADMIN/REG(2003)1, add.92)

Rule 15.4(iii)/1 Termination following withdrawal of a member country

After one year has elapsed since the withdrawal of the country of which a staff member is a national, his appointment may no longer be terminated under the terms of Regulation 15.4 (iii).

Rule 15.5/1 Period of notice

- (i) The period of notice referred to in Regulations 15.3 and 15.4 is four months. If a staff member has more than five years' service in the Agency, this period of notice shall be increased by:
 - one month per whole year's service beyond the fifth year;
 - a fortnight for a part of the year of at least six months beyond the fifth or subsequent year.

The period of notice may, however, not exceed 12 months.

- (ii) The period of notice referred to above shall begin to run from the first day of the month following the date of notification.

Rule 15.5/2 Exemption from duty

- (i) Any staff member whose appointment is terminated by the Agency will be entitled to cease work one month before expiry of the period of notice.
- (ii) The Director General may grant the payment of the salary and allowances corresponding to the length of notice in a lump sum or monthly, and may excuse the staff member wholly or partly from actual duty during the period of notice.

¹ See Instr. 23.4(iii)/1/7 in respect of the various cases of incapacity at the time of termination or expiry of a contract

- (iii) Payments granted where appropriate under the terms of paragraph (ii) above to a staff member excused wholly or partly from duty during the period of notice are listed in detail in Regulations 20, 21 and 22; they include:
 - (a) the salary relating to the period of notice;
 - (b) the allowances referred to in Regulations 21.1, 21.2, 21.6 and 21.7, and also in Regulation 21.4 if the staff member continues to reside in the same place and is not in the service of another employer during the period of notice;
 - (c) Provident Fund contributions paid by the Agency under the Transitional Arrangements of the Pension Scheme.
- (ii) Pension rights shall also continue to accrue during the period of notice if, during this period, the staff member is not in the service of another employer.
- (iii) The staff member concerned may also continue to participate in the Agency's Social Security Scheme under the terms stated in Regulations 20, 21 and 22.

Rule 15.6/1 Termination procedure

- (i) Before any decision to terminate an appointment, the staff member shall be shown by the Head of Personnel a report giving the reasons for the proposal to terminate; he shall be entitled to comment thereon in writing within a period not exceeding eight working days starting from the date of notification.
- (ii) At the end of this period, and not later than eight working days thereafter, the Director General shall inform the staff member in writing, of his decision either:
 - (a) not to take action on the proposal to terminate; or
 - (b) to request the opinion of an Advisory Board and to set in motion the procedure provided for under Regulation 30.1 (i).
- (iii) In the event of termination during, or at the end of, a probationary period, or in the event of loss of employment, covered by Regulations 15.3 (i) and 15.4 (i), (ii), (iii) and (iv), the special procedures laid down in the Rules shall be set in motion on receipt of the staff member's comments referred to in paragraph (i) above.

Rule 15.6/2 Effect of cessation of duties

- (i) The cessation of duties shall take effect on the actual date of departure of the staff member concerned with the agreement of the Appointing Authority.
- (ii) The cessation of duties by expiry of the contract or by termination or resignation shall:
 - (a) terminate the capacity of the person concerned as a member of the Agency's staff and the resulting rights and obligations, except as specified, in particular, by Regulations 2, 3, 4, 22 and 23;
 - (b) entail the immediate vacancy of the post occupied by the person concerned.

Rule 15.6/3 Medical examination

Every staff member leaving the Agency, for any reason whatsoever, shall be medically examined on departure by a doctor designated by the Agency. If he prefers not to be examined, he shall forthwith sign a statement waiving all right of recourse against the Agency in respect of any accident suffered or any illness contracted during his time of service with the Agency.

Rule 15.6/4 Monies owed to the Agency

Any sums remaining due to the Agency on the cessation of duties may be deducted from the benefits remaining due to the party concerned without prejudice to any other means of recovery.

REGULATION 16

RESIGNATION

- 16.1 Any staff member may resign upon giving the Director General notice equal to that laid down in accordance with Regulation15.5.**
- 16.2 The Director General may, however, accept a shorter period of notice, or dispense a staff member from actual duty during his period of notice, on the same conditions as are laid down in Regulation15.5.**

Rule 16/1**Resignation – Decision of the Appointing Authority – Period of notice – Refusal of resignation**

- (i) A staff member wishing to resign shall submit his resignation in writing, through his Director, to the Appointing Authority.
- (ii) The Appointing Authority shall decide on what action it will take in respect of this resignation, and in particular on the period of notice to be served by the staff member; Rules 15.5/1 and 15.5/2 also apply to the period of notice in the case of resignation.
- (iii) The Appointing Authority may, except at the end of a fixed-term contract, refuse to let a staff member leave the Agency, if disciplinary action is proceeding.

Rule 16/2**Implementation**

The provisions of Rules 15.6/2 to 15.6/4 shall also apply to cases of resignation.

REGULATION 17

REGULATORY AGE LIMIT

- 17.1 The regulatory age limit is sixty-six. On an entirely exceptional basis, however, staff may remain in service for a maximum of one additional year (that is, up to sixty-seven) where there are strong operational imperatives, and where the staff member concerned and their hierarchy consent; the standard regulatory age limit nevertheless remains sixty-six.**
- 17.2 A staff member may claim their retirement benefits in accordance with the provisions laid down in the Pension Scheme Rules respectively referred to in the Rules under Staff Regulation 22.2.**

Last update: August 2025 (cf. ESA/ADMIN/REG(2003)1, add. 125)

Rule 17/1 Age limit – Effective date

The duties of a staff member and the payment of the corresponding emoluments shall terminate no later than the last day of the calendar month in which he reaches the age of sixty-five, save where the exceptional derogation provided for under Regulation 17.1 applies.

Last update: May 2010

Rule 17/2 Provident Fund – Pension Scheme

Retirement benefits of staff members who have reached retirement age shall be determined by the Rules under Regulation 22.2 and 22.2bis.

REGULATION 18

NON-ACTIVE STATUS

18.1 A staff member may be granted non-active status by the Appointing Authority:

- (i) for a period of not more than two years and a half upon the expiry of the sick leave provided for in Regulation 23.4 (iii).**
- (ii) for a period of not more than two years, for compulsory military service.**
- (iii) for a period of not more than two years, for personal reasons.**
- (iv) for a period of not more than two years, following the birth and up to the third birthday of a child or owing to the serious illness of the staff member's child, spouse, or parent.**
- (v) for a period of not more than two years, and extendable up to a total maximum duration of four years in exceptional cases, for reasons in the interest of the Agency.**
- (vi) for a period between two months and up to not more than twelve months, for sabbatical leave. Sabbatical leave cannot be granted before the initial appointment has been extended.**

18.2 A staff member granted non-active status shall not be entitled to any salary or allowances, but may be granted benefits under the terms of Regulations 22.1 and 22.2 for the period covered by Regulation 18.1 (i). In the cases covered by Regulation 18.1 (iv), the staff member may continue to be entitled to sickness benefits (reimbursement of medical expenses) as well as to death benefits. In the cases covered by Regulation 18.1 (vi), the staff member may continue to be entitled to sickness benefits (reimbursement of medical expenses) provided the staff member has no access to such coverage for the duration of the non-active status. The period of non-active status shall not be considered as effective service with the Agency.

18.3 The post of a staff member granted non-active status shall fall vacant, unless otherwise decided by the Appointing Authority, in particular taking into consideration a short duration of a non-active status.

- (i) In accordance with the principles laid down in Staff Regulation 11, the Appointing Authority shall at the planned end of the non-active status reinstate the staff member in a vacant post carrying a grade not lower than that of the post held before the period of non-active status. However, while maintaining their grade, staff members graded A5 and above cannot claim reinstatement in a post corresponding to their grade. Should a prolongation of the non-active status exceptionally be granted beyond two years on the basis of Regulation 18.1 (v), the Appointing Authority shall decide on any continued entitlement to reinstatement.**
- (ii) In the cases covered by Regulation 18.1 (iii), the staff member has no entitlement to reinstatement.**

18.4 At the planned end of the period of non-active status, should reinstatement prove impossible, the contract shall be deemed to terminate without any indemnity for loss of job being due:

- (i) at the end of the notice period laid down in Rule 15.5/1 running from the first day of the month following the non-active status, unless reinstatement becomes possible before the end of the notice period.**
- (ii) during the notice period laid down in paragraph (i), on the last day of the month in which a staff member refuses the reinstatement proposed by the Appointing Authority.**
- (iii) in the cases covered by Regulation 18.1 (iii), on the last day of the non-active status and, from that date, the staff member shall, without notice, cease to be a member of the staff of the Agency.**

18.5 Non-active status shall not entail the prolongation of a fixed-term appointment.

18.6 The provisions governing non-active status may be excluded from a fixed- term contract.

Rule 18.2/1**Position of a staff member during non-active status**

- (i) A staff member given non-active status shall cease to be entitled to advancement, annual leave, or home leave, during the period in question.
- (ii) When non-active status is consequent upon sick leave, the staff member shall continue to contribute to the Agency's Social Security and Pension schemes - or, where appropriate, the Provident Fund - if he is in receipt of temporary disablement benefits under Regulation 22.1; he shall be entitled to the corresponding benefits under those schemes.

In the cases of non-active status covered by Regulation 18.1 (iv) and (vi), a staff member may continue to contribute to the Social Security Scheme and be entitled to reimbursement of medical expenses, and in the cases covered by Regulation 18.1 (iv) to death benefits, excluding any other benefits. Such contribution and entitlement are for non-active status on the basis of Regulation 18.1 (vi) conditional upon the staff member not having access to such coverage for the duration of the non-active status.

- (iii) In other cases of non-active status, the staff member shall cease to contribute to the aforementioned schemes and shall no longer be entitled to the corresponding benefits. However, should a staff member die during a period of non-active status, his legitimate claimants shall be entitled, under the conditions laid down in the Pension Scheme rules, to:
 - either the severance grant to which the staff member concerned was entitled when he was given non-active status, if he had less than ten years' service with the Agency,
 - or the survivor's and/or orphan's pensions, whichever is appropriate.

If the staff member has remained affiliated to the Provident Fund by virtue of the Transitional Provisions of the present Rules, his legitimate claimants shall be entitled to payment of the amount of his holdings, in accordance with Rule 22.2bis/10 (ii).

Rule 18.3/1**Reinstatement**

- (i) At the latest three months before the planned end of the non-active status, the staff member shall inform the Appointing Authority of the date of his return to the Agency.
- (ii) In accordance with Regulation 18.3; the staff member is reinstated in a vacant post carrying a grade not lower than that of the post held before the non-active status keeping in mind his professional specialism, unless he agrees otherwise.
- (iii) To the extent possible, the Appointing Authority shall seek to reinstate the staff member in a post in the Directorate and duty station under which the post held before the non-active status came, unless he agrees otherwise.

REGULATION 19

SECONDMENT

- 19.1** Secondment is the position of a staff member who, in the interest of the service, is designated by the Appointing Authority, with his consent, to occupy temporarily a post outside the Agency.
- 19.2** The secondment should normally be for a period not exceeding one year, renewable with the staff member's consent for a further period of not more than one year. Only in exceptional circumstances shall any one period of secondment be extended to more than two years in all.
- 19.3** On secondment a staff member shall retain his entitlement to advancement and to the emoluments, rights and benefits laid down in these Regulations. A seconded staff member must not suffer any financial disadvantage in comparison with his normal position within the Agency. The principles to be observed in this respect shall be laid down in the Staff Rules.
- 19.4** The post held by a seconded staff member may be declared vacant. At the end of secondment the staff member shall immediately be reinstated in the Agency, in the grade he held and in duties equivalent to those he performed at the time of his secondment.

Rule 19.3/1**Secondment – Emoluments and benefits**

- (i) In the event of secondment the Appointing Authority shall, in accordance with Regulation 19.3 and by arrangement with the new employer, inform the staff member in writing of:
 - the arrangements under which he will receive his pay from the Agency or from his new employer;
 - any supplements that will be paid to him by the Agency, if necessary, so that his overall remuneration is at least the same as he would have received if the Agency itself had assigned him to the place of secondment;
 - any special allowances which he may be awarded by the Agency, if the secondment involved him in special expenditure not covered by the new employer.
- (i) The financial cost of the secondment may be shared between the Agency and the new employer, but this must not cause the staff member any prejudice nor any delay in payments due to him; on the other hand there shall be no duplication of payment of identical benefits.
- (ii) The period of secondment shall be fixed by the Director General in agreement with the staff member, who shall be entitled on the expiry of the specified period, and at the time of any subsequent renewal, to request the termination of his secondment.

CHAPTER IV
EMOLUMENTS AND BENEFITS

REGULATION 20

EMOLUMENTS

- 20.1** Emoluments shall comprise salary, allowances and indemnities. Any other remuneration shall be subject to the provisions of Regulation 3.3.
- 20.2** The Director General shall, in agreement with the other Co-ordinated Organisations, propose salary scales of categories, grades, steps and increments, which shall be submitted, together with all other emoluments, to the Council for approval.
- 20.3** The level of the emoluments of the staff of the Agency shall be reviewed from time to time in accordance with the procedure and criteria laid down for the Co-ordinated Organisations in order to take account, in particular, of increases in the cost of living and in the standard of living in the member countries.
- 20.4** The emoluments and benefits due to a staff member from the Agency may, with the agreement of the Director General, be paid in, or transferred into, the currency of a member country other than that in which the staff member is serving, within limits and conditions laid down in the Staff Rules.
- 20.5** The salary scales applicable to the Local Staff category (G grade) shall be proposed by the Director General by reference to those applicable to the B category of the Co-ordinated Organisations, and under the conditions laid down in the Staff Rules.

Last update: December 2025 (cf. ESA/ADMIN/REG(2003)1, add. 126)

Rule 20.1/1 Emoluments

For the purpose of the present Rules and unless otherwise specified, emoluments shall embody:

- the basic salary specified in Rule 20.2/1 including the cost-of-living allowance, after deduction of the internal tax;
- the allowances specified in Regulation 21, except the installation allowance;
- the Agency's contribution of 14% for staff members who continue to contribute to the Provident Fund under the Transitional Arrangements in the Pension Scheme.

Rule 20.1/2 Entitlement to emoluments

- (i) A staff member shall be entitled to the emoluments appropriate to his grade, step, and increment by virtue of his appointment under the conditions specified in the Staff Regulations and Rules.
- (ii) A staff member shall not be entitled to waive his right to remuneration.
- (iii) The Agency shall not be under any responsibility and shall not take any action in respect of any assignment of his emoluments by a staff member for the benefit of a third party.
- (iv) In the event of notification of attachment on the emoluments of a staff member, the Director General shall take such measures as he deems compatible with the Agency's Privileges and Immunities.

Last update : May 2021 (cf ESA/ADMIN/REG(2003)1, add.92)

Rule 20.1/3 Recovery of undue payments

A staff member shall be bound to reimburse any undue payment received by him. The Head of Personnel, where appropriate, may allow time for repayment.

A claim for reimbursement made more than three months after the date of the payment may be opposed by the payee if he has acted in good faith.

Rule 20.1/4 Date of payment –Advances

- (i) Emoluments shall be paid monthly and credited to staff members not later than the 15th of the month in respect of which they are due.
- (ii) The Head of Personnel may, in exceptional cases, grant advances on monthly emoluments of not more than one half of the emoluments for the current month.

Rule 20.1/5 Broken months

- (i) Subject to Rule 22.1/17 (iv) concerning the death of a staff member, a staff member who has worked fewer than 16 days during a calendar month shall receive one thirtieth of his monthly salary for each day worked; a staff member who has worked 16 days or more during a calendar month shall receive his monthly salary less one thirtieth thereof for each day not worked.
- (ii) Legal holidays, Saturdays and Sundays shall be counted as working days:
 - if they are included in a period of appointment;
 - if they immediately precede or follow such a period, provided they belong to the first or final month of the period of appointment; however, these holidays, when they precede the effective date of appointment, are only paid if they are the first days of the month in question.
- (iii) The remuneration payable during paid leave includes the Saturday and Sunday immediately following the period of leave, except where these non-working days belong to the following month.

Rule 20.2/1 Salary scales ¹

- (i) The salary scales shall be those obtained for the staff of the Co-ordinated Organisations as a whole. In particular, the monthly basic salary defined by each step of these scales shall correspond at the Agency to the one determined by the first increment in the corresponding step (see Annex II). Together with other emoluments, the salary scales shall be approved by the Council for each country to which the Agency posts staff.
- (ii) Salary figures shall be "net", i.e.:
 - after deduction of internal tax under the Rule instituted by the Council pursuant to Article XVIII of Annex I of the Convention establishing the Agency²;
 - before deduction of contributions to the Social Security Scheme and the Pension Scheme.

Last update: December 2025 (cf. ESA/ADMIN/REG(2003)1, add.126)

Rule 20.3/1 Modifications to emoluments and allowances

Any Council decision which modifies salaries or other emoluments shall be binding on all staff members, who shall have no claims against the Agency for any damage suffered by reason of such modifications.

¹ See Annex IV

² See Annex V

Rule 20.4/1**Transfer – Payment away from the duty country**

- (i) The payment of emoluments and benefits specified by the Staff Rules shall in principle be made in the currency of and at the duty country.
- (ii) At the request of serving staff members, the payment of the staff members' emoluments may be made by the Agency in another country than the duty country and in the currency of that other country, provided that the country chosen by the staff members is one of the Agency's Member States.
- (iii) Should staff members opt for a payment away from the duty country as referred to in the preceding paragraph, they will determine whether this payment shall amount to a portion or to the total of their emoluments, under the conditions prescribed by the Director General.
- (iv) Sums due to staff members at the time of their cessation of employment shall, at their request or the request of their duly qualified representatives, be paid in one of countries specified in paragraphs (i) and (ii) above.
- (v) Payments specified in the above paragraphs, made outside the duty country shall, where applicable, be calculated at the monthly conversion rate laid down under the Financial Rules and applicable on the date of calculation between the currency of the duty country and the currency of the country in which the payment is made.

Reimbursement of travel and medical expenses incurred outside the duty country shall be paid either in the duty country as specified in paragraph (i), or in the country chosen by staff members in line with paragraph (ii) above. If a conversion needs to be applied, the reimbursement will be calculated at the monthly conversion rate applicable on the date in which the payment is made between the currency of the aforementioned country and the currency of the country in which the payment is made.

Payment of subsistence allowance in respect of travel outside the duty country shall be calculated at the monthly conversion rate applicable on the date in which the travel begins between the currency of the duty country and the currency in which the daily rates are expressed.

The costs associated with such payments shall be borne by the Agency.

Last update : December 2022 (cf ESA/ADMIN/REG(2003)1, add.106)

Rule 20.5/1**Salary scales for the Local Staff category**

- (i) The salary scales for the Local Staff category (Grade G) shall be equivalent to a percentage of those applicable to the B-grade staff of the Co-ordinated Organisations (cf. Staff Rule 20.2/1), according to the conditions foreseen in Annex II bis and Annex II ter.
- (ii) In addition to the review foreseen for salary scales in Staff Regulation 20.3, the level of remuneration foreseen in the above section shall be revised periodically in accordance with the evolution of remuneration on the local market and with a view to maintain a competitive level, under the conditions prescribed by the Director General.

Last update: December 2025 (cf. ESA/ADMIN/REG(2003)1, add.126)

LOANS – FINANCIAL ASSISTANCE

Rule 20/1 Loans – General statement – Interest

Staff members having completed their probationary period may, provided the ceiling for the total amount of outstanding loans as defined by the Director General has not been reached, and on furnishing satisfactory security, be granted interest-bearing loans. The applicable interest rates shall be fixed by the Finance Department annually in accordance with standard market conditions. The Administrative and Finance Committee shall be informed about any change in the interest rates.

Last update: March 2021 (cf ESA/ADMIN/REG(2003)1, add. 99)

Rule 20/2 Short-term loans

- (i) A staff member may be granted a short-term loan on good grounds, namely when his emoluments do not allow him to meet necessary expenditure corresponding to exceptional needs.
- (ii) The amount granted by way of a short-term loan shall be limited to the equivalent of three months' emoluments.
- (iii) The loan shall be repaid within a period not exceeding ten months; in the case of B, C and G grade staff, this period may be extended to fifteen months, but it may not under any circumstances extend beyond the date of expiry of the staff member's contract.

Last update: December 2025 (cf. ESA/ADMIN/REG(2003)1, add.126)

Rule 20/3 Long-term loans

- (i) A staff member holding a permanent post may be granted a long-term loan if he needs financial assistance to purchase private accommodation at his duty station for his own use as a main residence corresponding to his needs and those of his family, or in order to carry out major refurbishments to such accommodation.
- (ii) Any application for a long-term loan shall be accompanied by all the supporting documents usually required in connection with housing loans (evidence of the operation, and method of financing).
- (iii) The amount granted by way of a long-term loan shall not exceed two-and-a-half times the last monthly salary received by the staff member prior to the granting of the loan, multiplied by the number of years he has served with the Agency.

Furthermore, the total amount of such loan shall in no case exceed a sum such that the total amount of repayments, including capital and interest, can be effected over a period of maximum five years but not exceeding the remainder of his contract without the monthly instalments exceeding a ceiling of 25% of the emoluments payable to the staff member at the time of the loan.

- (iv) Long-term loans must be fully paid back within the agreed period, and in any event before the staff member reaches the end of contract.

Last update: March 2021 (cf ESA/ADMIN/REG(2003)1, add. 99)

Rule 20/4 Non-cumulation of loans

- (i) Long-term loans shall be granted within the above-mentioned limits only after deduction of the outstanding balance of any short-term loan which may have been granted previously.
- (ii) Furthermore, the total amount of long-term loans and withdrawals, if any, from Provident Fund holdings, shall in no event exceed the maximum amount specified in Rule 20/3 (iii).

Rule 20/5 Joint Advisory Board

- (i) A Joint Board comprising three members shall be appointed to give its advice prior to the granting of short- or long-term loans. This Board will consist of:
 - the Head of the Finance Department or his representative;
 - a representative of the Local Staff Committee;
 - the Head of the Personnel Department or his representative, who shall be Chair.
- (ii) The Board shall reach its decision by a majority vote, with all three members present.
- (iii) The role of the Board shall be, if necessary, to draw up an order of priority for the granting of loans in the light of the funds available and the special supporting reasons supplied by staff applicants.

Last update: December 2020 (cf ESA/ADMIN/REG(2003)1, add. 98)

Rule 20/6 Granting of loans

The Director General may grant loans at his discretion within the limits of the appropriations provided for this purpose as regards both Headquarters and each Establishment.

Rule 20/7 Repayment of loans

- (i) Loans shall be repaid by deductions from monthly emoluments. The borrower may, if he wishes, repay the loan at an earlier date than that initially determined.
- (ii) When a loan is granted, the staff member concerned must agree that, should his employment cease by reason of disability or death, or for any other reason, the outstanding balance due on his loan shall be deducted from the emoluments, benefits and lump sums to which he or his legitimate claimants would be entitled.

Rule 20/8 Financial assistance

Special financial assistance in the form of a grant or loan without interest may, subject to conditions laid down by the Director General, be given to a staff member in financial distress arising out of an accident, serious or prolonged illness, or family difficulties. Such loans shall be repayable within a period not exceeding ten months and shall not exceed an amount corresponding to the monthly salary defined by the first increment in step of grade C1/1 ("C1/1, increment 1").

Last update : May 2021 (cf ESA/ADMIN/REG(2003)1, add.92)

Rule 20/9 Entertainment expenses

Staff members designated by the Director General shall be entitled to the repayment of entertainment expenses actually incurred either at their duty station or on mission.

Repayment of these expenses shall be governed by the Financial Instructions³.

³ ESA/ADMIN(78)22, rev.1

REGULATION 21

ALLOWANCES AND INDEMNITIES

Staff members of grades A, B, C and L shall be entitled to the following allowances as specified in the Staff Rules:

21.1 Family allowances¹;

21.2 Expatriation allowance;

21.3 Installation allowance;

21.4 Rent allowance;

21.5 Acting allowance;

21.6 Language allowance;

21.7 Indemnity for loss of job;

21.8 Supplementary allowances approved by the Council for specific posts and functions.

21.9 Staff members of grade G shall be entitled to the above-mentioned allowances as specified in the Staff Rules, with the exception of the expatriation allowance (Staff Regulation 21.2) and any rights associated thereto in the Staff Regulations, Rules and Instructions to which they are not eligible.

Last update: December 2025 (cf. ESA/ADMIN/REG(2003)1, add.126)

¹ Including Education allowance

ALLOWANCES – GENERAL PROVISIONS ²

Rule 21/1 Non-cumulation – Disciplinary action

- (i) The allowances provided for under Regulation 21, and equivalent payments for the same or similar purpose to which a staff member, his spouse, his dependant or his dependent child's other parent, are entitled to from the same or another source, shall not be cumulative.
- (ii) A staff member who is in receipt of, or entitled to, an allowance under Regulation 21, shall inform the Head of Personnel of any payment for the same or a similar purpose that is being received from other sources by him, his spouse, his dependant or his dependent child's other parent and any change of circumstances affecting eligibility. The amounts of any such payments shall be deducted from the allowances granted to him by the Agency.
- (iii) Where a staff member and his spouse employed by the Agency or by two different Co-ordinated Organisations are both entitled to a family allowance, the installation allowance or the rent allowance for the same reason, only one allowance shall be paid to the person in receipt of the higher basic salary, unless otherwise specified under the following provisions.
- (iv) Any staff member who knowingly misinforms, or fails to inform, the Head of Personnel of a relevant fact and in consequence receives an allowance to which he is not entitled, infringes Regulation 25.1; he will be required to refund any sums so received and will also be liable to disciplinary action.

Rule 21/2 Effective period of entitlement

The date of granting or withdrawing an allowance will be that on which the staff member concerned became entitled, or ceased to be entitled, to the allowance concerned.

However, applications for allowances that are submitted more than three months after the event giving rise to them will not be accepted on a retroactive basis except as may be duly and expressly decided by the Head of Personnel administering the staff member concerned.

Rule 21/3 Broken months –Allowances

In the case of family allowances - other than education allowance - expatriation allowance, rent allowance, acting allowance and the supplementary allowances provided for under Regulation 21.8, the allowance in a broken month will be payable at the rate of one-thirtieth of the monthly figure for each working day reckoned, in accordance with the criteria laid down in respect of salaries in Rule 20.1/5.

² Major update of Rules on Regulation 21: October 2016 (cf ESA/ADMIN/REG(2003)1, add. 78)

Rule 21/4**National legislation**

Wherever implementation of the Staff Rules involves reference to national legislation, the applicable law will be that which governs the staff member's personal status, in principle the law of the country of which he is a national.

In the case of dual or multiple nationality, the staff member will be subject to the law of the country in which he is serving if he is a national of that country or, if he is not a national of that country, the law of the country in which he takes home leave.

Rule 21/5**Registered partnership**

A registered partnership is a relationship of mutual dependence between two partners that has been recognised by law in one of the ESA Member States.

Staff members who have entered into such a partnership shall be considered as married staff members and their partners as spouses, provided that all the following conditions are met:

- (a) the partner must be at least 18 years of age
- (b) the partnership can only be with one person at a time
- (c) no blood relationship between the partners exists that would preclude their marriage under the relevant national law
- (d) neither of the partners is married or has already entered into another registered partnership. For any such relationship, proof must be produced that it has been legally terminated.

I. FAMILY ALLOWANCES

Rule 21.1/1 Definition

Family allowances shall comprise:

- A. For staff taking up their duties before 1 January 2017:
 - Household allowance,
 - Dependant allowance,
 - Handicapped child allowance,
- B. For staff taking up their duties on or after 1 January 2017:
 - Basic family allowance,
 - Dependent child supplement,
 - Supplements for disabled or severely disabled child,
 - Supplement for disabled and dependent parent, and
- C. For all staff:
 - Education allowance.

**A. PROVISIONS APPLYING TO STAFF MEMBERS TAKING UP DUTY
BEFORE 1 JANUARY 2017**

HOUSEHOLD ALLOWANCE

Rule 21.1/2 Conditions – Amount

- (i) The household allowance shall be 6% of the basic salary provided that it shall in no case be less than 6% of the basic salary defined by the first increment in step of a staff member graded B3/1 (“B3,1, increment 1”).
- (ii) The following shall be entitled to the household allowance:
 - (a) a married staff member;
 - (b) an unmarried, widowed, divorced, or legally separated staff member with one or more dependent children within the meaning of the Staff Rules;
 - (c) a staff member who does not satisfy the conditions under (a) and (b) above but who has one or more other dependants within the meaning of the Staff Rules.

Last update : May 2021 (cf ESA/ADMIN/REG(2003)1, add.92)

Rule 21.1/3 Professional income of the spouse

In the case of a married staff member who has no dependent child or other dependant but whose husband or wife is gainfully employed, the allowance payable, within the overall limit of 6% of the salary or of the minimum laid down in Rule 21.1/2 (i), shall be the difference between the basic salary for grade B3/1, increment 1 plus the allowance to which the staff member would be entitled in theory, and the earned income of the husband or wife.

If this latter amount is equal to or greater than the former, the staff member shall not be entitled to the allowance.

Last update : May 2021 (cf ESA/ADMIN/REG(2003)1, add.92)

DEPENDANT ALLOWANCE

Rule 21.1/4 Entitlement –Amounts

A staff member shall be entitled to an allowance, the amount of which is fixed by the Council for each duty country, in respect of each child or other person (except for his spouse) who depends on him or his household for his main and continuing support.

Rule 21.1/5 Entitlement - Transitional measures

A staff member serving on 31 December 2016 shall be entitled to the dependent child allowance for children born up to and including 31 December 2031. The applicable age limit for children born thereafter shall be that set in Rule 21.1/14.

Rule 21.1/6 Definition of a dependent child

Rule 21.1/4 shall apply to the following:

- (i) Any child, not gainfully employed, of the staff member or of his spouse, who is:
 - (a) under the age of eighteen, or
 - (b) aged between eighteen and twenty-six and receiving school, university or vocational education,
 - (c) under the age of twenty-six and performing compulsory national service, and whose monthly remuneration does not exceed 25% of the salary of a staff member graded C1/1, increment 1,
 - (d) handicapped within the meaning of Rules 21.1/7 to 9.
- (ii) Any other child who has been given a home by the staff member and to whom the Director General has granted dependant status.

Last update : May 2021 (cf ESA/ADMIN/REG(2003)1, add.92)

HANDICAPPED CHILD ALLOWANCE AND REIMBURSEMENT OF EDUCATIONAL OR TRAINING EXPENSES RELATED TO THE HANDICAP

Rule 21.1/7 Conditions – Amount – Duplication

(i) An allowance for a handicapped child and reimbursement of expenses under these Rules shall be paid to any staff member with a dependent child who is handicapped within the meaning of these Rules, whatever the age of the child.

(ii) The amount of the allowance shall be equal to the amount of the allowance for a dependent child and shall be additional to it.

(iii) A claim for reimbursement under these Rules shall be made solely in relation to expenses incurred in order to provide the handicapped child with education or training specially adapted to his needs and designed to obtain the highest possible level of functional capability and which are not of the same kind as those taken into account for the purposes of the education allowance.

(iv) The Director General shall assess the reasonableness of the expenses for which reimbursement is claimed.

(v) Reimbursement of education or training expenses described in paragraph (iii) above shall be at the rate of 90 per cent.

(vi) The amount of expenses incurred as defined in paragraph (iii) above, shall be calculated after deduction of any payment received from any other source for the same purpose.

(vii) Payment of the handicapped child allowance shall confer entitlement to the household allowance.

Rule 21.1/8 Definition of a handicapped child

The criterion for entitlement to the benefits specified in these Rules shall be the serious and continuing impairment of the physical or mental activities.

Children may be deemed to be handicapped where they suffer from:

- serious or chronic affection of the central or peripheral nervous system, however caused, such as encephalopathy, myelopathy or peripheral paralysis;
- serious affection of the locomotor system;
- serious affection of one or more sensory systems;
- chronic and disabling mental illness.

The above list is not exhaustive but indicative only: it does not constitute the definitive basis for assessing the degree of handicap.

Rule 21.1/9 Decision to pay the allowance

The decision to pay the allowance shall be made by the Director General after consulting a Board set up at Headquarters for the purpose, consisting of an independent medical practitioner designated by the Agency, a representative of the Head of the Personnel Department and the welfare officer.

B. PROVISIONS APPLYING TO STAFF MEMBERS TAKING UP DUTY ON OR AFTER 1 JANUARY 2017 ³

BASIC FAMILY ALLOWANCE

Rule 21.1/10 Eligibility criteria

- (i) The basic family allowance (BFA) shall be granted to staff members whose spouse has an overall income (gross income less compulsory social and/or pension contributions) lower than 50% of the basic monthly salary of the scale of the duty station of a C1/1, increment 1 grade staff member, plus the basic amount of the BFA.
- (ii) Eligibility shall commence when the staff member and his/her spouse have established a family unit at the duty station. It shall end when the household is dissolved or when the spouse ceases to actually and habitually live with the staff member at the duty station.
- (iii) Eligibility shall recommence for the remaining entitlement period, if the criteria were not fulfilled for a temporary period. Notwithstanding Rule 21.1/13 (ii) the maximum periods of entitlement defined in Rule 21.1/13 (iii, iv, v) shall not be extended.

Last update : May 2021 (cf ESA/ADMIN/REG(2003)1, add.92)

Rule 21.1/11 Amount of the allowance

Staff members eligible for the BFA shall be entitled to a basic monthly amount which is fixed by the Council for each duty country. Staff members eligible for the expatriation allowance irrespective of whether they take up duty from within or from outside the same geographical zone of the duty station as defined in Rule 21.1/12, shall be entitled to an additional monthly amount equal to the dependent child supplement. The amounts will be adjusted in accordance with Annex III, Chapter II.

Rule 21.1/12 Geographical zones

The geographical zones shall be defined as follows: Europe and Middle East, Africa, Americas (North, Central and South America), Asia and Pacific (Far East and Pacific countries).

Rule 21.1/13 Payment of the allowance

- (i) In the case of a staff member whose spouse has an overall income, equal to or higher than 50% of the basic monthly salary of the scale of the duty station of a C1/1, increment 1 grade staff member, the amount of the allowance payable shall be reduced. The allowance shall then be equal to the difference between 50% of the basic

³ On its 286th meeting held on 30 September 2016, the AFC decided that staff members recruited from another Co-ordinated Organisation may be applied the Agency's family allowance regime corresponding to the regime which was applicable to them in that Organisation.

monthly salary of the scale of the duty station of a C1/1, increment 1 grade staff member, plus the basic amount of the BFA as defined in Rule 21.1/11 and the income of the spouse as defined in Rule 21.1/10. If the spouse's income is or becomes equal to or higher than 50% of the basic monthly salary of the scale of the duty station of a C1/1, increment 1 grade staff member plus the basic amount of the BFA, no allowance shall be paid.

- (ii) When a staff member is reassigned to a different duty country within the Agency at its initiative, the Director General may, in circumstances such as an exceptional organisational restructuring or to support the accomplishment of missions critical for the Agency and in compliance with Rule 21.1/10, reset the period of payment for the staff member.

Staff members not eligible for the expatriation allowance

- (iii) In compliance with Rule 21.1/10, for staff members who are not eligible for the expatriation allowance, the basic amount shall be paid monthly, for a period of up to five consecutive years following the taking-up of duty of the staff member or the time of the establishment of his/her family unit.

Staff members eligible for the expatriation allowance and who take up duty from within the same geographical zone of the duty station

- (iv) In compliance with Rule 21.1/10, for staff members who are eligible for the expatriation allowance and who take up duty from within the same geographical zone of the duty station, the basic amount and the additional amount shall be paid monthly and reduced after five years by one fifth per year to reach zero the tenth year of a consecutive period following the staff member's taking-up of duty or the time when his/her family unit is established at the duty station.

Staff members eligible for the expatriation allowance and who take up duty from outside the geographical zone of the duty station

- (v) In compliance with Rule 21.1/10, for staff members who are eligible for the expatriation allowance and who take up duty from outside the geographical zone of the duty station, the basic amount and the additional amount shall be paid monthly for the duration of the staff member's employment. However, if the staff member has the nationality of one of the countries of the geographical zone of the duty station, the payment of the basic amount and its additional amount shall be made in accordance with paragraph (iv) above.
- (vi) The reduction of the BFA due to the period of payment in paragraphs (iii) and (iv) shall not disqualify the staff member from eligibility for other allowances and benefits if all other eligibility criteria for the BFA are fulfilled.

Last update : May 2021 (cf ESA/ADMIN/REG(2003)1, add.92)

DEPENDENT CHILD SUPPLEMENT

Rule 21.1/14 Eligibility criteria

- (i) The dependent child supplement shall be granted to staff members for each dependent child under 18 years of age.
- (ii) The supplement shall also be granted for each dependent child aged 18 to 22 years receiving full-time education. Payment of the supplement shall be maintained until the end of the academic year, examination included, during which the child reaches the age of 22 years.
- (iii) If the dependent child has to perform compulsory military or civil service under the legislation of his country of nationality, eligibility for the supplement shall be extended beyond the child's 22nd birthday, for a period equal to the duration of that compulsory service. Payment of the supplement shall be suspended for the duration of that service.
- (iv) The supplement shall continue to be granted without any age limit if the dependent child fulfils the criteria for eligibility for the supplements for a disabled or severely disabled child as defined in Rule 21.1/17 below.

Rule 21.1/15 Amount of the supplement

- (i) The dependent child supplement shall be a monthly basic amount which is fixed by the Council for each duty country.
- (ii) Only one dependent child supplement shall be granted for each child recognised as a dependant under the present rules.
- (iii) One additional dependent child supplement shall be granted to a single-parent family independent of the number of dependent children.

Rule 21.1/16 Shared or alternate custody of a child of staff members employed by the Agency or by two different Co-ordinated Organisations

In case of shared or alternate custody, the payment of the dependent child supplement shall be shared equally between the two staff members employed by the Agency or by different Co-ordinated Organisations who are the child's parents. Alternatively, the parents may decide by mutual agreement which of them will receive the supplement.

SUPPLEMENT FOR DISABLED OR SEVERELY DISABLED CHILDREN

Rule 21.1/17 Eligibility criteria

Any staff member with a dependent child medically certified as having a disability and necessitating special care, supervision, special education or training not provided free of charge may claim, in addition to the dependent child supplement, a supplement for a disabled or severely disabled child and reimbursement of education and/or training costs related to the disability.

- (a) Any staff member having a child with a medically certified disability requiring permanent care from a third person – or whose spouse has given up work to provide the requisite care for the disabled child or has never worked in order to look after that child – shall be eligible for a supplement for a severely disabled child.
- (b) In exceptional circumstances justifying the request by a staff member to benefit from the supplement for a disabled or severely disabled child, the Director General may decide to grant the supplement without all conditions being met.

Rule 21.1/18 Entitlement

- (i) Entitlement to the supplements for a disabled or severely disabled child and coverage of costs shall be granted by decision of the Director General, after consulting a Board consisting of the Agency's medical doctor or an independent medical practitioner designated by the Agency, a representative of the Head of Personnel and the Welfare Officer.
- (ii) That decision shall determine the duration of the entitlement and any revision if necessary.

Rule 21.1/19 Assessment of the disability

- (i) Serious and chronic impairment of physical and/or mental faculties shall be the criterion for entitlement to benefits under these Rules.
- (ii) Children may be considered disabled by the Board referred to in Rule 21.1/18 if they suffer from:
 - Serious or chronic affection of the central or peripheral nervous system, however caused: encephalopathy, myelopathy or peripheral paralysis;
 - Serious affection of the locomotors system;
 - Serious affection of one or more sensory systems;
 - Chronic and disabling mental illness.
- (iii) The above list is not exhaustive. It is provided as an indication and shall not constitute the definitive basis for assessing the degree of any disability.

Rule 21.1/20 Education and training costs

Under these Rules, only those expenses incurred with a view to providing the disabled or severely disabled child with access to an education or training programme designed to meet his needs in order to obtain the best possible functional capacity, and which are not otherwise covered by the provisions governing the Education Allowance, shall be eligible for reimbursement.

Rule 21.1/21 Amounts granted

- (i) The supplement for a disabled child shall be a monthly basic amount equal to the amount of the dependent child supplement.
- (ii) The supplement for a severely disabled child shall be a monthly basic amount equal to double the disabled child supplement.
- (iii) The reimbursement of education or training expenses shall be 90% of the expenses defined in Rule 21.1/20.

Rule 21.1/22 Non-double payment

The amount of expenses covered with respect to reimbursing education or training costs, as defined in Rule 21.1/20, is the amount remaining after deducting any payments from any other sources for the same purpose.

Rule 21.1/23 Shared or alternate custody of a child of staff members employed by the Agency or by two different Co-ordinated Organisations

In case of shared or alternate custody, the payment of the supplements for a disabled or severely disabled child shall be shared equally between the two staff members employed by the Agency or by different Co-ordinated Organisations who are the child's parents. Alternatively, the parents may decide by mutual agreement which of them will receive the supplement.

SUPPLEMENT FOR DISABLED AND DEPENDENT PARENT

Rule 21.1/24 Eligibility criteria

- (i) Any staff member who can prove that he provides main and continuing support to his disabled and dependent father and/or mother shall be eligible for only one supplement for disabled and dependent parent.
- (ii) A staff member's father or mother, aged over 60, who has an overall income (gross income less compulsory social and/or pension contributions) lower than 50% of the basic monthly salary of the scale of the parent's country of residence of a C1/1, increment 1 grade staff member and is medically certified with a disability, shall be considered to be a disabled and dependent parent.

Last update : May 2021 (cf ESA/ADMIN/REG(2003)1, add.92)

Rule 21.1/25 Entitlement

- (i) Entitlement to the supplement for a disabled and dependent parent shall be granted by decision of the Director General, after assessment of the nature and severity of the disability by the Board referred to in Rule 21.1/18 and recommendation by the Joint Committee referred to in Instruction 21.1/1/4.
- (ii) That decision shall determine the duration of entitlement and any revision if necessary.

Rule 21.1/26 Amount of the supplement

The supplement for disabled and dependent parent shall be a monthly basic amount equal to the amount of the dependent child supplement.

C. PROVISIONS APPLYING TO ALL STAFF MEMBERS

EDUCATION ALLOWANCE ⁴

Rule 21.1/27 Conditions of award

- (i) Staff members entitled to the expatriation allowance – with the exception of those who are nationals of the country in which they are serving – with dependent children within the meaning of the Staff Rules, and regularly attending on a full-term basis an educational establishment, may request the reimbursement of educational costs under the following conditions:
 - (a) in respect of children in compulsory education up to completion of secondary level of education;
 - (b) in respect of children at post-secondary level of education for studies carried out in an ESA Member or Associated State, a country in which ESA staff are posted, or the country of which the staff member or the child's other parent is a national. If duly justified by the staff member, for reasons of continuity in following an educational cycle or if educational costs are lower elsewhere, an exception to this rule can be granted by the Director General.
- (ii) By way of exception, staff members not qualifying under the terms of paragraph (i) above, may be entitled to the education allowance:
 - (a) in the case of reassignment, or recruitment from another international organisation where the staff member was entitled to the education allowance, and a dependent child must, for imperative educational reasons, continue an educational cycle commenced prior to the date of reassignment or recruitment other than for post-secondary level education and which is not part of the national educational system of the host country. Entitlement to the education allowance, resulting from the application of this paragraph, may not exceed the duration of the educational cycle;
 - (b) in the case of staff members who are not nationals of the duty country, and who are not entitled to the expatriation allowance, provided they were entitled to an education allowance or reimbursement of educational costs before their recruitment by the Agency.
 - (c) in the case where no school or university corresponding to the child's educational cycle is available within 80 km distance from the staff member's duty station or actual and habitual residence.
- (iii) Entitlement to the education allowance shall start on the first day of the month during which the child begins to attend school and not earlier than the age corresponding to the compulsory age of education of the national system followed by the school. It shall finish when the child ceases full-time studies, or not later than the end of the month in which the dependent child allowance/supplement will no longer be paid.
- (iv) If the child has to perform compulsory military or civil service under the legislation of his or her country of nationality, eligibility for the education allowance shall be extended

⁴ Approved by AFC on 8 June 2021

beyond the limit laid down in Rule 21.1/27 (iii), for a period not to exceed the duration of that compulsory military or civil service. Payment of the allowance shall be suspended for the duration of the military or civil service.

Rule 21.1/28 Expenditure for educational purposes

The following items of expenditure shall be taken into account for the reimbursement of educational costs:

- (a) school or university registration fees.
- (b) general fees for schooling and education charged by the educational establishment.

Expenses on special courses and activities (including equipment) that are not normally part of the child's basic course of studies shall not be taken into account;

- (c) examination fees;
- (d) tuition fees for private lessons on condition that:
 - tuition is given in subjects which are not contained in the child's syllabus but are part of the compulsory national education programme of the country of which the staff member is a national, or
 - tuition is required to enable the child to adjust to the educational curriculum of the institution attended, or to enable the child to become familiar with the language spoken in the area in which the child lives if the education is given in another language.

In all these cases, tuition fees may be taken into account for an adjustment period of not more than two years.

- (e) daily expenses on travel between the educational institution and home by public transport or school bus. Reduced fares shall be used where possible. Where a private car is used or when no public transport or school bus is available, a lump sum equal to 10% of the annual dependent child allowance/supplement shall be taken into account.
- (f) where the child does not live with, or in the local travel area of, the staff member or the other parent, expenditure on board and lodging, taken into account as a lump sum equal to 2 times the dependent child allowance/supplement of the country in which the child studies;

For the expenses relating to lodging, half board or board and lodging, the corresponding amounts are not payable if the child lives at the staff member's or the other parent's home during the school or academic year. This should also be the case if the accommodation of the child is located in the local travel area of the staff member or of the other parent.

- (g) purchase of school books as required by the curriculum, and compulsory school uniforms or other ancillary costs, taken into account as a lump sum equal to 20% of the annual dependent child allowance/supplement.

Rule 21.1/29**Amount of reimbursement**

- (i) Reimbursement of educational costs mentioned in Rule 21.1/28 shall be made according to the rates, ceilings and conditions below, each case being treated individually:
 - (a) Standard rate: 70% of the educational costs up to a ceiling of 2.5 times the annual amount of the dependent child allowance/supplement;
 - (b) Country of nationality rate (if different from country of duty): 70% of educational costs up to a ceiling of 3 times the annual amount of the dependent child allowance/supplement if the child is educated in a country of which the staff member or the other parent is a national;
 - (c) Increased Rate: 70% of educational costs up to a ceiling of 4 times the annual amount of the dependent child allowance/supplement provided that:
 - (i) educational expenditure as defined in Rule 21.1/28 a), b), c) and d) is excessively high;
 - (ii) such costs are for education up to completion of the secondary cycle; and
 - (iii) are incurred for imperative education reasons.
 - (d) Exceptional rate: up to 90% of total educational costs up to a ceiling of 6 times the annual amount of the dependent child allowance/supplement provided that:
 - (i) educational costs as defined in Rule 21.1/28 a), b), c) and d) are exceptional, unavoidable and excessively high, according to the judgement of the Director General who will take into account the financial hardship and the family constraints due to the staff posting;
 - (ii) such costs refer either to education up to completion of the secondary cycle or are costs as defined in Rule 21.1/28 a), b), c) and d) for the post-secondary cycle; and,
 - (iii) costs are incurred for imperative educational reasons.
- (ii) The above mentioned ceilings shall be defined with reference to the annual amount of the dependent child supplement in force for the place of education.
- (iii) No reimbursement of educational costs will be made unless admissible costs listed in Rule 21.1/28 are higher than an amount equivalent to the annual amount of the supplement for dependent children included in the expatriation allowance⁵. In those cases where reimbursement is made, the payment of the annual amount of the supplement for dependent children included in the expatriation allowance shall be stopped.
- (iv) The amounts of any allowance received from other sources (scholarships, study grants, etc.) as well as other reimbursements of school costs from other sources for the education of the dependent child, shall be deducted from the expenditure incurred for education mentioned in Rule 21.1/28.

⁵ Supplement under Staff Rules 21.2/3 (f) and 21.2/9 (ii) respectively

Rule 21.1/30 Payment of the reimbursement

- (i) At the beginning of each school year, a staff member requesting reimbursement of educational costs shall inform the administration as fully as possible of the expenditures which will be incurred for the education of each child. On the basis of that information the Human Resources Department shall provisionally calculate the education allowance as described in Rule 21.1/29 on an annual basis and make it payable at 1/12th of the total amount from the beginning of the school year.
- (ii) At the end of the school year, the staff member shall provide evidence of reimbursable expenditure during the school year in order to allow the final calculation of the reimbursement, according to provisions set out in Rule 21.1/27 (iv). Positive or negative differences between the final amount and the total sum of the monthly payments shall be settled as soon as possible.
- (iii) The staff member shall inform, without delay the Human Resources Department of any changes of circumstances which affect the entitlement to or the level of the reimbursement of educational costs and of any allowance (scholarships, study grants, etc.) and other reimbursements of educational costs, received from another source.
- (iv) Unless otherwise stated, production of bills, paid invoices or receipts will be required for the reimbursement of educational costs mentioned in Rule 21.1/28, except if such items are included as lump sums.
- (v) Where the appointment of a staff member begins or finishes during the course of the school or academic year or the dependant status of a child change during such period, the education allowance shall be payable pro rata temporis, on the basis of 1/12th for each full month of education as from the date on which the staff member took up duty or up to the termination of appointment or entitlement.

Rule 21.1/31 Schoolchildren's annual travel

Staff members entitled to the education allowance are entitled to the reimbursement of the cost of two round travels between the place of education and the duty station per school/academic year and for each child giving right to education allowance. The reimbursement of each round travel shall not exceed the cost covered in cases of home leave travel pursuant to Rule 22.3/2(iv).

Rule 21.1/32 Three-year review

- (i) An assessment of school costs shall take place every three years. It shall be based on the evolution of tuition fees of a representative sample of fee-paying schools to be established in each country of education prior to the entry into force of these regulations.
- (ii) In case of a gap of at least 9 per cent between the evolution of the ceilings foreseen under Rule 21.1/29 and the evolution of the tuition fees as recorded in more than one third of the price samples of the schools in a given country, an adjustment by a multiplying factor at the level of the observed total evolution in tuition fees shall apply for the calculation of the ceiling in that country. In such a case, the follow-up of the tuition fees shall be made again as from the date when data were collected by the

ISRP for the three-year review. If the difference is below 9 per cent at a given three-year review, the follow-up of the tuition fees shall be pursued until the next three-year review and shall take into account the periods that have not resulted in an adjustment.

Rule 21.1/33 Entry into force

These Rules concerning the education allowance shall come into force at the beginning of the school year 2021/2022.

II. EXPATRIATION ALLOWANCE

A. PROVISIONS APPLYING TO STAFF MEMBERS APPOINTED BEFORE 1 JANUARY 1996

Rule 21.2/1 Eligibility

- (i) A staff member in Category A, L or B, as well as a graduate trainee or internal research fellow, shall be entitled to an expatriation allowance at the rate specified in Rule 21.2/2 below provided that:
 - he was not a national of the country of his duty station at the time of his appointment by the Agency, or by any other Co-ordinated Organisation immediately prior to his employment by the Agency, and
 - he had not, at the time of his appointment, been continuously resident in that country for three years or more.
- (ii) A staff member in the same categories shall also be entitled to the expatriation allowance if:
 - he was a national of the country of his duty station at the time of the appointment referred to in paragraph (i) above, but
 - had then been continuously resident in one or several other countries for at least ten years.
- (iii) In calculating the periods specified in paragraphs (i) and (ii) above, no account shall be taken of a staff member's previous service in his own country's administration or with another International Organisation.

Last update: July 2025 (cf ESA/ADMIN/REG(2003)1, add.123)

Rule 21.2/2 Calculation of the allowance

- (i) The expatriation allowance shall be:
 - 16% of the salary for staff not entitled to the household allowance;
 - 20% of the salary for staff entitled to the household allowance, or for graduate trainees and internal research fellows who, though not entitled to household allowance, would theoretically meet the conditions for entitlement laid down in Rules 21.1/2 (ii) and 21.1/3.

Where a husband and wife are both staff members of the Agency or of the Agency and another Co-ordinated Organisation, are serving in the same country, and comply with the conditions laid down in Rule 21.2/1, they shall each be entitled to an expatriation allowance, at the rate of 16% of their respective salaries.

- (ii) In the case of B-grade staff, the allowance includes, in addition, a fixed element which is laid down by the Council and varies according to the duty country, the grade and family status. (See Annex IV.)

- (iii) The aggregate of the sums provided in (i) and (ii) above shall not be less than the amount payable as expatriation allowance to a staff member graded B3/1, increment 1.
- (iv) A supplementary expatriation allowance in respect of each dependent child, the amount of which shall be fixed for each duty country (see Annex IV), shall be payable to staff members entitled to an expatriation allowance. However, this supplementary expatriation allowance may not be paid concurrently with the education allowance.

Last update: July 2025 (cf ESA/ADMIN/REG(2003)1, add.123)

**B. PROVISIONS APPLYING TO STAFF MEMBERS APPOINTED BETWEEN
1 JANUARY 1996 AND 31 MARCH 2012**

Rule 21.2/3 Eligibility and rate of the allowance

- (i) Staff members in Category A, L or B, Graduate Trainees and Internal Research Fellows who, at the time of their appointment by the Agency, were not nationals of the host State and had not been continuously resident on that state's territory for at least one year, no account being taken of previous service in their own country's administration or with other international organisations, will be entitled to an expatriation allowance. In the event of a staff member who has been entitled to the expatriation allowance taking up duty in the country of which he is a national, he shall cease to be entitled to the expatriation allowance.
- (ii) The rate of the allowance shall be:
 - (a) During the first ten years of service:
 - 18% of basic salary for staff entitled to the household allowance, or for graduate trainees and internal research fellows who, though not entitled to household allowance, would theoretically meet the conditions for entitlement laid down in Rules 21.1/2 (ii) and 21.1/3.
 - 14% of basic salary for staff not entitled to the household allowance.
 - The allowance shall be calculated on the first increment in the first step in grade of recruitment or promotion irrespective of any increase in the staff member's basic salary by movement up the incremental scale and shall be adjusted in the same proportions and at the same date as basic salary.
 - (b) In years eleven, twelve and thirteen, the allowance at the rate of 18% shall be reduced by one percentage point each year to 15% and the allowance at the rate of 14% shall be reduced by one percentage point each year to 11%. During this period, and thereafter, the allowance shall be adjusted in the same proportions and at the same date as basic salary.
 - (c) In the event of a staff member being appointed by the Agency, without changing country, immediately after having been employed by another international organisation or by the administration or armed forces of the country of which he is a national, the years of service with the previous employer in the host country shall be reckoned as years of service with the Agency for the purposes of paragraphs (a) and (b) above.
 - (d) Where a husband and wife are both non-resident and are both employed in the same country by the Agency or by the Agency and another Co-ordinated Organisation, they shall each be entitled to an expatriation allowance at the rate of 14% whether or not they are entitled to the household allowance or at the rates on the reduction scale which correspond to the number of each spouse's years of service.
 - (e) The amount of the expatriation allowance shall not be less than the amount payable as expatriation allowance to a staff member graded B3/1, increment 1.

- (f) A supplementary expatriation allowance in respect of each dependent child, the amount of which shall be fixed for each duty country (see Annex IV), shall be payable to staff members entitled to an expatriation allowance. However, this supplementary expatriation allowance may not be paid concurrently with the education allowance.

Last update: July 2025 (cf ESA/ADMIN/REG(2003)1, add.123)

C. PROVISIONS APPLYING TO STAFF MEMBERS COMMUTING ACROSS NATIONAL BORDERS

Rule 21.2/4 Staff members commuting across national borders

- (i) When any point on the border of the country of which a staff member is a national is within a radius of 50 km from the duty station, such a staff member shall not be entitled to the expatriation allowance and the related education allowance and home leave unless he supplies proof that he has established his actual and habitual residence in the duty country or, exceptionally and subject to agreement by the Director General, in another country of which he is not a national, taking account of his family circumstances.
- (ii) A compensatory allowance shall be paid to a staff member who is in service at the date of entry into force of paragraph (i) but who loses his entitlement to expatriation allowance under the terms of this paragraph. This compensatory allowance shall be equal to the amount of the expatriation allowance the staff member is receiving on the day before these provisions come into effect. The compensatory allowance shall be payable until the expiry of the staff member's existing contract; the compensatory allowance shall continue to be payable in the case of a staff member serving under a contract of indefinite duration who receives a new contract on promotion to a higher grade. The amount of this allowance will not be adjustable.
- (iii) Under special circumstances and for sound and sufficient reasons, exceptions to the rule in paragraph (i) above may be made by the Director General.

D. PROVISIONS APPLYING TO STAFF MEMBERS APPOINTED AFTER 31 MARCH 2012

Rule 21.2/5 Entitlement

- (i) The expatriation allowance shall be paid to staff in Categories A, L and B, Graduate Trainees and Internal Research Fellows who, at the time of their appointment by the Agency:
 - (a) were not nationals of the host State; and
 - (b) had not been continuously resident for at least one year on that state's territory, no account being taken of previous service in their own country's administration or with other international organisations; and
 - (c) were recruited internationally from outside the Co-ordinated Organisations or from outside of the country of assignment; and
 - (d) were recruited from outside the local commuting area of the duty station.

The "local commuting area" shall be defined as a radius of 100 kilometres from the duty station.

- (ii) In the event of a staff member who has been entitled to the expatriation allowance taking up duty in a duty station where he does not meet these four criteria, he shall cease to be entitled to the expatriation allowance.
- (iii) In the event of a staff member who has not been entitled to the expatriation allowance taking up duty in a duty station where he meets these four criteria, he shall begin to be entitled to the expatriation allowance.
- (iv) In the event of a staff member who has been employed by one Co-ordinated Organisation and entitled to the expatriation allowance taking up duty with another Co-ordinated Organisation in the same country or in the event of a staff member of another international organisation or a member of the administration or armed forces of the country of origin taking up duty with a Co-ordinated Organisation without changing country, the provisions of paragraph (i) c) and d) shall not apply.

Last update: July 2025 (cf ESA/ADMIN/REG(2003)1, add.123)

Rule 21.2/6 Rate of the allowance

- (i) The rate of the allowance during the first five years of service shall be 10% of basic salary. The allowance shall be calculated on the first increment in the first step in the grade of recruitment or promotion irrespective of any increase in the staff member's basic salary by movement up the incremental scale and shall be adjusted in the same proportions and at the same date as basic salary.
- (ii) In years six through ten, the allowance shall be reduced by two percentage points per year to reach zero in year ten. During this period, the allowance shall be adjusted in the same proportions and at the same date as basic salary.

- (iii) In the event of a staff member who has been employed by one Co-ordinated Organisation taking up duty with another Co-ordinated Organisation or in the event of a staff member of another international organisation or a member of the administration or armed forces of the country of origin taking up duty with a Co-ordinated Organisation without changing country, the previous service in the host country will be taken into account in determining the application of paragraphs (i) and (ii) above.
- (iv) In the event of a staff member being reassigned, either within the Agency or between Co-ordinated Organisations, to a new duty country where the staff member meets the eligibility criteria, the rate of the allowance and the time period shall be restored to their initial levels and then reduced, as described in paragraphs (i) and (ii) above.

Last update : May 2021 (cf ESA/ADMIN/REG(2003)1, add.92)

Rule 21.2/7 Couples

Where a husband and wife are both non-resident and are both employed in the same country by the same Co-ordinated Organisation, or by two different Co-ordinated Organisations, they shall each be entitled to an expatriation allowance at the rate of 10% or at the rates on the reduction scale which correspond to the number of each spouse's years of service.

Rule 21.2/8 Verification of eligibility

- (i) When any point on the frontier of the country of which the staff member is a national is within a radius of 100 km from the duty station, such a staff member shall not be entitled to the expatriation allowance and the related education allowance and home leave unless he supplies proof that he has established his actual and habitual residence in the country of service or, exceptionally and subject to agreement by the Director General, in another country of which he is not a national, taking account of his family circumstances.
- (ii) Staff members receiving the expatriation allowance shall notify the Agency of any change in their place of residence.
- (iii) Under special circumstances and for sound and sufficient reasons, exceptions to the rule in paragraph (i) above may be made by the Director General.

Rule 21.2/9 Related allowances

- (i) The reduction to zero of the expatriation allowance shall not disqualify the staff member for entitlement to the education allowance, the expatriated child allowance or home leave.
- (ii) A supplementary expatriation allowance in respect of each dependent child, the amount of which shall be fixed by the Council for each duty country (see Annex IV), shall be payable to staff members entitled to an expatriation allowance. However, this supplementary expatriation allowance may not be granted concurrently with the education allowance.

Last update: December 2011 (cf ESA/ADMIN/REG(2003)1, add. 46)

III. INSTALLATION ALLOWANCE

Rule 21.3/1 Residence requirement

A staff member shall be required to reside at his duty station or within such distance thereof that he can efficiently discharge his duties.

A) Provisions applying until 31 December 2018 to staff members appointed before 1 January 2015

Rule 21.3/2 [deleted]

Last update: December 2024 (cf ESA/ADMIN/REG(2003)1, add. 117)

Rule 21.3/3 [deleted]

Last update: December 2024 (cf ESA/ADMIN/REG(2003)1, add. 117)

B) Provisions applying : a) immediately to staff members appointed after 31 December 2014 b) as of 1 January 2019 to all staff members

Rule 21.3/4 Eligibility

- (i) Eligible staff members whose actual and habitual residence at the time of their appointment by the Agency for an appointment of at least one year, or of their reassignment for at least one year to a different duty station, is more than 100 kilometres away from their assigned duty station and who can prove and confirm by submitting the appropriate documentation that they have in fact moved their residence in order to take up duty, are eligible for the installation allowance.
- (ii) Staff members satisfying the conditions laid down in paragraph (i) above but who are appointed for less than a year and whose appointment or consecutive appointments are extended beyond one year shall also be eligible for the installation allowance.
- (iii) Staff members of grade G are not eligible to the installation allowance upon take-up-duty. They become however eligible to such allowance as staff members not entitled to the expatriation allowance in case of reassignment to a different duty station, pursuant to Staff Rule 21.3/9

Last update: December 2025 (cf. ESA/ADMIN/REG(2003)1, add.126)

Rule 21.3/5 Basic amount of the allowance

- (i) For staff members not entitled to the expatriation allowance, the basic amount shall equal one month's basic salary, up to the ceiling fixed according to the duty country as set out in Table 6.
- (ii) For staff members entitled to the expatriation allowance⁶, the basic amount shall equal one month's basic salary, up to the ceiling fixed according to the duty country as set out in Table 6.

Rule 21.3/6 Supplement for change in geographical zone

- (i) A supplement amounting to 75% of the basic amount shall be granted to staff members entitled to the expatriation allowance who change geographical zone in order to settle their actual and habitual residence in the vicinity of the assigned duty station.
- (ii) The geographical zones shall be defined as follows: Europe and Middle East, Africa, Americas (North, Central and South America), Asia and Pacific (Far East and Pacific countries).

Rule 21.3/7 Supplement for dependants

The spouse of the staff member, or, in the absence of a spouse, the first dependant, shall give right to an increase of the basic amount by 20%. Any other dependant shall give right to an increase of 10%. The increase for dependants shall not exceed 100% of the basic amount.

Rule 21.3/8 Supplement for mobility

- (i) A supplement for mobility amounting to 75% of the basic amount shall be granted to staff members who settle their actual and habitual residence in a different duty station more than 100 kilometres away as a result of their reassignment for at least one year within the Agency.
- (ii) The supplement for a change in geographical zone referred to in Rule 21.3/6 and the supplement for mobility referred to in paragraph (i) above may not both be granted in respect of the same installation.

Rule 21.3/9 Payment of the allowance

- (i) The allowance shall be payable when the eligible staff member takes up duty or is reassigned to a different duty station within the Agency.

⁶ A staff member who will receive the expatriation allowance in his new duty station shall be considered as entitled within the meaning of this provision.

- (ii) The supplement for dependants referred to in Rule 21.3/7 is calculated and paid upon justification that each individual related to this increase has settled his actual and habitual residence with the staff member at the duty station.
- (iii) A staff member who resigns within the year that follows his appointment or his reassignment to a different duty station shall pay back the installation allowance on a pro rata basis for the time remaining to reach twelvemonths.
- (iv) A staff member shall not reimburse the allowance if the Agency terminates his appointment within the year following his appointment or reassignment. However, this provision does not apply when the Agency terminates the appointment as a result of disciplinary action, in which case the staff member shall reimburse the totality of the allowance.
- (v) The allowance shall not be reimbursed to the Agency when the staff member is successively reappointed by the Agency after the termination of his previous appointment.

IV. RENT ALLOWANCE

Rule 21.4/1 Eligibility

A staff member other than those graded A3 or above shall, even if still serving his probationary period, be entitled to a rent allowance provided that:

- (i) he enjoys international status;
- (ii) he or his spouse does not own, in the area of his duty station, living accommodation suitable to his grade and family circumstances;
- (iii) he is the tenant or sub-tenant of furnished or unfurnished accommodation suitable to his grade and family circumstances;
- (iv) the rent paid, excluding all charges, exceeds the proportion of his emoluments specified in Rule 21.4/2;
- (v) he qualifies for the household allowance/ basic family allowance, if married;
- (vi) he supplies the Administration on request with information as necessary to determine the amount of allowance to which he is entitled.

Rule 21.4/2 Calculation of the allowance

- (i) The amount of allowance shall be a proportion of the difference between the actual rent paid and a nominal sum representing:
 - 15% of the emoluments of Category C staff members and staff graded B1 to B4 and G1 to G4 inclusive;
 - 20% of the emoluments of grade B5 and B6 and G5 and G6 staff members;
 - 22% of the emoluments of staff members of grades A1, A2, L1, L2.
- (ii) The said proportion shall be:
 - 50% in the case of staff without dependants;
 - 55% for staff members with one dependant;
 - 60% for those with two or more dependants.
- (iii) In no case shall the amount of the allowance exceed:
 - 10% of a staff member's emoluments in Category C and in grades B1 to B4 and G1 to G4 inclusive;
 - 5% of a staff member's emoluments in grades B5, B6, G5, G6, A1, A2, L1, L2.

Last update: December 2025 (cf. ESA/ADMIN/REG(2003)1, add.126)

Rule 21.4/3 Emoluments

For the purpose of the preceding provisions emoluments shall be deemed, in accordance with the Instructions under Regulations 20, 21 and 22⁷ to include all the following items applicable at the time of the staff member's appointment:

- salary (less contributions to the Agency's Social Security Scheme and the Pension Scheme or Provident Fund, as the case may be);
- expatriation allowance;
- household allowance/ basic family allowance;
- language allowance.

Rule 21.4/4 Definition of rent

For the purposes of the above Rules, rent shall mean the actual rent paid, exclusive of charges such as heating, lighting, etc., and maintenance.

Rule 21.4/5 Procedure

Claims for rent allowance should be submitted to the Head of Personnel who shall arrange for their examination by the Rent Allowance Board.

⁷ See Instruction 20-21-22/1/1 (ii)

V. ACTING ALLOWANCE

Rule 21.5/1 Eligibility and amount

A staff member who is required, temporarily but for an uninterrupted period, to discharge the duties of a staff member holding an appointment at a higher level shall be entitled to an allowance equal to twice the difference between the amounts of the salaries pertaining to the first two consecutive steps in his grade.

Last update : May 2021 (cf ESA/ADMIN/REG(2003)1, add.92)

Rule 21.5/2 Period of entitlement

The allowance shall be payable for the period from the first day of the third month to the last day of the sixth month following the date of temporary assignment: the Appointing Authority may, by special decision, extend it thereafter for further successive periods of six months each.

VI. LANGUAGE ALLOWANCE

Rule 21.6/1 Eligibility

A staff member of grade B1, B2, G1 or G2 who is normally required in the course of his duties to use more than one of the languages of the Agency and who establishes his proficiency in such language or languages shall be entitled to a language allowance, the amount of which is fixed by the Council for each duty country.

Last update: December 2025 (cf. ESA/ADMIN/REG(2003)1, add.126)

Rule 21.6/2 Eligibility and amount – Grades C1 to C4

1. A language allowance may be granted to certain staff of grades C1 to C4 to take account of their linguistic qualifications, provided that the staff in question:
 - (i) are in frequent contact with persons who use English only or French only, and
 - (ii) are required to use both these languages under the terms of their job description, and
 - (iii) have successfully passed a special test organised by the relevant Personnel Service in order to verify their ability to express themselves orally in the two languages in question.
2. The language allowance in question shall correspond to the step increase from grade C3/1 to grade C3/2 in the scale applicable to the country in which the staff member concerned is serving.

VII. INDEMNITY FOR LOSS OF JOB

Rule 21.7/1 Eligibility

The Director General shall have power to award an indemnity for loss of employment to any staff member:

- (i) who holds a firm contract and
- (ii) whose services are terminated for any one of the following reasons:
 - (a) suppression of the budget post occupied by the staff member;
 - (b) changes in the duties of the budget post occupied by the staff member of such a nature that he no longer possesses the required qualifications;
 - (c) general staff cuts including those due to a reduction in or termination of the activities of the Agency;
 - (d) the withdrawal from the Agency of the Member country of which the staff member is a national;
 - (e) refusal of the staff member to change his duty station, whether such change results from the transfer of the Headquarters of the Agency or of one of its Establishments or units, or from an individual requirement, if the new duty station is at more than one hour's distance from the previous one by public transport and involves for the staff member a journey by public transport of 90 minutes or more;
 - (f) failure of the staff member to adapt himself to his duties under the terms of Regulation 15.4 (v);
- (iii) and who, on expiry of his period of notice:
 - (a) is not offered a post in the same grade in the Agency, or
 - (b) is not appointed to a vacant post in one of the other Co-ordinated Organisations at a comparable remuneration, or
 - (c) if employed in the public service, has failed to obtain immediate reintegration in his national civil or military administration.

Rule 21.7/2 Calculation and payment

The method of calculating the indemnity differs as between fixed-term appointments and indefinite-term appointments.

The emoluments and seniority used as a basis in calculating the indemnity shall be taken into account at the expiry of the period of notice, even if the staff member has been exempted from serving it. The emoluments shall comprise:

- salary;

- family allowances;
- the Agency's contribution, where applicable, to the Provident Fund.

(i) Fixed-term appointments

Amount of indemnity

The amount of indemnity for loss of job shall be equal to half the product of the staff member's monthly emoluments, multiplied by the number of months remaining up to the expiry of the term of his contract, provided that it shall in no case exceed:

- 5 months' emoluments in the case of uninterrupted employment for 3 years or less;
- 8 months' emoluments in the case of uninterrupted employment for 4 years, or for any term between 3 years and 4 years;
- 10 months' emoluments in the case of uninterrupted employment for more than 4 years.

(ii) Indefinite-term appointments

(a) Amount of indemnity

The amount of the indemnity, expressed in months or fractions of the month of emoluments, shall be one month's emoluments for each year of service from the date when the staff member joined the Agency.

However, the amount of indemnity so calculated shall be subject to a ceiling. This ceiling is set at eighteen months' emoluments at 1 January 1972 and shall be raised at the rate of one month per year up to a maximum of twenty-four months (1.1.1978).

Furthermore, the amount of indemnity so calculated shall not represent a number of months, or fractions of a month, in excess of the period which the staff member would still have to serve before reaching the age limit specified by the Staff Rules.

(b) Reckonable service with other organisations

Account shall be taken, where appropriate, of any time previously served by the staff member concerned in other Co-ordinated Organisations and in respect of which he has not received any indemnity for loss of job under the present provisions or the previous ones. However, no account shall be taken of any years of service preceding:

- an interruption of the staff member's service with the Co-ordinated Organisations;
- the termination on disciplinary grounds of his services with any Co-ordinated Organisation.

(iii) Payment of the indemnity

The indemnity shall be paid to the staff member in full at the time he leaves the Agency.

Rule 21.7/3 Indemnity after ten years' service

Any staff member who has served not less than 10 consecutive years with one or more Co-ordinated Organisations and whose services are terminated in the conditions specified in Rule 21.7/1, shall be entitled to an indemnity for loss of job calculated under the provisions of Rule 21.7/2 (ii), whatever the nature of the contract held by him at the time when his appointment is terminated.

Rule 21.7/4 Transitional measure

ESRO and ELDO staff members who were in post on 1 January 1972 may opt for the provisions of the former rules on the indemnity for loss of job, which were in force on 31 December 1971.

REGULATION 22

BENEFITS

Staff members shall be paid, under the conditions laid down in the Staff Rules:

22.1 Sickness, pregnancy and childbirth care, accident and disablement benefits: the Staff Rules shall specify who is to receive these benefits in the event of the staff member's death;

22.2 Benefits due from the Pension Scheme or

22.2bis from the Provident Fund;

22.3 Subsistence allowances, and reimbursement of travel and removal costs incurred in the service of the Agency.

Last update: February 2023 (cf ESA/ADMIN/REG(2003)1, add. 108)

I. SOCIAL SECURITY BENEFITS

A. GENERAL PROVISIONS

Rule 22.1/1 Beneficiaries

- (i) A "beneficiary" of the Agency's social security scheme is the affiliated person and any entitled person covered on a primary or on a complementary basis.

Primary cover is provided by the Agency's social security scheme to meet all medical benefits according to the present Rules.

Complementary cover is provided by the Agency's social security scheme to certain categories of affiliated or entitled persons when they have a primary cover from another source.

- (ii) The following are automatically affiliated to the Agency's social security scheme:
- (a) the Agency's staff members as defined by Staff Regulation 1;
 - (b) former staff members in receipt of an invalidity pension provided for under the Pension Scheme or an annuity in accordance with Rules 22.1/15 and 22.1/16.
- (iii) At their request, the following are affiliated to the Agency's social security scheme to claim reimbursement of medical expenses:
- (a) former staff members in receipt of a retirement pension from the Agency;
 - (b) the widower, widow or orphan of a staff member or of a former staff member, if in receipt of a survivor's, reversion or orphan's pension from the Agency;
 - (c) former members of the Provident Fund under conditions set out by the Director General and with effect from 1 January 2007, concerning former staff who were in service on 1 January 2001 or who had left the Agency before that date but were accepted in the Agency's social security scheme afterwards;
 - (d) former staff members not in receipt of a pension, if they find it impossible to arrange alternative social security cover.
- (iv) Any other person employed by the Agency may be affiliated to this scheme, following a proposal by the Director General approved by the Administrative and Finance Committee.
- (v) Where the affiliated person so requests, the following shall be considered as entitled persons, provided they cannot themselves be affiliated to the Agency's social security scheme and they fulfil the conditions laid down in the relevant Instructions:
- (a) spouse,
 - (b) dependent children,
 - (c) other dependants within the meaning of these Rules.

The reimbursement of the medical expenses of entitled persons shall be primary or complementary, on conditions defined by Staff Instructions.

- (vi) Subject to payment of the contributions specified in Rule 22.1/20, the affiliated persons referred to in the present Rule shall receive the Agency's social security scheme benefits for themselves and medical expense reimbursement benefits for their entitled persons.

Rule 22.1/2 Period covered

Entitlement to benefits under these Rules:

- (i) for an affiliated staff member, commences from the date on which he is first entitled to draw remuneration and ends on the date on which he ceases to be so entitled, except
 - in the event of an occupational accident or occupational disease, for the benefits provided for in Rule 22.1/10(i),
 - during the waiting period, pursuant to Rule 22.1/10(iv), for the benefits covered by that provision,
 - during one of the periods specified by Rule 22.1/11 and 22.1/12, as long as the incapacity to work giving rise to benefit entitlement continues, subject to the three-year limit set by those provisions,
- (ii) for other affiliated persons and entitled persons, commences from the date on which affiliation to the scheme takes effect and ends on the date it ceases, either by decision of the affiliated person or because he ceases to meet one of the Staff Regulations' set conditions.

Rule 22.1/3 Definition of benefits and risks covered – Reference scheme

- (i) The Instructions will specify the methods and procedure for the granting of the benefits covered by these Rules, and state in particular which risks are covered and which are not.
- (ii) In cases of doubt or dispute in the application of the Agency's social security scheme, reference shall be made to the national social security regulations in force in the country where Headquarters is located.
- (iii) The text of any insurance policy which may be taken out shall be available to the staff for consultation on request.

Rule 22.1/4 Contested entitlement

- (i) Where entitlement to the benefits provided for under Rules 22.1/7, 22.1/11, 22.1/12, 22.1/15 and 22.1/16 is medically contested, and in the event of disagreement between the beneficiary's medical practitioner on the one hand and the medical practitioner

designated by the Agency on the other, recourse shall be made to the arbitration of a third practitioner chosen jointly by the first two.

In case of lack of agreement between the first two medical practitioners on the choice of a third, the latter shall be designated by the Conseil départemental de l'ordre des médecins de Paris or by the corresponding professional association in the beneficiary's country of residence.

The fees of the medical practitioner who acts as arbitrator shall be borne equally by the Agency and the beneficiary. In the event of a dispute between the insurance company and the Agency who has taken the side of the beneficiary, the latter shall not be required to bear one half of the expenditure.

- (ii) The opinion of the medical practitioner acting as arbitrator shall be forwarded to the Agency's Director General for his decision. In case the beneficiary disagrees with the decision taken he shall lodge an appeal directly to the Administrative Tribunal.

Last update: December 2020 (cf ESA/ADMIN/REG(2003)1, add. 98)

Rule 22.1/5 Yearly examination – Forfeiture of benefits

- (i) If a staff member fails to undergo the medical examination held each year by the Agency, he and his entitled persons may forfeit in whole or in part the benefits provided for in these Rules.
- (ii) Both the affiliated person and his entitled persons may also forfeit these benefits following a duly substantiated decision by the Director General (e.g. for making a false declaration, drawing the same benefits from two or more different sources, etc.), or if the event giving rise to these benefits is due to a deliberate act or fault on the part of their beneficiaries.

Rule 22.1/6 Insurance – Subrogation

- (i) The benefits specified in these Rules may be provided under the conditions specified in any insurance policies which may be taken out by the Agency. The Agency shall in any event remain liable to its staff for the benefits to which they are entitled.
- (ii) These benefits shall be granted to the staff member, for his benefit or that of his entitled persons, on condition that the Agency is subrogated with regard to the rights or claims the beneficiary may have against potentially liable third parties. Such subrogation shall apply up to the amount of the aforesaid benefits, except the lump sums referred to in Rules 22.1/15 to 22.1/18 below, which may be cumulated with compensation received from outside the Agency.
- (iii) The benefits for short-term risk (reimbursement of medical expenses) shall be granted to the other affiliated persons and to the entitled persons concerned on condition that the Agency is subrogated with regard to the rights and claims the beneficiary may have against potentially liable third parties. Such subrogation shall apply up to the amount of the aforesaid benefits.

B. REIMBURSEMENT OF MEDICAL EXPENSES

Rule 22.1/7 Beneficiaries -Deadline

A "beneficiary" of the Agency's social security scheme is the affiliated person and any entitled person covered on a primary or on a complementary basis as defined under Rule 22.1/1(i).

- (i) Medical expenses shall be reimbursed in the event of sickness, childbirth or an accident occurring to an affiliated person or one of his entitled persons.
- (ii) Medical expenses are reimbursed either on a primary basis or on a complementary basis, the latter being a situation which is encouraged by the Agency whenever possible.
- (iii) If the beneficiary is entitled to similar benefits from another source — the said benefits shall be deducted from those payable under these Rules.
- (iv) Entitlement to reimbursement of medical expenses shall expire two years from the date of the original invoice.

Rule 22.1/8 Reimbursed costs – Ceilings

- (i) Social Security costs and the rates at which they are reimbursed, as well as the ceilings of reimbursement, shall be laid down in the Director General's Instructions.
- (ii) Expenditure on treatment and pharmaceutical products prescribed by medical practitioners, surgeons and dentists shall be reimbursed.
- (iii) The ceilings and fixed amounts shall be stated in the currency of the duty country or residence country for a former staff member, and shall vary with the trend of medical expenses noted in that country.

Where medical expenses are incurred in a country other than the duty (or residence) country, the ceilings and fixed amounts shall be those laid down for the country where these expenses are incurred if the Agency has an establishment there.

With regard to expenses incurred in countries other than those mentioned in implementing Instructions, namely in Table 1, the ceilings and fixed sums are those stated for France, converted, if applicable, for countries outside the Euro-zone, at the Agency's rates.

Rule 22.1/9 Reimbursement procedure

The procedure for repayment shall be fixed by the Director General.

Rule 22.1/10**Cessation of employment**

- (i) Occupational accident and occupational disease: If a staff member leaves the Agency before complete recovery from an occupational disease or the consequences of an occupational accident, the benefits provided for under Instruction 22.1/8/1 shall be paid by the Agency until he has completely recovered.
- (ii) Pensions and annuities: Former staff members affiliated to the Agency's social security scheme automatically or at their request, as foreseen in Rule 22.1/1(ii)(b) and Rule 22.1/1(iii)(a) respectively, and their entitled persons shall be reimbursed their medical expenses throughout the period that they are in receipt of their pension/annuity.
- (iii) Provident Fund: Former members in the Provident Fund affiliated to the Agency's social security scheme at their request, as foreseen in Rule 22.1/1(iii)(c), and their entitled persons shall be reimbursed their medical expenses throughout their life time.
- (iv) Waiting period: If, on cessation of employment, the staff member cannot immediately arrange provision for the health and accident risk cover under a new scheme, notably due to a waiting period specified under a scheme, special arrangements may be worked out to extend the period of cover in question for themselves and their entitled persons.

In such case, the maximum extension period shall be 12 months except:

- (a) Post suppression: If the former staff member cannot immediately arrange health and accident risk cover, the reimbursement of his medical expenses and those of his entitled persons may be maintained for a 12 month period, or up to age 60 where the appointment of a staff member aged 58 or above is terminated due to post suppression. In the case of a staff member affiliated to the New Pension Scheme, the latter benefit is available provided that the termination occurred when he was aged 61 or above and it is maintained up to the age of 63. In the case of a staff member affiliated to the Third Pension Scheme, the latter benefit is available provided that the termination occurred when the staff member was aged 64 or above and it is maintained up to the age of 66.
- (b) Expiry of contract: If the former staff member cannot immediately arrange health and accident risk cover, the reimbursement of his medical expenses and those of his entitled persons may be maintained for a 12 month period, except when the contract expires during one of the periods specified by Rule 22.1/11 and 22.1/12, in which case benefit entitlement continues subject to the three-year limit set by those provisions, as foreseen in Rule 22.1/2(i).
- (c) Resignation: 6 months maximum.
- (d) Graduate trainees and internal research fellows: 6 months maximum. However, coverage may be granted for up to 6 additional months if the graduate trainee or internal research fellow provides proof of the existence of a corresponding waiting period, and provided he pays the full contributions, including employer's share, which the Agency would otherwise have paid.

Last update: August 2025 (cf. ESA/ADMIN/REG(2003)1, add. 125)

C. TEMPORARY INCAPACITY –EMOLUMENTS

Rule 22.1/11 Sickness – Three years

A staff member who is unfit for work shall be entitled:

- to his full emoluments for the period specified by Regulation 23.4 (iii),
- to his full emoluments for a further period of six months,
- to 90 % of his emoluments for the next twelve months, and
- to 80 % of his emoluments for the twelve months following that.

This entitlement is maintained within the limits laid down in Staff Instruction 22.1/2/1, ending on the date on which he is deemed fit to resume his duties or on the date as from which he is assessed as suffering from permanent invalidity or at the end of the calendar month in which he reaches the regulatory age limit.

In the event the staff member is able to work part-time, these percentages of emoluments shall be applied for the unworked period. The percentage of worked period shall be paid at 100%.

Rule 22.1/12 Serious illness – Accident – Three years

The qualification of “serious illness” is recognised at European level by the medical profession. These illnesses are itemised in the list of Long Duration Illnesses (see Table 1).

A staff member who is totally or partially unfit for work as a result of an accident or a long-term condition, as defined by the French social security system, and diagnosed as being a serious illness, shall be entitled to his full emoluments for a period not exceeding three years.

This entitlement is maintained within the limits laid down in Staff Instruction 22.1/2/1, ending on the date on which he is deemed fit to resume his duties or on the date as from which he is assessed as suffering from permanent invalidity or at the end of the calendar month in which he reaches the regulatory age limit.

Rule 22.1/13 Medical certificate

- (i) Payment of the emoluments specified in Rules 22.1/11 and 22.1/12 is subject to the production of a medical certificate acknowledged as valid by the Director General, as required under Regulation 23.4(iii).
- (ii) Payment may be stopped if the Agency's Medical Advisor establishes that the staff member is not following the full range of treatment and prescriptions jointly agreed with the medical practitioner treating the staff member.

D. PERMANENT INVALIDITY

Rule 22.1/14 Establishment

Invalidity will be established and assessed on the basis of the opinion of a doctor approved by the Agency, either on the request of the Agency or on a proposal by the staff member's doctor:

- in the case of an accident, after the date on which the disability became lasting,
- in other cases, at the expiry of the period of sick leave,

if the staff member's condition cannot be improved by appropriate medical treatment. In case the staff member disagrees with the decision taken following the opinion of the doctor, he shall lodge an appeal directly to the Administrative Tribunal.

Last update: December 2020 (cf ESA/ADMIN/REG(2003)1, add. 98)

Rule 22.1/15 Annuity – Lump sum – Medical costs

A staff member's entitlement shall be the following:

- (i) In cases of total permanent invalidity (i.e. assessed at two-thirds or more):
 - (a) payment, at the time of establishment of the disablement, of a lump sum amounting to:
 - 5 years' emoluments if the permanent disablement results from an occupational accident or occupational disease;
 - 3 years' emoluments in other cases;
 - (b) the benefits provided for under the Pension Scheme;
 - (c) the sickness benefits provided for, on condition that they are not already covered by another social security scheme as foreseen in Rule 22.1/7(iii).
- (ii) In cases of partial permanent invalidity (i.e. assessed at less than two-thirds):
 - (a) the lump sums provided for in paragraph (i) (a) above, proportionally reduced by the invalidity coefficient, on the basis of two-thirds invalidity = 100;
 - where the invalidity resulted from an occupational accident;
 - in other cases, where the invalidity coefficient is 10% or higher;
 - (b) where the invalidity results from an occupational accident, an occupational disease or a serious illness and reduces earning capacity, an annuity amounting to 50% of emoluments, proportionally reduced by the invalidity coefficient, on the basis of two-thirds invalidity = 100. This annuity shall be payable until the staff member reaches the regulatory age limit;

where the invalidity does not result from an occupational accident, an occupational disease or a serious illness but reduces earning capacity an annuity calculated and paid on the basis defined in paragraph (ii) (b) above , only if the invalidity is assessed at above one-third.

- (c) the sickness benefits provided for, on condition that they are not already covered by another social security scheme as foreseen in Rule 22.1/7(iii).

The annuities and lump sums referred to in this Rule shall be calculated on the basis of the monthly emoluments, or the temporary incapacity allowance, of the month preceding the date of the event which gave rise to the benefits (i.e. the date on which the disability became lasting or establishment of invalidity). In the event of successive accidents or cumulative infirmity, the invalidity coefficient is assessed according to the degree of aggravation in relation to the pre- existing state.

The annuities shall be indexed; they may also be revised upwards or downwards according to changes in the degree of invalidity. The medical status of the staff and former staff concerned shall be re-examined periodically, at least once every five years.

In the case of invalidity of a serving staff member beyond the regulatory age limit, the lump sums provided for shall be reduced from 5 years' to 3 years' emoluments if the invalidity results from an occupational accident, and from 3 years' to 1 year's emoluments in other cases. The proportional reduction in the case of permanent invalidity assessed at below two-thirds shall be calculated on the basis of lump sums thus reduced to 3 years and 1 year of emoluments respectively.

E. PERMANENT INVALIDITY - TRANSITIONAL ARRANGEMENTS

Rule 22.1/16 [deleted]

Last update: July 2025 (cf ESA/ADMIN/REG(2003)1, add.123)

F. DEATH BENEFITS

Rule 22.1/17 Death during employment or temporary incapacity

- (i) On the death of a staff member during normal employment or during a period of temporary incapacity a lump sum shall be paid, amounting to 3 years' emoluments,
- to the person or persons designated by him, or, in default thereof,
 - to his spouse, where applicable, or, in default thereof,
 - to his legal heirs.

Where death results from an occupational accident, this lump sum shall be increased to 5 years' emoluments.

On the death of a serving staff member over the regulatory age limit, the lump sums provided for shall be reduced from 5 years' emoluments to 3 years if death results from an occupational accident, and from 3 years' emoluments to one year in other cases.

- (ii) In the event of death resulting from an occupational accident, entitlement in the case of a staff member who has opted under the Transitional Arrangements (Rule 22.1/16) to remain affiliated to the Provident Fund shall be the lump sum referred to in paragraph (i) above, increased by an amount equal to:
- 2 years' emoluments for the first dependent child, plus
 - one year's emoluments for each additional child,

up to a maximum of 5 years' emoluments in respect of dependent children.

- (iii) The dependants of a staff member or former staff member at the time of death shall be entitled to the reimbursement of medical expenses for the entire period during which the Agency pays them a survivor's or orphan's pension, and in any case for a period of one year (365 days) reckoned from the date of the staff member's death, if such benefits cannot be provided through another scheme.
- (iv) The salary and allowances due to the staff member after deduction of his personal social security contribution shall continue to be paid to the persons indicated in paragraph (i) above, up to the end of the month following the staff member's death.
- (v) The emoluments taken into account in calculating the lump sum in the event of death are those to which the serving staff member was entitled during the month in which he died or which corresponded to a full salary, used as a basis for calculating the incapacity allowance, exclusive of any acting allowance, rent allowance or overtime allowance.

Rule 22.1/18 Death – Lumpsum

- (i) The surviving spouse of a staff member who dies after having been in receipt of a total permanent invalidity pension is entitled to the survivor's pension and other benefits as specified in the Pension Scheme.

- (ii) Where the deceased staff member opted under the Transitional Arrangements (Rule 22.1/16) to remain affiliated to the Provident Fund, the entitled person is entitled to a lump sum amounting to 3 years' emoluments, and, where applicable, to the supplementary benefits specified in Rule 22.1/17(ii).

G. BIRTH OF A CHILD

Rule 22.1/19 Lump sum

On the birth of a child a staff member in receipt of the related dependent child allowance/supplement shall receive a lump sum, the amount of which shall be laid down in the Director General's Instructions.

Last update: October 2016 (cf. ESA/ADMIN/REG(2003)1, add. 78)

H. FINANCING

Rule 22.1/20 Premium –Contributions

- (i) The Central Staff Committee shall be informed each year of the amount needed to cover the benefits under the Agency's social security scheme.
- (ii) The balance of costs which are not borne by the affiliated persons shall be borne by the Agency, save for the voluntary affiliation cases envisaged by Rule 22.1/1(iii)(d).
- (iii) The staff shall contribute to the cost of financing the benefit provision under these Rules, except the cost of covering the occupational accident and occupational disease risk. The amount of the contribution shall be determined by the Director General; the aggregate shall not exceed one third of the cost of cover and shall be allocated among the affiliated persons by the Director General after consultation with the Staff Association.
- (iv) With the exception of the voluntary affiliation cases envisaged by Rule 22.1/1(iii)(d), non-staff affiliated persons shall contribute to meeting the cost of benefit entitlements in the same proportions as staff members, according to arrangements laid down by the Director General.

II. PENSION SCHEME BENEFITS

Rule 22.2/1 Scope of the Pension Scheme (“Co-ordinated”)

Subject to Rule 22.2/2, staff members are affiliated to the Pension Scheme governed by the Rules approved by the Council on 23 November 1976 (Information Note ESA/ADMIN(76)39 of 26 November 1976) and the Implementing Instructions issued by the Director General on 14 June 1977 (Information Note ESA/ADMIN(77)27 of 11 July 1977¹).

Last update: May 2010

Rule 22.2/2 Scope of the New Pension Scheme (“NPS”)

Staff members taking up their duties as from 1 July 2010 until 31 December 2025

- who have never contributed to the Pension Scheme referred to in Rule 22.2/1 above; or
- who, having benefited under their previous appointment at one of the Co-ordinated Organisations from the provisions of Article 11 of the Scheme referred to in Rule 22.2/1 above, have not repaid under that Scheme the amounts provided for under that Article,

are affiliated to the New Pension Scheme (NPS), its Rules having been approved by Council on 17 March 2010 and its implementing Instructions issued by the Director General on 27 May 2010.

Last update: August 2025 (cf. ESA/ADMIN/REG(2003)1, add. 125)

Rule 22.2/3 NPS pensionable age

The age at which a staff member shall become eligible for a retirement pension, with regard to Article 8 of the NPS Rules, is sixty-three.

Last update: May 2010

Rule 22.2/4 Scope of the Third Pension Scheme (“TPS”)

Staff members taking up their duties as from 1 January 2026

- who have never contributed to the Pension Scheme referred to in Rule 22.2/1 or to the New Pension Scheme referred to in Rule 22.2/2 above; or
- who, having benefited under their previous appointment at one of the Co-ordinated Organisations from the provisions of Article 11 of either of the said Schemes, have not repaid under the Corresponding Scheme the amounts provided for under that Article,

are affiliated to the Third Pension Scheme (TPS), its Rules having been approved by Council on 12 June 2025 and its implementing Instructions issued by the Director General on 8 August 2025.

¹ The Pension Scheme Rules and Implementing Instructions have been issued in two separate documents to all ESA staff, and updated with effect from 1st November 1980 (ESA/ADMIN(80)17).

Last update: August 2025 (cf. ESA/ADMIN/REG(2003)1, add. 125)

Rule 22.2/5 TPS pensionable age

The age at which a staff member shall become eligible for a retirement pension, with regard to Article 8 of the TPS Rules, is sixty-six.

Last update: August 2025 (cf. ESA/ADMIN/REG(2003)1, add. 125)

**Rule 22.2/6 Provisions common to the Pension Scheme (“Co-ordinated”),
the New Pension Scheme (“NPS”) and the Third Pension Scheme
 (“TPS”)**

In the provisions governing the Pension Scheme (“Co-ordinated”), the New Pension Scheme (“NPS”) and the Third Pension Scheme (“TPS”), the expression “grade and step” shall refer to “grade, step and increment”, and references to “step 1” shall mean “the first increment in step 1”.

Last update: August 2025 (cf ESA/ADMIN/REG(2003)1, add.125)

II BIS - PROVIDENT FUND BENEFITS TRANSITIONAL PROVISIONS

Rule 22.2bis/1 and 2 Provident Fund

As a transitional measure, the Provident Fund, hereinafter called "the Fund", set up under the ESRO Staff Rules to make provision for old age or termination of appointment from whatever cause, including death, shall continue to apply to:

- (i) staff members in service on 1 July 1974, or who left ESRO during the period between 1 January 1973 and 1 July 1974, who have opted for the provisions of Article 45 of the Pension Scheme Rules: they shall continue to participate in the Provident Fund in respect of their holdings acquired prior to 1 July 1974;
- (ii) staff members in service on 1 July 1974 who have opted for the provisions of Article 48 of the Pension Scheme Rules.

Rule 22.2bis/3 Period of affiliation

Affiliation shall begin on the date from which the staff member is entitled to remuneration. It shall cease on the date on which the participant is no longer entitled to remuneration, except in the cases referred to in Rules 22.2bis/4 and 5.

However, on termination of his appointment a participant may leave in the Provident Fund all or part of the amounts standing to his individual account, either until the end of the current calendar year or for a maximum period of twelve months, his holdings remaining subject to the fluctuations of the Provident Fund as a whole. This possibility is not granted in the cases foreseen in Regulation 15.3 (i) and (iii).

Rule 22.2bis/4 Leave without pay

- (i) Throughout periods of unpaid leave granted under Regulations 23.4 (iv) and 23.5 (ii), the participant shall remain affiliated to the Fund without any obligation either for him or for the Agency to pay the contributions referred to in Rule 22.2bis/7.
- (ii) The participant may, however, continue to pay his own contribution, together with the Agency's share.

Rule 22.2bis/5 Non-active status

During the period of "non-active status" in accordance with Regulation 18, the question of affiliation to the Fund will be dealt with on an individual basis.

Rule 22.2bis/6 Salary taken as a basis for determining contributions

The salary on the basis of which the net contributions to the Fund are calculated shall be the basic salary defined in the Rules under Regulation 20 together with any cost-of-living allowance and after deduction of the internal tax.

Rule 22.2bis/7 Contributions

- (i) Contributions to the Fund shall be subject to internal tax.
- (ii) A contribution shall be deducted each month from the salaries paid to the participants. The amount of the net contribution paid into the Fund shall be equivalent to 7% of the monthly salary defined in Rule 22.2bis/6.
- (iii) A contribution shall be paid into the Fund by the Agency every month. The net contribution shall be equivalent to 14% of the monthly salary defined in Rule 22.2bis/6.
- (iv) As from 1 July 1974 contributions shall cease to be paid under paragraphs (ii) and (iii) above in respect of the staff members referred to in Rules 22.2bis/1 and 2(i) who have opted for the Pension Scheme.
- (v) Where payment of the salary is replaced by a temporary incapacity allowance pursuant to Rules 22.1/11 and 12, the contribution due from the participant shall be calculated by reference to this allowance, and deducted from it; the Agency shall pay as its share twice the amount of this contribution, after deduction of internal tax.
- (vi) Contributions in respect of a given month shall be expressed in accounting units on the date of payment of the salary on which these contributions are calculated; they shall be paid into the Fund and converted into Provident Fund Units (PFUs) on the first day of the following month.

The accounting unit shall be defined in the same way as the accounting unit of the Agency.

Rule 22.2bis/8 Individual accounts

- (i) Each participant shall hold an individual account, credited with a whole of mixed number of Provident Fund Units, calculated as follows:

On the date of entry into force of these provisions, i.e. as from 1 January 1972, the amount held in each participant's individual account shall be divided by the value assigned to a PFU on that date.

Subsequently, on the first day of each month, the value of a PFU shall be readjusted in relation with the evolution of the assets of the Fund, and the contribution paid in respect of the previous month shall be divided by the new value. The number of PFUs thus obtained shall be added to the number standing to the credit of the participant's account on the first day of the previous month.

- (ii) The value of a Provident Fund Unit shall be expressed in accounting units, irrespective of the currency in which the contributions have been paid.

- (iii) The criteria to be used in the monthly evaluation of the Fund's assets shall be laid down by the Director General on the recommendation of the Advisory Committee.
- (iv) For the purpose of these Rules, the "first day of the month" shall be understood to mean the first day on which the stock exchange is open for business.

Rule 22.2bis/9 Authorised deductions and withdrawals

- (i) A participant's holdings in Provident Fund Units will be used, in the first instance, to cover any contributions which the participant or the Agency is obliged to pay because of his affiliation to a national social security system and which pertain to the risks mentioned in Rules 22.2bis/1 and 2.
- (ii) Participants shall be entitled to have refunded to them, by deduction from their Provident Fund holdings, their costs in connection with affiliation to:
 - (a) a national pension scheme;
 - (b) the pension schemes operating in their parent departments, in the case of civil servants seconded to the Agency;
 - (c) a pension scheme, in the case of employees of private firms seconded to the Agency;
 - (d) a death or disablement insurance taken out by the Director General on behalf of the staff.

Deductions from individual accounts as provided for above shall be made upon presentation of documentary evidence justifying such payments.

- (iii) Deductions made under the provisions of paragraph (ii) above may not exceed the value of the Provident Fund holdings of the staff member concerned as shown on his last pay slip.
- (iv) A participant may be authorised, on conditions laid down by the Director General, to withdraw his Provident Fund holdings for the purpose of purchasing or improving accommodation for his personal use. The amount withdrawn may not exceed the value of the Provident Fund holdings, less the amount of any outstanding long-term loans, standing to the credit of the staff member concerned on the first day of the month in which the withdrawal is made.

Rule 22.2bis/10 Payment out

- (i) When a participant ceases to be affiliated to the Fund, he shall be paid the value of his Provident Fund holdings, as assessed on the first day of the month in which his duties ceased. He is, however, entitled to an advance payment, of an amount not exceeding 90% of his holdings, four months before the date on which he will actually cease his duties.

On cessation of his duties he may also temporarily leave his holdings in the Fund, in whole or in part, as provided for in the second paragraph of Rule 22.2bis/3, this being conditioned to one month's notice prior to any withdrawal of holdings so left in the Fund.

- (ii) In the event of the death of the participant his holdings shall be paid out to the persons named by him as his assigns, who shall, at their own cost, supply any document necessary for the verification of their claims.
- (iii) Payment of the Provident Fund holdings, expressed in accounting units, shall, in principle, be made in the currency of the country of the participant's last duty station. However, at the request of the participant or of his assigns, the payment may be made in the currency:
 - of one of the Agency's Member States, or
 - of the country of which the participant is a national,

subject to providing evidence that he actually resides in that country.

The conversion shall be made at the official rate of exchange used for Provident Fund operations on the date of payment and at the Agency's expense.

- (iv) The participant or his assigns may request the payment to be made to an insurance company for conversion into a pension.
- (v) Any participant who will cease to be affiliated to the Fund within two years or less may irrevocably transfer during that period all or part of his holdings to a short-term investment section, described in Staff Rule 22.2bis/12 (v). Transferred holdings shall remain in an account in the section until the date on which they are paid out to the participant.

Rule 22.2bis/11 Deductions from payments

Claims made by the Fund or the Agency against a participant may be settled by deduction from the payments due to him at the end of his affiliation.

Rule 22.2bis/12 Administration

- (i) Subject to any directions of the Council, the Director General shall be responsible for the administration of the Fund, including the collection of contributions, the custody and investment of the assets of the Fund and payment of the amounts due to the participants or their assigns.
- (ii) All monies deposited with banks, all securities, investments and all other assets which are the property of the Fund shall be deposited, acquired and held in the name of the Agency, which shall be the participants' debtor in respect thereof.
- (iii) The assets of the Fund shall not be merged with the other assets of the Agency and shall be separately administered and accounted for. Subject to these provisions, and to the provisions relating to the applicable rates of exchange which are to be laid down

by the Administrative and Finance Committee, the Agency's Financial Regulations shall apply to the accounting procedure of the Fund.

- (iv) The Director General shall submit to the Council annually a report on the working of the Fund, together with its audited annual accounts and his comments on the Audit Commission's report.
- (v) Holdings transferred to the short-term investment section shall form an integral part of the Fund, but shall be administered and accounted for separately from the other Fund holdings. Holdings transferred to the section shall be invested at a fixed rate of interest, to be reassessed at the end of three month periods, to be counted as from the initial transfer of the holdings. The Director General shall lay down the detailed arrangements for administration of the section.

Rule 22.2bis/13 Advisory Committee

- (i) An Advisory Committee shall advise the Director General on the administration of the Fund, and in particular on:
 - (a) decisions concerning the investment of the Fund's assets in accordance with the general policy laid down by the Council;
 - (b) decisions relating to any question of interpretation of the Rules both in general, and with reference to individual cases of an exceptional nature;
 - (c) proposals for amendment of the Rules governing the Fund.

The Advisory Committee shall consist of 6 members:

- the Director of Administration,
 - the Head of the Personnel Department,
 - the Head of the Finance Department,
 - three members, each elected separately by secret ballot, to represent the participants attached for administrative purposes to Headquarters, ESTEC and jointly ESOC/ESRIN, respectively.
- (ii) The members of the Advisory Committee representing the participants shall be elected for a two-year term, renewable.
 - (iii) The Advisory Committee shall elect its own Chair and, provided a quorum consisting of two ex-officio and two elected members is reached, shall determine its own procedure.

Last update: December 2020 (cf ESA/ADMIN/REG(2003)1, add. 98)

Rule 22.2bis/14 Investments

- (i) An Investment Committee, consisting of three members chosen for their special experience of investment, shall advise on how to invest the assets of the Fund so as to secure the best return without serious risk to the principal invested. Its members shall have the status of Consultants of the Agency, and shall be appointed by the Director General, after consultation with the Advisory Committee. The Director General shall report to the Council the names and qualifications of the Consultants appointed and their terms of appointment.
- (ii) The Director General shall, after consultation with the Investment Committee, decide on the investment of the assets of the Fund. He shall consult the Advisory Committee on general investment policy. The recommendations of the Investment Committee shall be made known to the Advisory Committee.
- (iii) In the event of any proposal to entrust the management of the Fund, or of any part thereof, to a body outside the Agency, in particular to grant such body power of decision concerning investments to be made, the Director General shall obtain the advice of the Investment Committee on the terms of the necessary contract and on the choice of body, and, after consultation with the Advisory Committee, submit the contract to the Administrative and Finance Committee for approval.

Rule 22.2bis/15 Cost of administration of the Fund

The expenses incurred by the Director General in connection with the investment of the assets of the Fund, and, in particular, those enumerated in the Director General's rules on Accounting Procedure and those arising out of the application of Rule 22.2 bis/14, shall be borne by the Fund.

However, the costs of the first investment shall be charged against the contributions at the time of their payment into the Fund.

Rule 22.2bis/16 Disputes

Disputes arising out of these Rules shall be dealt with in accordance with the provisions of Chapter VIII of the Staff Regulations.

Rule 22.2bis/17 Amendments

These Rules may be amended by the Administrative and Finance Committee, which shall pay due regard to the participants' vested rights at the time of amendment.

Rule 22.2bis/18 Entry into force

- (i) For participants who on 1 April 1964 were already on the payroll and had previously been staff members of the Secretariat of the European Preparatory Commission for Space Research (COPERS), the Director General shall on behalf of the Agency pay into the Fund a contribution covering their service previous to entry into force of these Rules. The percentage amount of this contribution shall be the same as defined in

Rule 22.2bis/7 (iii). To that contribution shall be added interest at a rate to be determined by the Council on proposal by the Director General.

For the same period participants shall pay into the Fund a contribution whose percentage amount shall be the same as defined in Rule 22.2bis/7 (ii). They shall be entitled to an interest-free loan to enable them to pay this contribution without delay. If such loan is made, interest shall be added to the staff member's contribution only in proportion to the amount actually reimbursed on the loan; interest shall be calculated and credited solely on the basis of the dates and amounts of the instalments successively repaid.

- (ii) Where contributions of the kind mentioned in Rule 22.2bis/9 have been borne by COPERS during the interim period, corresponding deductions shall be made from the accounts of the staff members concerned.
- (iii) Payments to a staff member shall be related only to the credits accruing over a period for which both his and the Agency's contributions have been received.

III. TRAVEL, MISSION AND REMOVAL EXPENSES

Rule 22.3/1 Summary

The enacting Rules under Regulation 22.3 determine the conditions for:

- (A) Reimbursement of travel expenses (Rules 22.3/3 to 22.3/10)
- (B) Grant of subsistence allowance (Rules 22.3/11 to 22.3/17)
- (C) Reimbursement of removal expenses (Rules 22.3/18 to 22.3/20)

Rule 22.3/2 Application

These Rules apply to a staff member:

- (i) on taking up duty, in respect of travel and removal from his place of residence to the duty station notified in his letter of appointment. This shall however not apply to staff members of the G-grade category upon taking up duty;
- (ii) on official mission on Agency service away from his duty station;
- (iii) on reassignment, in respect of travel and removal to the new duty station;
- (iv) on home leave, pursuant to Regulation 23.4 (ii), in respect of travel between duty station and home and return;
- (v) on cessation of employment with the Agency, in respect of travel and removal from the last duty station to the place of residence at the time of taking up duty or, where appropriate, to the place which is deemed to be his home pursuant to Rule 23.4 (ii)/4. This provision shall however not apply to staff members of the G-grade category, except where their last duty station before cessation of employment is different from the original duty station applicable on taking up duty.

Last update: December 2025 (cf. ESA/ADMIN/REG(2003)1, add. 126)

A. TRAVEL EXPENSES

Rule 22.3/3 Entitlement

- (i) A staff member shall be entitled to the reimbursement of travel expenses actually incurred:
 - (a) in respect of himself, in all the cases specified in Rule 22.3/2 above;
 - (b) in respect of his spouse, if he is entitled to the household allowance/ basic family allowance, for dependent children and for a person accompanying such children in the cases specified in Rule 22.3/2 with the exception of subparagraph (ii)².

For the purpose of this Rule the spouse of a staff member and his dependent children and the person accompanying them shall be assimilated to staff members of the same grade as himself.

- (ii) Travel requires the prior approval of the Head of Personnel, except for travel on an official mission or where otherwise covered by the Rules below.

Last update: October 2016 (cf. ESA/ADMIN/REG(2003)1, add. 78)

Rule 22.3/4 Air travel

- (i) Where a staff member is authorised to travel by air in the cases specified in Rule 22.3/2 (i), (ii), (iii) and (v), he shall be entitled to the reimbursement of an Economy Class air ticket when the journey by plane is three hours or shorter, and a Business Class air ticket when the journey by plane exceeds three hours.

Where a staff member is authorised to travel by air in the case specified in Rule 22.3/2 (iv), he shall be entitled to the reimbursement of an Economy Class air ticket only, irrespective of the duration of the flight.

- (ii) However, exceptions may be warranted by service needs. Furthermore, exceptions may be warranted by a medical certificate as to the staff member's state of health.
- (iii) Where a graduate trainee or an internal research fellow is authorised to travel by air, he shall be entitled to the reimbursement of an Economy Class air ticket only, irrespective of the duration of the flight.

Last update: July 2025 (cf ESA/ADMIN/REG(2003)1, add.123)

Rule 22.3/5 Travel by rail

Subject to any reduction in fare to which he may be entitled, and which he shall declare, a staff member travelling by rail shall be entitled to the reimbursement of the following:

² See Instr. 22.3/1/2

- (i) price of a ticket of the highest class available;
- (ii) sleeper supplement in the case of journeys involving night travel of not less than six hours.

Rule 22.3/6 Travel by sea

Staff travelling by sea shall be entitled to the reimbursement of the price of a First Class ticket, without, however, being entitled to a "luxury" cabin.

Rule 22.3/7 Exceptions to the foregoing Rules

- (i) Notwithstanding Rules 22.3/4, 5 and 6, the Head of Personnel may authorise a staff member to travel in a higher class, or invite him to travel in a lower class, where the class of transport corresponding to his grade under the said Rules is not available. Notwithstanding the same aforementioned Rules the Head of Personnel may also make a staff member use such means of transport as he may consider necessary when this is required in the interest of the Agency or by the staff member's state of health.
- (ii) If, owing to lack of room in the appropriate class, a staff member travels by a class below his entitlement, he will not be entitled to the payment of the difference, and it will not be used to pay for the travel of a person not entitled to travel at the cost of the Agency.

Rule 22.3/8 Travel by private car

A staff member may be authorised to travel by private car.

- (i) In such case he shall be entitled to a kilometric allowance, the amount of which is fixed according to the duty country, as set out in Table 2.
- (ii) In addition, if the staff member has been authorised to carry passengers, he shall be entitled to a supplementary allowance per kilometre corresponding to 10% of the relevant allowance shown in the attached table in respect of the first passenger, and to 8% for each additional passenger.
- (iii) If the route followed involves special charges (such as transport of the car by car ferry) such charges shall be repaid on the production of vouchers.
- (iv) A staff member authorised to use his private car travels at his own risk; he shall establish that he is insured against damage to third parties, including his passengers.
- (i) In the event of accident, loss or theft, the Agency shall incur no liability and shall not grant compensation for any damage or injury incurred either by third parties or by the staff member, except for the benefits specified in Regulations 22.1 and 22.2.
- (v) Where an allowance is paid for the use of a private car, no travel allowances shall be paid in respect of other staff members carried as passengers.

Rule 22.3/9**Local travel**

- (i) A staff member expressly authorised to travel on duty within the area of his duty station by taxi or public transport shall be entitled to the reimbursement of out-of-pocket expenses or, if he uses his private car, to the payment of a kilometric allowance as specified in Rule 22.3/8.
- (ii) Local travel as referred to in paragraph (i) above shall be taken to mean travel within a radius of not more than a one-hour ride by public transport from the duty Establishment, or from the staff member's residence if he travels from it directly without passing by the duty Establishment.
- (iii) In the event of local travel the staff member shall not be entitled to a subsistence allowance, nor to the reimbursement of the cost of meals unless the place in question has no canteen.
- (iv) Local travel is subject to written approval and an application for reimbursement, to be sought on special forms as provided for in the Instruction concerning mission orders.

In the case of a series of journeys, overall approval and reimbursement may be sought, and a monthly statement will then be drawn up of the distances covered and the duration of each journey.

Rule 22.3/10**Definition of expenses**

Travel expenses shall include:

- (i) the cost of transport by the most economical route by road, rail, sea or air, within the limits specified in the Rules;
- (ii) the cost of reservations;
- (iii) any excess luggage charges, should the luggage be carried for the requirements of the service or by special authorisation of the Head of Personnel;
- (iv) unavoidable incidental expenses.

B. SUBSISTENCE ALLOWANCE

Rule 22.3/11 Entitlement

A staff member shall be entitled to a subsistence allowance:

- (i) for travel in excess of 24 hours in the cases specified in Rule 22.3/2 (i), (iii) and (v);
- (ii) for the whole period of duty specified in Rule 22.3/2 (ii).

No subsistence allowance shall be payable in respect of home leave.

Rule 22.3/12 Rates

- (i) The rates of subsistence allowance shall be fixed and periodically reviewed for all Member countries of the Co-ordinated Organisations (see Table 5).
- (ii) Subsistence allowance in respect of travel outside Member countries of the Co-ordinated Organisations shall be fixed by the Personnel Department.

Rule 22.3/13 Method of calculation

- (i) A staff member travelling on mission shall be entitled to a daily subsistence allowance for each 24-hour period the mission lasts. He shall not (other than in the cases set out below) be entitled to a sum greater than the total amount of the subsistence allowance for each complete 24-hour period.
- (ii) No subsistence allowance shall be due for any period of less than four hours.
- (iii) Where the mission lasts four or more but less than eight hours, a staff member shall receive one-quarter of the daily subsistence allowance. The same shall apply for any period of four or more but less than eight hours, over and above any complete 24-hour period.
- (iv) Where the mission lasts eight hours or more and does not involve staying in official or commercial accommodation, the staff member concerned shall receive one-half of the daily allowance. The same shall apply for any period of eight or more but less than 24 hours, over and above any complete 24-hour period.
- (v) Where the mission lasts eight or more but less than 24 hours and involves staying in official or commercial accommodation, the staff member concerned shall be given the full amount of the daily subsistence allowance.
- (vi) In the absence of submission of the relevant invoice concerning the official or commercial accommodation, the daily subsistence allowance shall be reduced by 50%.
- (vii) Where the Agency takes direct charge of the costs of meals and overnight accommodation, or where these are included in the travel costs, the daily subsistence

allowance shall be reduced by 15% for each main meal and 50% for overnight accommodation provided for in the total amount of the costs (60% including breakfast). The same shall apply in cases where the staff member is entertained by a government or other authority or a firm.

Last update: December 2014 (cf ESA/ADMIN/REG(2003)1, add. 65)

Rule 22.3/14 Notional increase of travel time

For the calculation of subsistence allowance, travel time shall be increased by the following notional amounts:

- (i) 2 hours for a round trip by rail;
- (ii) 3 hours for a round trip by air; and
- (iii) 2 hours for a round trip by sea.

These notional periods are intended to cover travel time between home or office and the main station, airport or port, and return.

Rule 22.3/15 Temporary mobility

- (i) In the case of a temporary secondment or reassignment lasting more than one year and up to two years (three years for a secondment) for the purposes of which the staff member concerned needs to take up residence at a distance of more than 100 kilometres from his or her original duty station, a fraction of the daily subsistence allowance will be paid from the first day of the temporary mobility, at the rate of:
 - 25% for a staff member being neither married, nor having dependent children;
 - 30% for a staff member being married and/or having one dependent child;
 - 35% for a staff member having two or more dependent children.

The applicable daily rate of subsistence allowance is that for the country of posting.

Entitlement to allowances and indemnities established in Staff Regulations 21.2, 21.3 and 22.3 is subject to the satisfaction of the conditions laid down in the relevant Staff Rules.

- (ii) In the case of a reassignment, the maximum period of two years for payment of the fraction of the daily subsistence allowance may be extended, if during that period exceptional circumstances show this to be necessary, to a maximum of three years.

Last update: October 2016 (cf. ESA/ADMIN/REG(2003)1, add. 78)

Rule 22.3/16 Long-term missions

- (i) Subsistence allowance in respect of a mission exceeding two months shall be the subject of special arrangements under Instructions issued by the Director General.
- (ii) In the case of a mission lasting six months or more, the Director General may decide that the Agency will cover the travel expenses of the staff member's family for the journey to the place of mission and back.
- (iii) In the case of a mission lasting two months or more, the Director General may decide that the Agency will reimburse the cost of one return trip to the duty station if the staff member concerned wishes to take leave.

Rule 22.3/17 Expenses covered –Repayments

Subsistence allowance shall be deemed to cover all out-of-pocket expenditure during the relevant period, with the exception of travel expenses as specified in these Rules.

However, certain other out-of-pocket expenses incurred in the interests of the Agency may be the subject of supplementary reimbursement laid down in Instructions issued by the Director General.

C. REMOVAL EXPENSES

Rule 22.3/18 Conditions of repayment

- (i) A staff member shall be entitled, in the cases specified in Rule 22.3/2(i), (iii) and (v), to the repayment of the cost of moving his personal effects where the normal daily travel time by public transport between residence and duty station is more than an hour in each direction.
- (ii) Removal expenses shall be repaid:
 - (a) after confirmation of appointment on completion of the probationary period and provided that the removal is effected before notice of termination of appointment;

if the appointment is for a term of less than two years, or if the staff member resigns before having completed two years' service, removal expenses shall be repayable only in proportion to the time actually served out of those two years;
 - (b) on cessation of employment, provided that the removal is effected and the repayment claimed within two years thereafter³.

Rule 22.3/19 Ceilings

The cost of moving personal effects shall not be repaid in excess of the cost incurred for the following quantities:

Category	Staff entitled to the household allowance	Others
A and L	8000 kg or 40 m ³	4000 kg or 20 m ³
B and C	6000 kg or 30 m ³	3000 kg or 15 m ³

The above figures shall be increased by 500 kg or 2.5 m³ in respect of each dependent child.

Rule 22.3/20 Prior approval

Repayment of removal expenses shall be subject to prior approval of the removal estimate by the Head of Personnel and shall not exceed the approved amount.

³ See Rule 22.3/21 – Resignation before twelve months, or death.

D. MISCELLANEOUS PROVISIONS

Rule 22.3/21 Travel expenses – Removal Cessation of employment –Death

- (i) The repayment of travel and removal expenses on cessation of employment may be wholly or partly withheld where a staff member resigns before completing twelvemonths' service
- (ii) On the death of a staff member his representatives shall be entitled to the repayment of travel and removal expenses to which he would have been entitled under the Rules at the date of his death.

On the death of a staff member the Agency shall repay the cost of transporting the body from the place of death to his home or to any other place, provided that the amount repaid shall not exceed the cost of transport from his permanent duty station or place of official mission to his place of residence before appointment or to his home. The reasonable cost of any necessary preliminary treatment of the body shall be repaid.

Rule 22.3/22 Duplication of repayment

A staff member shall not be entitled to repayment under these Rules where the costs in question have been repaid by a Government or other authority, or a firm, or can be covered under a right vested in him before his appointment.

Rule 22.3/23 Experts, Consultants, Temporary Staff, Hors-Classe Staff, Graduate Trainees, Internal Research Fellows

The provisions of these Rules and of the Instructions relating to travel expenses and subsistence allowance shall apply to Experts and professional Consultants travelling on behalf of and at the express request of the Agency and to applicants called forward for interview.

- (i) Experts and professional Consultants shall be repaid at the rates laid down in their terms of appointment.
- (ii) Subsistence allowance for the Chairman of the Council and the Director General shall be calculated on the basis of 125% of the subsistence allowance rates granted to A7 staff on mission in the country concerned. The rate applicable to hors-classe staff, and to persons assimilated to them, shall be 115% calculated on the same basis.
- (iii) Any applicant called away from his place of residence shall be entitled to the repayment of his travel expenses and the payment of a subsistence allowance as specified in the Rules on travel expenses and in conformity with the level of the post to be filled, with the exception of staff already in post, who are governed by Rule 22.3/12.
- (iv) Letters of appointment of temporary staff may also specify that the Rules relating to travel expenses and subsistence allowance shall be applicable.

- (v) Graduate trainees and internal research fellows will not as a rule be authorised to travel on official mission on Agency service away from duty station, unless so required by exceptional circumstances, nor will they be entitled to repayment of removal expenses. However, graduate trainees and internal research fellows shall on taking up duty, on posting elsewhere and on cessation of employment as defined in Staff Rule 22.3/2 be authorised to take excess luggage within applicable ceilings.

Last update: July 2025 (cf. ESA/ADMIN/REG(2003)1, add. 123)

CHAPTER V
WORKING HOURS AND LEAVE

REGULATION 23

WORKING HOURS AND LEAVE

23.1 The working time of the staff of the Agency shall be laid down in the Staff Rules.

23.2 (i) Staff members may be required to work overtime or outside normal working hours.

(ii) Staff members of categories B, G and C shall be entitled to compensatory leave or payment for such work.

(iii) Staff members of category A/L shall not be granted compensation except:

- as compensatory rest periods, for work done at night or on public holidays or at weekends;
- in connection with special operations.

(iv) The procedures for applying these provisions shall be laid down in the Staff Rules.

23.3 The public holidays to which a staff member shall be entitled shall be determined in accordance with local practice.

23.4 Staff members shall be entitled, under conditions to be laid down in the Staff Rules, to:

(i) Paid annual leave at the rate of 2.5 working days for each month of service.

(ii) Paid home leave at the rate of 8 working days once in every two years of service.

(iii) Paid sick leave for up to 6 months, and paid leave for parenthood as follows:

- paid bonding leave of a minimum of 4 weeks upon becoming a parent through the birth or the adoption of a child;
- an additional paid pregnancy leave of a minimum of 14 weeks should they give birth.

(iv) Unpaid leave for up to one month per year for a period of compulsory military duty.

(v) Unpaid family care leave for up to two months for serious illness of a staff member's child, spouse, or parent and parental leave for up to a maximum of six months after the birth of a child.

23.5 The Director General may grant, under conditions laid down in the Staff Rules:

- (i) **Paid leave for up to 8 days per year for family reasons or in special circumstances.**
- (ii) **Unpaid leave for up to two months for imperative or private reasons not covered by the above provisions.**

23.6 In the cases covered by paragraphs 4 and 5 above, the staff member's post shall not fall vacant, and his qualification for advancement shall not be affected, except in the case covered by paragraph 5 (ii).

23.7 Staff members may be authorised to work part-time, under conditions laid down in the Staff Rules.

Last update: December 2025 (cf ESA/ADMIN/REG(2003)1, add. 126)

WORKING TIME

Rule 23.1/1 Normal working week

The normal working week shall comprise 40 hours, spread over the period from Monday morning to Friday evening.

The Director General, or, by delegated authority, the Head of Establishment shall fix the daily staff timetable.

Rule 23.1/2 Absence

- Unauthorised absence without a satisfactory explanation by the end of the third working day shall render a staff member liable to disciplinary action under Regulation 25 and following Regulations.
- Where a staff member is absent for more than 14 days without giving a reason, he shall be deemed to have abandoned his post and his appointment shall be deemed to have terminated on the first day of his absence, without notice.
- Any improper absence may, by decision of the Director General, be counted against the annual leave entitlement of the staff member concerned, or entail withholding the corresponding remuneration, independently of any disciplinary action that may be taken.

Rule 23.1/3 Working time

Working time shall be deemed to be the time during which the services of a staff member are immediately and directly available to the Agency; it shall not include travel time from home to work and back, or rest periods during which the staff member is not in fact available to the Agency.

OVERTIME

Rule 23.2/1 Overtime

Staff may be called upon to work overtime or to work outside normal working hours: in such event, any unjustified refusal to work overtime may give rise to measures specified in Rule 23.1/2.

Compensation or payment for the services involved shall be governed by:

- (i) Rule 23.2/2 - General overtime provisions applicable to occasional over- time actually worked in addition to normal working hours.
- (ii) Rule 23.2/3 - Flat monthly rate of remuneration for overtime regularly performed in addition to normal working hours.
- (iii) Rule 23.2/4 - Remuneration for shift work on special and continuous tasks by day and by night.
- (iv) Rule 23.2/5 - Launching campaigns: remuneration for special working hours at a flat daily rate of overtime.

Rule 23.2/2 General overtime provisions

(i) Definition

The term "overtime" shall apply to any work which, for reasons of urgency, is carried out in addition to normal working hours.

(ii) Authorisation

The official recording of overtime shall require written authorisation which must be given, on the proposal of the staff member's supervisor, as follows:

Day overtime (between 7 a.m. and 10 p.m.)	to be authorised by the Director responsible for the staff member concerned
Night overtime (between 10 p.m. and 7 a.m.) Work done on the Agency's non-working days	to be authorised by the Director General or Director holding delegated authority

Except in the event of force majeure, these authorisations shall be given beforehand. They must be obtained before each working period giving rise to overtime. The duration of their validity shall not exceed one month.

(iii) Ceiling

Overtime worked by a staff member shall not exceed 40 hours in any 4-week period.

In a single day's record of reckonable hours of overtime, fractions of an hour amounting to less than thirty minutes shall not be taken into account.

The Director General shall issue Instructions determining the method of rendering reckonable hours of overtime and fractions of an hour.

(iv) Verification

Overtime shall be worked at the place of duty; consequently travel time shall not be taken into consideration, other than in the case of international journeys after midnight for the purpose of a mission and referred to under paragraph (v) below.

The staff member's superior, who has requested the overtime to be worked, shall be responsible for the verification and recording of the overtime and its notification to the Personnel Office in due course.

(v) Rest

(a) Staff members shall be entitled to at least 10 hours rest at home between two consecutive working days, unless there are exceptional circumstances; for each period of 14 consecutive days of a launching campaign two days of rest shall be acquired.

(b) The Head of Establishment or his representative may require rest to be taken at any time compatible with the exigencies of the service.

(c) Meal breaks taken by staff members during the periods referred to in Regulation 23.2 shall be reckoned as working hours.

(d) Work at night, including intercontinental travel after midnight on mission, and work on a public holiday or at weekends shall give entitlement to compensatory rest; this rest shall follow immediately when occasioned by work done after midnight, and must be given as soon as the requirements of the service allow when occasioned by work on a public holiday or at weekends.

For B-, C- and G- grade staff such work may give entitlement to payment in lieu of compensatory rest.

The scales for calculating the compensation referred to in the present subparagraph are set out under para. (vi) below.

(vi) Rates

Compensatory leave or, where this is not possible, payment in addition to the normal monthly salary shall be calculated at the following rates¹:

For each hour of overtime:

¹ Including cost-of-living allowances. The remunerations laid down in these Rules, as well as the salary referred to (see Regulation 20), shall be the figures after deduction of internal tax. The hourly rate is calculated on the basis of 2000 working hours a year.

on working days	from 7 a.m. to 10 p.m.	1 hour's time off, or 0.06% of annual salary ¹
	from 10 p.m. to 7 a.m.	1½ hours' time off, or 0.09% of annual salary ¹
on non-working days		1½ hours' time off, or 0.09% of annual salary ¹

Last update: December 2025 (cf ESA/ADMIN/REG(2003)1, add. 126)

Rule 23.2/3 Flat monthly overtime rates

Some staff members of Category C working in special conditions and who regularly work longer hours than the staff as a whole may be granted, in addition to their normal emoluments, a flat monthly overtime payment.

Notwithstanding the provisions of Rule 23.2/2 (iii) this flat payment may amount to, but shall not exceed, the overtime payable in respect of 60 hours, at the rate of 0.06% of the annual salary.

The above flat rate may be reviewed in the light of the average number of hours actually worked.

Rule 23.2/4 Shift work

The Director General or Head of Establishment shall define the teams due to work on special technical programmes whose character requires continuous shift work, and their working hours. Each programme of shift work shall require an individual decision, valid for one month only.

The following compensation shall be granted in the form of time off, or, where this cannot be granted, in the form of payment per hour of shift work:

(i) For a normal period of work

- on working days:
 - 7 a.m. to 10 p.m. (outside normal hours): salary $\frac{1}{6}$ hour "off", or 0.01% of annual salary
 - 10 p.m. to 7 a.m.: $\frac{2}{3}$ hour "off", or 0.04% of annual salary
- on non-working days:
 - $\frac{2}{3}$ hour "off", or 0.04% of annual salary

Category A staff on shift work shall be entitled to compensation at two-thirds of the above rates.

(ii) For overtime:

the same rates as under the general provisions of Rule 23.2/2 (vi), i.e.:

- on working days:
 - 7 a.m. to 10 p.m.: 1 hour "off", or 0.06% of annual salary
 - 10 p.m. to 7 a.m.: 1½ hours "off", or 0.09% of annual salary
- on non-working days:
 - 1½ hours "off", or 0.09% of annual salary

Overtime worked by Category A staff may only be compensated by time off.

Rule 23.2/5 Launch campaigns and assimilated operations

(i) This Rule shall apply to:

- (a) launching campaigns, comprising the three phases of preparation, testing and launch proper, together with the "orbital" phase comprising placing on station and orbit control and possible correction;
- (b) continuous shift work for satellite tracking and telemetry operations, data acquisition, etc.;
- (c) urgent operations directly connected with a launching campaign, such as check-out and integration of a satellite which must be carried out promptly in order to deal with an unforeseen situation and in order not to jeopardise a launch schedule;
- (d) exceptional and urgent technical work required for the execution of an Agency programme, which can therefore be assimilated to the operations referred to under subparagraphs (a) to (c) above.

(ii) On the occasion of each of the operations referred to under paragraph (i), the Director General shall lay down, for the duration of that operation, the number of hours of day-work and night-work, outside and in addition to normal working hours to be reckoned on a daily flat-rate basis in respect of each team and staff category (A, B, C or G) taking part in those operations.

The flat number of overtime hours laid down for A grades shall be two-thirds of the number laid down for other categories taking part in the same operations.

The conditions governing compensation in the form of leave or payment laid down by Rule 23.2/2 (vi) shall apply to the above-mentioned flat number of hours; however, the flat number of hours laid down for A grades may be compensated by payment where compensatory leave cannot be granted.

Last update: December 2025 (cf ESA/ADMIN/REG(2003)1, add. 126)

RATES OF HOURLY ALLOWANCE IN LIEU OF TIME OFF

The following summary table shows the rates applicable in calculating overtime payments, which are additional to normal monthly salary:

1. Overtime (Rule 23.2/2 (vi))
Categories B, C and G
 - (i) on working days : 7 a.m. - 10 p.m.: 0.06% (of annual salary including cost-of-living allowance)
10 p.m. - 7 a.m.: 0.09% (of annual salary including cost-of-living allowance)
 - (ii) on non-working days : 0.09%
2. Flat monthly rate (Rule 23.2/3)
Category C
 - Flat monthly rate overtime : rates as in para. 1.
3. Shift work (Rule 23.2/4)
 - (a) Categories B, C and G
 - (i) Normal working time
 - on working days : 7 a.m.- 10 p.m.: 0.01% (outside normal hours)
10 p.m.- 7 a.m.: 0.04%
 - on non-working days: 0.04%
 - (ii) Overtime: rates as in para. 1 (i) and (ii)
 - (b) Category A
 - (i) Normal working time: $\frac{2}{3}$ of the supplements laid down for B, C and G grades.
 - (ii) Overtime: No payment; compensatory leave only.
4. Special working hours - Launching campaigns (Rule 23.2/5)
Categories A, B, C and G
 - Flat number of overtime hours
 - Flat rate for Category A: $\frac{2}{3}$ of rates applied to Categories B and G.

Last update: December 2025 (cf ESA/ADMIN/REG(2003)1, add. 126)

ANNUAL LEAVE

Rule 23.4(i)/1 Annual leave – Periods

- (i) Staff members are entitled and expected to take annual leave in the year in which it is earned. Annual leave may be taken in one or more instalments at the convenience of the staff member concerned and with due regard to the requirements of the service. It shall, however, include a mandatory period of three weeks annually, of which two weeks must be consecutive.
- (ii) Newly appointed staff shall not be entitled to leave until they have completed three months' service, unless specially authorised on good grounds in exceptional cases.
- (iii) On cessation of employment, financial compensation in respect of annual leave that could not be taken during preceding years and that has been carried forward to the current year may not exceed 20 working days.
- (iv) Annual leave earned after 31 December 2007 may be accumulated up to a maximum equivalent to two years of annual leave entitlement. Leave credit in excess of that maximum at the end of a given year and untaken leave days of the mandatory three-week period at the end of a given year shall be cancelled if not taken before 1 July of the following year.
- (v) For the purpose of the calculation of the annual leave entitlement as described in paragraph (iv) above, the 2.5 days of compensatory leave granted by the Administrative and Finance Committee will be considered as annual leave.
- (vi) For all staff members in post at 31 December 2007, untaken annual leave at that date will be managed separately and will consequently not be subject to paragraphs (i), last sentence, and (iv) above.

Rule 23.4(i)/2 Sickness on leave

Where, during his annual leave, a staff member suffers from an ailment that would have kept him away from work, his annual leave entitlement shall be extended by the period of incapacity duly established by medical certificate.

HOME LEAVE

Rule 23.4(ii)/1 Entitlement

- (i) Home leave will be granted to staff members who are entitled to the expatriation allowance in accordance with Rule 21.2/1 except those who, at the time of appointment, were nationals solely of the country of their duty station and of no other country.

The entitlement covers the staff member concerned, the dependent children and, if the staff member is in receipt of household allowance/ basic family allowance, the spouse.

- (ii) A staff member of Category C will not be entitled to home leave unless his entitlement to it is specifically stated in his letter of appointment or has been recognised before the entry into force of these Instructions.

Staff members of Category G are not entitled to home leave.

- (iii) Where two staff members who are husband and wife are both non-resident, but are of different nationality from each other, and both are serving in the Agency or one in the Agency and the other in a different Co-ordinated Organisation, they will each be entitled to home leave, either together in the same country if the home of each one is there, or separately in different countries if their homes are in different countries.

Last update: December 2025 (cf. ESA/ADMIN/REG(2003)1, add. 126)

Rule 23.4(ii)/2 Home-leave travel

- (i) The granting of paid home leave is conditional upon the staff member concerned in fact travelling to his home.
- (ii) Where a staff member is entitled to home leave in accordance with Rule 23.4(ii)/1(iii), the cost of only one journey each will be refunded every two years to the husband and wife and to the dependent children.

Rule 23.4(ii)/3 Travel time exceeding 12 hours

Where the travel time between duty station and home and return by the usual shortest and cheapest route is more than 12 hours it will not be included in the eight working days allowed for home leave.

Extra leave will be granted on the basis of the overall travel time by the approved route, as follows:

<u>Overall travel time</u>	<u>Extra leave</u>
12 to 30 hours	1 day

30 to 36 hours

1½ days

Rule 23.4(ii)/4 Home town

- (i) The place of recruitment at the time of appointment will as a rule be deemed to be the home of a staff member within the meaning of the Staff Regulations and Rules.
- (ii) Nevertheless, at the request of the staff member, the Director General may, at the time of recruitment or subsequently, determine the place which is deemed to be his home in the light of the place with which he has the closest connections, such as his last actual residence prior to appointment, or the country of which he is a national, or his duly proven centre of interest.

The home of a staff member who has married since his appointment and who is entitled to home leave is in principle the place where he was recruited or the centre of interest recorded for him under this Rule, before his marriage.

- (iii) In the absence of proof and in case of doubt the Director General may fix the notional home of a staff member in the capital of the Member State of which he is a national.
- (iv) The place of a staff member's home will not be fixed elsewhere than in a Member country of the Agency save in exceptional circumstances and in accordance with directives given by the Director General.

Home leave will not be granted outside the territory of the Agency's Member States except by the Director General's reasoned decision. The destination on such leave may not be outside Europe.

Rule 23.4(ii)/5 Nationals of non-member States

- 3. When the home of a staff member who is a national of a country that is not a Member State of the Agency cannot be deemed to be in Europe in accordance with the provisions of Rule 23.4 (ii)/4, leave of 8 working days may be granted to him on the following conditions:
 - (i) The staff member concerned must be entitled to the expatriation allowance.
 - (ii) The refunding of the travel expenses of the staff member and any of his rightful claimants is limited to the cost of travel to the capital of the Member State of the Agency in Europe which is farthest from his duty station.
 - (iii) The staff member and his possible rightful claimants must actually make the return journey outside Europe to his home country or to another country from where he was recruited by the Agency.
- 4. Subject to the above provisions, Rules 23.4 (ii)/1 to 4 shall apply.
- 5. The present Rule shall take effect from 1 September 1977. A staff member concerned by this Rule who by 1 September 1977 has served more than two years in the Agency or another Co-ordinated Organisation without benefiting from home leave will be entitled to one home leave only in respect of the period served up to that date.

SICK LEAVE

Rule 23.4(iii)/1 Maximum amount of paid sick leave

The maximum amount of six months' paid sick leave, within the meaning of Regulation 23.4(iii), shall be deemed to be reached when the aggregate amount of sick leave taken by a staff member:

- either in one unbroken period,
- or in several periods within twelve consecutive months,

reaches six months.

Rule 23.4(iii)/2 Staff member's rights

During paid sick leave a staff member shall retain full rights to all remuneration received before his sickness and all his rights to advancement and shall in addition be entitled to the other benefits provided by the Agency's Social Security rules. He shall also retain his appointment.

Rule 23.4(iii)/3 End of sick leave

Sick leave shall expire:

- (i) when the staff member resumes work, or, failing this,
- (ii) on the expiry of the contract in the case of a fixed-term appointment;

(iii) on the issue of a medical certificate that the staff member is incapable of resuming his duties on expiry of the six-month period of sick leave allowed by Rule 23.4(iii)/1 without prejudice to any continued entitlement to Social Security benefits as provided for under Regulation 22.1; the opinion of the Agency's medical adviser shall be duly communicated to the staff member to enable him, where appropriate, to request a counter-examination within the time limits specified in Rule 23.4 (iii)/1.

Rule 23.4(iii)/4 Non-resumption of duty upon expiry of sick leave

When a staff member does not resume duty upon expiry of his sick leave:

- Either (i) he shall be granted non-active status pursuant to Regulation 18.1 (i). In such case he shall continue to be entitled to the emoluments paid in the event of temporary incapacity under the terms of Rules 22.1/11 or 12 but shall not be entitled to any lump-sum payments under the Social Security Scheme or to payment of his Provident Fund holdings.

As regards the payment of personal contributions and the receipt of Social Security, Pension Scheme or Provident Fund benefits, the position of the staff member concerned shall be governed by Rule 18.2/1.

A staff member whose disablement is established as permanent and assessed at two- thirds or more may not be granted non-active status.

Or (ii) he shall be given notice pursuant to Regulation 15.3 (ii). In such case he shall cease to belong to the Agency's staff on the first day of the calendar month following the notification of termination of appointment if payment in lieu of notice is made in one lump sum covering the entire period of notice, or at the end of the period of notice if such payment is made on a monthly basis.

Payment in lieu of notice shall be awarded only where provided for under Rule 15.3/1.

In both the aforementioned cases the post of the staff member shall fall vacant. However, where a staff member is granted non-active status and where justified by the circumstances, the Director General may decide to delay notification of the vacancy.

PREGNANCY/BONDING LEAVE ²

Rule 23.4(iii)/5 Bonding leave

- (i) A staff member becomes entitled to bonding leave upon becoming a parent either through the birth or adoption of a dependent child. Bonding leave shall be taken within three months as of the dependent child's date of birth, or in case of adoption, as of the moment that a child for which an adoption procedure is pending, becomes mainly resident with the staff member. For staff members entitled to pregnancy leave in accordance with Staff Rule 23.4(iii)/6, bonding leave shall be taken within three months as of the end of that leave.
- (ii) Bonding leave shall consist of four weeks with full emoluments.
- (iii) The total bonding leave granted to the staff member shall be increased to a total of six weeks in the case of multiple births, adoption of two or more dependent children, or in the case where the arrival of the dependent child would give rise to the staff member to become eligible for payment of the handicapped child allowance or the disabled child supplement or the severely disabled child supplement.
- (iv) Bonding leave shall not be granted in the case where a staff member adopts a child that has been mainly resident with the staff member for more than one year.

Rule 23.4(iii)/6 Pregnancy leave

- (i) In addition to the paid bonding leave above, pregnancy leave of fourteen weeks with full emoluments shall be granted to a staff member who gives birth, upon presentation of an appropriate medical certificate.
- (ii) The amount of pregnancy leave shall be increased to a total of twenty-two weeks:
 - (a) in the case of multiple births, or
 - (b) when an expectant staff member has already had two live births or their household already has two dependent children.
- (iii) The medical certificate shall show the probable date of confinement. Pregnancy leave shall start not earlier than six weeks (eight weeks for situations falling under (ii)) before the date shown in the certificate and end eight weeks (fourteen weeks for situations falling under (ii)) after the date of confinement. If the actual amount of leave taken before the confinement is less than six (eight) weeks, the latter period of eight (fourteen) weeks shall be extended accordingly.

Rule 23.4(iii)/7 General provisions

² Major update of this section (formerly maternity/paternity leave) February 2023 (cf ESA/ADMIN/REG(2003)1, add. 108)

- (i) A staff member on pregnancy and/or bonding leave shall retain their right to remuneration, merit recognition, annual leave and home leave. Their post shall not be declared vacant.
- (ii) The concerned staff member shall continue to pay their personal contribution to the Social Security Scheme and to the Pension Scheme.
- (iii) In the event of their fixed-term appointment terminating during pregnancy leave, a staff member shall retain, until the termination of the said leave, their entitlement to emoluments and, where appropriate, to the other benefits specified in Regulations 22.1 and 2, provided they do not enter the service of another employer. Their post shall be declared vacant at the date of expiry of their contract.
- (iv) In the event of termination of an indefinite-term appointment - excepting the case of dismissal on disciplinary grounds - a staff member in a declared state of pregnancy shall be entitled to their emoluments up to the end of their pregnancy leave, provided they do not enter the service of another employer.

LEAVE FOR MILITARY DUTY

Rule 23.4(iv)/1 Rights and benefits

- (i) A staff member on unpaid leave for reasons of military duty shall retain his post as well as his rights to advancement and to annual leave and home leave.
- (ii) During unpaid leave for military duty a staff member shall pay:
 - his own and the Agency's contribution to the Social Security Scheme, and
 - his personal contribution to the Pension Scheme.

Where applicable he may pay his own and the Agency's contributions to the Provident Fund during the period in question.

- (iii) In any event, the benefits provided under the Agency's Staff Rules shall only be granted on condition that the staff member concerned subrogates the Agency with regard to any right he may have to similar benefits under the relevant national scheme.

PARENTAL / FAMILY CARE LEAVE

Rule 23.4(v)/1 Purpose

- (i) A staff member shall be entitled to take unpaid family care leave for a maximum of two months owing to the serious illness of a child, spouse, or parent.
- (ii) A staff member shall be entitled to take parental leave for a maximum of six months on the birth of a child and up to the child's third birthday. The first two months of leave are granted upon request. Should a staff member request parental leave beyond two months, leave exceeding two months may be granted at the discretion of the hierarchy, in particular with due regard to the requirements of service.
- (iii) Taking this leave shall not have the effect of extending the duration of a fixed-term appointment.

Rule 23.4 (v)/2 Staff member's rights –Contributions

- (i) A staff member on parental/family care leave shall retain the right to his post and rights of advancement, but that period shall not count towards the accrual of annual leave.
- (ii) The staff member on family care leave shall not be paid his salary during the leave period, but shall continue to be entitled, as applicable, to the allowances and supplements for dependants, disabled or handicapped children and education allowance.
- (iii) The staff member on parental leave will during the first two months of leave receive the proportion of his salary for his grade, step and increment corresponding to 30% of full-time working hours, or corresponding to 30% of the hours worked as a proportion of full-time working hours in case of part-time work. No salary will be paid during the last four months of parental leave. During the entire leave period, the staff member shall continue to be entitled, as applicable, to the payment in full of the following allowances and supplements:
 - dependant allowance,
 - handicapped-child allowance,
 - dependent child supplement,
 - supplement for disabled or severely disabled child,
 - supplement for disabled and dependent parent, and
 - education allowance.
- (iv) During parental/family care leave, the staff member shall continue to pay his personal contributions to the Social Security Scheme and to the Pension Scheme or Provident Fund (whichever is applicable), and shall be entitled to the relevant benefits. For the purpose of calculating the personal contributions of the staff member on parental leave, the salary immediately before the start of the leave period serves as calculation

basis including any evolution thereof due to subsequent adjustments and advancement.

Last update : May 2021 (cf ESA/ADMIN/REG(2003)1, add.92)

SPECIAL LEAVE WITH PAY

Rule 23.5(i)/1 Purpose

- (i) Special leave with pay, the duration of which is left to the discretion of the Head of Personnel, may be granted in the following cases and up to the following maximum number of working days:

- (a) For important family reasons:

Marriage of a staff member	5 days
Marriage of child	2 days
Birth of a child	2 days
Death of a spouse or of a child	5 days
Death of a parent	4 days
Death of a brother, sister, or grandparent	2 days
Death of another blood-relation or relation by marriage	1 day
Illness of a child, spouse, parent or grandparent	8 days

Where travel outside the duty station is involved, the necessary time may be granted in addition, according to Rule 23.4 (ii)/3.

- (b) For personal reasons:

Examinations	8 days
Household removal	3 days
National elections or referenda in a staff member's home country	1 day

These maximum periods include travel time.

- (ii) If the special leave granted within a period of twelve months amounts to a cumulative total of eight days, no further special leave will be granted in that period.

Rule 23.5(i)/2 Staff member's rights

A staff member on special leave with pay shall retain his rights in the same way as in the case of annual leave.

UNPAID LEAVE

Rule 23.5(ii)/1 Purpose

- (i) The Director General may, after consulting the departmental head of the staff member concerned, grant unpaid leave, not exceeding two months, to enable him to complete studies or research deemed to be in the interests of the Agency, or on exceptional or urgent grounds not specified under Regulation 23.5 (i) or elsewhere in the Regulations.
- (ii) A staff member may be required to exhaust his rights to annual leave before taking unpaid leave.
- (iii) The grant of unpaid leave shall not have the effect of extending the duration of a fixed-term appointment.

Rule 23.5(ii)/2 Staff member's rights –Contributions

- (i) A staff member on unpaid leave shall retain his right to his post but his rights of advancement shall be suspended, and that period shall not count towards the accrual of annual or home leave.
- (ii) However, a staff member on unpaid leave shall continue to pay his personal contributions to the Social Security Scheme and to the Pension Scheme or Provident Fund (whichever is applicable), and shall be entitled to the relevant benefits.

PART-TIME WORK

Rule 23.7/1 Part-time work

- (i) Part-time work is the performance of at least 50% of full-time work. The arrangements applicable to part-time work are defined in Instructions issued by the Director General, who will, in particular, establish the proportions by which working time will be reduced.
- (ii) Staff members working part-time will receive the proportion of the salary for their grade, step and increment corresponding to the hours they work as a proportion of full-time working hours.
- (iii) The applicable provisions regarding pensions are those specifically laid down in the Pension Scheme Rules and Instructions. In particular, for the purpose of calculating pension entitlements, periods of part-time service will count in accordance with the ratio between the working hours corresponding to part-time service and the official number of hours for full-time work. Contributions to the Provident Fund will be calculated on the basis of the salary actually received.
- (iv) The conditions for part-time work will be laid down in a rider to the staff member's current letter of appointment.

Part-time work will not alter the length nor lead to any extension of a contract with a fixed end-date.

Last update : May 2021 (cf ESA/ADMIN/REG(2003)1, add.92)

REGULATION 24

WORKING CONDITIONS

The Director General shall issue Instructions ensuring that the work premises meet the necessary health and safety requirements.

Rule 24/1**Responsibility of Establishments**

- (i) Each Head of Establishment shall draw up and keep up to date special instructions pursuant to Regulation 24 and shall ensure that they conform with local labour legislation. Local instructions on industrial health and safety shall be communicated to the Director General, who shall, if necessary, impose common standards to all Establishments of the Agency.
- (ii) The Head of each Establishment shall ensure that the aforesaid instructions are displayed in his Establishment and notified to his staff.

CHAPTER VI
DISCIPLINE

REGULATION 25

DISCIPLINARY SANCTIONS

25.1 Any failure on the part of a staff member to carry out his duties and obligations may constitute an offence liable to disciplinary action. Disciplinary action may also be taken against staff members who have made false statements when applying for employment.

25.2 The following disciplinary sanctions may be imposed by the Appointing Authority:

- (i) reprimand,**
- (ii) demotion in step(s),**
- (iii) demotion in grade(s),**
- (iv) dismissal.**

25.3 One sanction only may be awarded for one and the same offence.

Last update: December 2020 (cf ESA/ADMIN/REG(2003)1, add. 98)

Rule 25.1/1**Offences under the Regulations**

- (i) Any act or omission, whether deliberate or resulting from negligence, committed by a staff member in contravention of the terms of his appointment and of the Staff Regulations, Rules and Instructions, shall be construed as an offence within the meaning of Regulation 25.1 and may lead to disciplinary action.
- (ii) An offence against national legislation may also be construed as an offence within the meaning of Regulation 25.1 if it affects the good name of the Agency.

Rule 25.2/1**Severity of disciplinary sanction**

The severity of the disciplinary sanction imposed shall be commensurate with the seriousness of the offence. To assess the seriousness of the offence and to decide upon the sanction to be imposed, account shall be taken of the specificities of each situation, in particular of:

- (i) the nature of the offence and the circumstances in which it occurred,
- (ii) the extent to which the offence adversely affects the integrity, reputation or interests of the Agency,
- (iii) whether the offence is deliberate or results from negligence,
- (iv) the motives for the staff member's offence,
- (v) the staff member's duties and responsibilities,
- (vi) whether the offence involves repeated action or behaviour.

Last update: December 2020 (cf ESA/ADMIN/REG(2003)1, add. 98)

REGULATION 26

PROCEEDINGS

- 26.1** Disciplinary proceedings shall begin with notification to the staff member concerned of a request for explanations regarding the offence with which he is reproached; this notification shall be in writing, not later than 15 working days following establishment of the fact that may give rise to a disciplinary sanction.
- 26.2** The staff member concerned shall be given a time limit of 8 working days, to supply explanations and justifications in reply to the notification referred to in paragraph 1 above.
- 26.3** Pursuant to Regulation 30.1 (i), the opinion of an Advisory Board must be sought before the Appointing Authority pronounces dismissal in accordance with Regulation 25.2 (iv).
- 26.4** No disciplinary sanction may be taken after expiry of a maximum period of 30 working days following reception of
- the explanation duly furnished by the staff member concerned, or
 - the opinion of the Advisory Board, where applicable.
- 26.5** All sanctions shall be notified to the staff member in writing, with the reasons therefore, and shall be signed by the Appointing Authority.
- 26.6** If the sanction is one of the three mentioned in Regulation 25.2 (i), (ii) and (iii), the staff member may, after a period of three years, request that all evidence concerning the sanction be deleted from his personal file.

Rule 26/1**Procedure**

- (i) When a staff member's Director considers that he has committed an offence which renders him liable to disciplinary action, the Director shall draw up a written report setting out in detail the fact alleged against the staff member concerned; this report shall show to what extent the said fact amounts to an offence and shall constitute the first piece of documentary evidence in the disciplinary proceedings.

The report may not contain any reference to the sanction deemed appropriate.

The Head of the Personnel Department may also draw up such a report directly if he considers it necessary or following an investigation procedure, in this case, he shall first submit it to the staff member's Director for opinion.

- (ii) The report by the staff member's Director shall be forwarded without delay to the Head of the Personnel Department who, after studying it, shall notify the staff member concerned in writing not later than 15 working days after the alleged offence came to the knowledge of the Director; the purpose of this notification is to ask the staff member concerned to explain and justify his position and to warn him that the alleged offence may give rise to a disciplinary sanction.
- (iii) The staff member shall be given a time limit of 8 working days in which to supply explanations and justifications in writing to the Head of the Personnel Department, who may extend this time limit in circumstances outside the staff member's control.
- (iv) The report, together with the explanations and justifications of the staff member concerned, shall then be submitted, within a time limit of 8 working days, to the staff member's Director and then to the Director General by the Head of the Personnel Department, with a recommendation as to the action to be taken.
- (v) Within 8 working days of receiving the explanations and justifications given by the staff member concerned in accordance with paragraph (iii) above, the Director General shall decide:
- to terminate the proceedings, or
 - to award a sanction, or
 - in the case provided for in paragraph (vi) below, to seek the opinion of an Advisory Board.

- (vi) When the sanction envisaged is dismissal and if the Director General considers it advisable to go ahead with the proceedings, he shall seek the opinion of an Advisory Board not later than eight working days after receiving the documents referred to in paragraph (iv) above.

After the procedure laid down in Rules 32/1 to 9 has been complied with, the Advisory Board's reasoned opinion shall be communicated in writing to the Director General as well as to the staff member concerned, who may add his comments to it.

The Director General shall take his decision within thirty working days of receiving the Advisory Board's opinion.

- (vii) In the case of staff appointed by the Council pursuant to Regulation 6.1 (i), the Director General shall report to the Council on the sanction he considers justified, within thirty

working days of receiving the explanations and justifications provided for in paragraph (iii) above. This time limit may be extended until the next Council session.

The Council shall decide whether the proceedings should be terminated or a sanction awarded.

The opinion of an Advisory Board shall in no circumstances be sought, either before or after a decision relating to staff appointed by the Council.

The Council's decision, signed by the Chairman of the Council and by the Director General, shall be notified in writing to the staff member concerned.

- (viii) In the event of failure to keep to the time limit laid down in Regulation 26, disciplinary action shall no longer be pursued or initiated against the staff member in respect of the alleged offence.
- (ix) When the staff member concerned has been invited to give his explanation of an alleged offence and it has subsequently been decided not to pursue disciplinary action against him, he shall be so informed in writing. In such event, no trace of the disciplinary proceedings is to appear in the staff member's personal file.
- (x) Sanctions may not be made retroactive to a date earlier than that on which an alleged offence was noted.
- (xi) All disciplinary sanctions shall be entered in the personal file of the staff member concerned, and the disciplinary proceedings shall therefore be attached to that file.

Last update: December 2020 (cf ESA/ADMIN/REG(2003)1, add. 98)

Rule 26/2 Withdrawal of record from personal file

- (i) If a staff member requests that all evidence concerning a sanction be deleted from his personal file, the Director General shall seek the opinion of the staff member's Director and shall send his reply to the staff member concerned within thirty working days of receiving the request. The reasons for any refusal of a request shall be fully stated. If a reply is not sent within the specified time limit, the request shall be considered as granted.
- (ii) If the request is granted, all documents relating to the disciplinary proceedings, even indirectly, shall be withdrawn from the personal file in accordance with Rule 8/6 (v).

REGULATION 27

**STAFF MEMBER'S RIGHTS TO REQUEST
DISCIPLINARY PROCEEDINGS**

A staff member who considers that an offence punishable under Regulation 25 is alleged against him may request that disciplinary proceedings be initiated in order that his position be clarified.

Rule 27/1**Written request to the Director General**

- (i) The request provided for under Regulation 27 must be addressed in writing to the Director General, specifying the offence which the staff member concerned believes to be alleged against him and justifying and explaining his position. A copy of this request must be sent at the same time to the staff member's Director.

Such action by a staff member shall be allowable only if the alleged offence has not already been notified to him in writing or given rise to disciplinary proceedings.

- (ii) Within thirty working days of receiving the request the Director General shall inform the staff member concerned, in writing, of the outcome of his enquiry.
- (iii) The provisions of the Rules under Regulations 25 and 26 shall apply, by analogy, to the procedure laid down in this Rule.

REGULATION 28

SUSPENSION PENDING FURTHER ACTION

- 28.1 Where there is a strong presumption of serious failure on the part of a staff member to carry out his duties or obligations, he may be suspended by the Director General pending further action.**
- 28.2 The case of a suspended staff member must be decided within three months from the date on which he receives notification of suspension, except where the Advisory Board has been asked for its opinion in the matter or pending the result of penal proceedings.**
- 28.3 Suspension has no other effect than to suspend a staff member from the performance of his duties.**

Last update: December 2020 (cf ESA/ADMIN/REG(2003)1, add. 98)

Rule 28.1/1**Notification of staff member and of Council Chairman**

- (i) Suspension shall be notified to the staff member in writing by the Director General at such time as he considers appropriate in the course of the procedure laid down in Rule 26/1 (i) to (v).
- (ii) The Director General must immediately inform the Chairman of the Council of such notification if the staff member concerned was appointed by the Council pursuant to Regulation 6.1 (i).

Rule 28.3/1**Status during suspension from duty**

- (i) Suspension does not constitute a disciplinary sanction.
- (ii) During suspension the staff member shall continue to receive his remuneration and be entitled to advancement as well as to the usual benefits provided for under the Staff Regulations.

REGULATION 29

IMPLEMENTATION

The implementation of Chapter VI, on Discipline, shall be governed by the Staff Rules.

CHAPTER VII
ADVISORY BOARD

REGULATION 30

COMPETENCE ¹

30.1 The Director General shall be advised by an Advisory Board set up to deliver an opinion as provided hereunder:

- (i) The opinion of an Advisory Board shall be sought by the Director General before deciding on a termination of appointment pursuant to Regulations 15.3 (ii), and 15.4 (v) or on a disciplinary dismissal pursuant to Regulations 15.2 and 25.2 (iv).**
- (ii) The opinion of an Advisory Board shall be sought, when a staff member, a former staff member or a person entitled under them considers that a decision taken by the Director General concerning him, should be rescinded on one of the grounds stated in Regulation 33, which defines the competence of the Administrative Tribunal.**

For decisions explicitly excluded from the Advisory Board procedure in the Staff Rules and decisions referred to in subparagraph (i) above the staff member shall submit his case directly to the Administrative Tribunal.

The parties may agree not to seek the opinion of the Advisory Board and in such event the staff member may submit his case directly to the Administrative Tribunal.

30.2 The opinion of an Advisory Board may not be sought more than once in connection with one and the same case.

Last update : May 2021 (cf ESA/ADMIN/REG(2003)1, add.92)

¹ Major update of Regulation 30, as well as of the corresponding Rule: December 2020 (cf ESA/ADMIN/REG(2003)1, add. 98)

Rule 30.1**Access to the Advisory Board**

For the purpose of Regulation 30.1(ii) any reference to the term "staff member" under the rules applicable to the Advisory Board (Chapter VII) shall comprise a staff member, a former staff member and a person entitled under them.

REGULATION 31

COMPOSITION AND DELIBERATIONS ¹

- 31.1** An Advisory Board set up to examine a case pursuant to Regulation 30 shall comprise the Chair and two members. In exceptional cases, the Director General may decide to set up an enlarged Advisory Board comprising the Chair and four members.
- 31.2** The Chair of the Advisory Board shall be appointed by the Director General after consultation with the Chair of the Central Staff Committee. The Chair shall enjoy the privileges and immunities provided for in Article XVII of Annex I to the Convention for the establishment of the Agency.
- 31.3** The members of each Advisory Board shall be nominated by the Chair of the Advisory Board in equal numbers from the two pools of staff members, one pool appointed by the Director General and the other pool appointed by the Chair of the Central Staff Committee.
- 31.4** The Advisory Board shall deliver its reasoned opinion unanimously. Failing this, the individual opinions of its members shall be communicated to the Director General.
- 31.5** The Advisory Board shall be completely independent in its deliberations; its meetings and its work shall be confidential.
- 31.6** The Advisory Board's reasoned opinion shall be communicated to the staff member concerned.

¹ Major update of Regulation 31, as well as of the corresponding Rules and Instructions: December 2020 (cf ESA/ADMIN/REG(2003)1, add. 98)

Rule 31/1 Chair of the Advisory Board

The Director General shall appoint, after consultation with the Chair of the Central Staff Committee, a Chair of the Advisory Board with recognised competence in law for a mandate of five years, renewable once. He shall not be an active or former staff member of the Agency or of a delegation of a member country of the Agency. The Chair shall be independent. He shall neither seek nor accept instructions from anyone whatsoever in the exercise of his duties.

Rule 31/2 Advisory Board pool members

The Director General and the Chair of the Central Staff Committee shall each appoint a pool of ten staff members who can be nominated as members of an Advisory Board. Each member of either pool shall be appointed for a period of three years, renewable without limitation. During their mandate, pool members shall not participate as assistant or representative of a staff member in investigation, Advisory Board or Administrative Tribunal proceedings.

In no case shall a staff member from the Human Resources Department be appointed to either Advisory Board pool.

Rule 31/3 Replacement of an Advisory Board pool member

In the event of a member's resignation from the Advisory Board pool, cessation of duty or incapacity to exercise his functions, he shall be replaced by a new member appointed in accordance with Rule 31/2.

Rule 31/4 Composition of the Advisory Board

- (i) The Chair of the Advisory Board shall nominate the members of an Advisory Board for each case in equal number from the two pools set up in accordance with Rule 31/2:
 - within eight working days from notification to the Secretary of the Board of the Director General's decision to request the prior opinion of an Advisory Board in the cases specified in Regulation 30.1 (i) and in accordance with Rule 15.6/1;
 - within fifteen working days from receipt by the Secretary of the Board of the staff member's request pursuant to Regulation 30.1 (ii), unless the Director General rescinds or amends the contested decision or unless it is agreed with the staff member to submit the case directly to the Administrative Tribunal.
- (ii) The members of the Advisory Board shall be of at least the same grade as the staff member concerned.
- (iii) The members of an Advisory Board set up to examine a given case shall not include any of those involved in drawing up the report shown to the staff member during the process leading up to the contested decision, nor any of his superiors or subordinates.
- (iv) The staff member concerned shall be immediately informed by the Secretary of the Advisory Board of the names of its members.

- (v) The staff member concerned shall be entitled to object, within eight working days, providing reasons, to maximum four members of the Advisory Board during its establishment.

Within the same time limit, Board members may ask to be excused from Advisory Board duty for legitimate reasons and shall withdraw in case of conflict of interest.

The Chair of the Advisory Board, considering the reasons as justified, shall replace forthwith the Advisory Board member concerned and inform the Secretary of the Board accordingly.

- (vi) The Chair of the Advisory Board, if he considers an apprehension of bias against his person as justified, shall immediately inform the Director General. For the specific case, the Director General shall appoint an alternate Chair replacing the statutory Chair.

Rule 31/5 Secretariat facilities for the Board

- (i) The secretariat facilities for the Advisory Board shall be provided by a staff member designated as Secretary by the Director General for an indefinite period.
- (ii) The Director General shall inform the Secretary of the names of the ten Advisory Board pool members appointed by him. The Chair of the Central Staff Committee shall likewise inform the Secretary of the names of the ten Advisory Board pool members he has appointed.
- (iii) The Director General shall inform the Chair of the Advisory Board of the request for the Board's opinion and whether an enlarged Advisory Board is to be set up. The Chair of the Advisory Board shall inform the Secretary of the nomination of the two/four members to set up an Advisory Board. The Secretary shall immediately convene the Board as provided for in Rule 32/3, and may be present at its proceedings and deliberations.
- (iv) The Secretary shall be responsible for all the formalities prescribed under this Rule, and for ensuring that the time limits foreseen in Rules 32/3 (iii) and 32/4 are observed. This shall include all communication with the Chair of the Advisory Board, the members of the Advisory Board and the parties to the procedure.

REGULATION 32

PROCEDURE ¹

- 32.1** The procedure governing the intervention of the Advisory Board shall be laid down in the Staff Rules. It must ensure on the one hand the independence of the Board's deliberations, and on the other hand the right of both the staff member concerned and the representative of the Agency to be heard by the Board and develop all their arguments orally. Neither party may produce evidence without giving advance notification of it to the other party.
- 32.2** If unable, on valid grounds, to appear before the Board, the staff member concerned may arrange to be represented by another staff member or one external lawyer.
- 32.3** Each of the parties may be assisted by one staff member or one external lawyer.
- 32.4** The Board shall meet and deliberate in private.
- 32.5** The Staff Rules shall lay down the time limits within which the request must be made for the Board's opinion and within which the Board must meet.

¹ Major update of Regulation 32, as well as of the corresponding Rules and Instructions: December 2020 (cf ESA/ADMIN/REG(2003)1, add. 98)

Rule 32/1**Prior opinion of the Advisory Board**

- (i) The Advisory Board shall be responsible for providing the Director General with elements for appraisal prior to his reaching a decision on a proposal for a disciplinary dismissal under Regulation 15.2, or termination of appointment under Regulations 15.3 (ii), or 15.4 (v), as the case may be.
- (ii) A prior opinion is not obligatory in the event of termination of appointment on the grounds of loss of employment within the meaning of Regulation 15.4 (i) to (iv), or termination during or at the end of a probationary period, as provided for in Regulation 15.3(i); however, in such cases, the Director General may, in agreement with the staff member concerned, seek the prior opinion of an Advisory Board.
- (iii) The Director General shall seek the opinion of an Advisory Board within eight working days from receiving the report together with any explanations or justifications by the staff member, forwarded with the proposal by the Head of the Personnel Department in accordance with the procedure laid down for termination of appointment or dismissal.

Alternatively the Director General may decide to take no further action on the proposal for a termination of appointment or dismissal, or he may ask for additional information.

Last update : May 2021 (cf ESA/ADMIN/REG(2003)1, add.92)

Rule 32/2**Opinion subsequent to the Director General's decision**

- (i) In cases of termination of appointment other than those specified in the preceding Rule, or following on any other decision by the Director General, the opinion of an Advisory Board must be sought when the person concerned has informed the Director General in writing that he intends to contest the decision taken.

Following on such a request the Advisory Board can be called on to deliver an opinion only on disputes which may be submitted to the Administrative Tribunal, and within the same limits of competence.

In view of this, the opinion of the Advisory Board shall relate only to the correctness of any procedure called in question, the legality of the decisions contested or the justification for a staff member's request to be indemnified.

The opinion may also contain suggestions for reconciling the two parties.

- (ii) The request for the opinion of an Advisory Board must be made by the staff member within three months from the date of the notification of the disputed decision or in the absence of a decision, the time limit shall be six months from receipt of the staff member's request by the competent authority. In these cases, the period during which an appeal may be made to the Administrative Tribunal shall be postponed to start from the date of the final decision taken by the Director General after receiving the recommendation of the Advisory Board.
- (iii) The Director General shall, within fifteen working days from the request by the staff member, make known his position and shall either rescind or modify his previous decision or forward the staff member's request for an opinion to the Secretary of the Advisory Board.

However, where mediation is under way on the day of the staff member's request, the Director General shall wait until the notification of the outcome of the mediation, before making his position known. Irrespective of any notification of the outcome of a mediation, the position from the Director General shall be notified within a maximum period of two months following the request for an opinion by the staff member, unless the staff member agrees to extend such deadline.

- (iv) In the cases covered by this Rule a direct appeal to the Administrative Tribunal, without requesting the opinion of the Advisory Board, may be lodged only when explicitly foreseen in the Staff Rules or with the written agreement of the two parties concerned, not later than one month from the notification of the Director General's position, referred to in paragraph (iii) above.

Rule 32/3 Convening of the Advisory Board and constitution of case files

- (i) The Chair of the Advisory Board shall fix the date of the meeting of the Advisory Board, as soon as its members have been nominated.
- (ii) The Secretary shall convene the members of the Board and the parties in writing.

From there onward neither party may desist from the procedure without the agreement of the other.

- (iii) The Secretary shall forward to the members of the Board and the staff member, at the latest 15 working days before the hearing, together with the letter convening the meeting, the introductory report by the Director General containing an overall review of the below mentioned documents and copies of the following:
 - in all cases where Regulation 30.1 (i) applies, the Director General's request for the prior opinion of the Advisory Board together with the grounds for the decision envisaged;
 - in all cases where Regulation 30.1 (ii) applies, the Director General's decision, together with its confirmation as provided for in Rule 32/2 (iii) and the staff member's request for an opinion.

The secretary shall also forward a copy of the case file, comprising the following documents, as the case may be:

- the report² drawn up by the staff member's Director, leading up to the decision envisaged or already taken;
- the notification of this report to the staff member by the Human Resources Department³;

² The report referred to in paragraph(iii) is the report drawn up in accordance with the Rules in connection with a probationary period, a proposal for termination of appointment, or disciplinary action.

³ The report referred to in paragraph (iii) is the report drawn up in accordance with the Rules in connection with a probationary period, a proposal for termination of appointment, or disciplinary action.

- any explanation or justification by the staff member;
- any comments by the staff member's Director or the Human Resources Department;
- the proposal made to the Director General with a view to dismissal, termination of appointment or any other measure contested by the staff member⁴.

Rule 32/4 Statement in defence

The staff member concerned may if he so desires submit to the Secretary of the Advisory Board, in advance of the meeting, a statement in defence in addition to any explanation or justification furnished previously.

The Secretary shall immediately forward the statement to the members of the Advisory Board and the Director General at the latest 5 working days prior to the hearing.

Rule 32/5 Forms of evidence – Personal file

- (i) The Director General and the staff member concerned may adduce any evidence they consider appropriate and may request enquiries in line with Rule 32/6 paragraph (v).
- (ii) The staff member concerned and the Director General shall have access to all documents and forms of evidence submitted to the Board. The staff member may consult his personal file, and may make a copy of it, once he has been notified to attend the meeting. The personal file shall be made available to the Advisory Board.

Rule 32/6 Meeting of the Advisory Board

- (i) The Chair shall direct the proceedings, which shall take place in private in one of the languages referred to in the arrangements for the use of languages in the Agency, at the prior request of the staff member concerned.
- (ii) The Board may investigate a case in the absence of either side, provided that the date of the meeting has been regularly notified to it, except when a party has been unavoidably prevented from attending.

If either side fails to appear before it, the Board may close the meeting and pronounce its recommendation based on the written exchange and the evidence presented to the Advisory Board.

- (iii) All documents in the case file shall be produced in one of the languages referred to in the arrangements for the use of the languages of the Agency. Evidence may be submitted in any other official language, of a member country of which the staff member concerned is a national. The Chair of the Advisory Board may decide whether a translation of the documents is necessary for the proceedings, if it cannot be provided by the staff member.

⁴ This proposal to the Director General and the introductory report referred to in the first subparagraph of Rule 32/3 (iii) are to be drawn up by the Head of the Human Resources Department.

- (iv) All documents in the case file shall be deemed confidential. Any person who has been present at a sitting of the Board shall be bound to absolute secrecy on the facts learnt by him, and on opinions expressed, during the proceedings.
- (v) The Board, on its own initiative or at the request of either side, shall initiate whatever enquiries it considers appropriate.

Rule 32/7 Deliberations

- (i) The opinion of the Advisory Board shall be delivered at the latest the day after it met, unless it is necessary to postpone it pending further enquiries. In any event, this opinion must be delivered within one month from the hearing of the case. Failing this, the Director General's decision shall be considered as confirmed.
- (ii) Save for Rule 32/6 (ii) second subparagraph, the Board may not express its opinion until it has heard a final summing up of the Agency's representative and has given the staff member, his representative or assistant due opportunity to reply.
- (iii) After the proceedings have been concluded the Board shall deliberate on the opinion(s) to be given. The parties shall not be present during the deliberations. The Board may, however, call on the assistance of interpreters. The Chair shall remind all present that they are bound to secrecy.
- (iv) The opinion(s) of the Advisory Board concern the following points:
 - the conformity of the procedure with the Staff Regulations, Rules and Instructions;
 - the justification or lack of justification for the decision taken or envisaged to dismiss the staff member or terminate his appointment, or for any other measure which is the subject of the request for an opinion;
 - any suggestions by way of compromise or amendment to the decision in question. In addition, the opinion(s) shall state:
 - the names of the Chair and members of the Board;
 - the date on which it was pronounced.
- (v) The opinion(s) of the Advisory Board, duly substantiated, shall be notified in writing to the Director General and the staff member on the same day as they are adopted. Before the Director General takes his final decision the staff member shall have fifteen working days to send him his written comments on the Board's opinion(s).

Rule 32/8 Costs and expenses

- (i) Proceedings before the Advisory Board shall be free of charge. Expenses for the assistance by an external lawyer shall not be reimbursed, except for the costs for travelling to the hearing of the Advisory Board.

- (ii) Reimbursement of travel costs will be made in accordance with the rules applicable to ESA missions and the cost ceilings contained therein.

Rule 32/9 Decision by the Director General

- (i) Within thirty working days from receiving the Advisory Board's opinion the Director General shall notify the staff member in writing of his decision:
 - (a) in the event of proposed dismissal or termination as provided for in Regulation 30.1 (i),
 - either not to take any further action on the proposal in question, or to pronounce any disciplinary sanction or administrative measure instead
 - or to pronounce dismissal or terminate the appointment;
 - (b) in the event of a decision already taken, as provided for in Regulation 30.1 (ii),
 - either to confirm his decision,
 - or to rescind or modify it.
- (ii) Where the Director General maintains his decision, notwithstanding a unanimous or majority adverse opinion of the Advisory Board, he shall explicitly substantiate his decision.
- (iii) Both the Chair of the Advisory Board and the Chair of the Central Staff Committee shall be informed of the Director General's final decision.
- (iv) Advisory Board pool members shall have access to Advisory Board opinions and the subsequent decision of the Director General, if the staff member concerned has explicitly agreed.

Rule 32/10 Interpretation and review of the Advisory Board's opinion

- (i) Should difficulties arise over the meaning or scope of the Advisory Board's opinion, either the Director General or the staff member concerned may ask the Board to give an interpretation of its opinion.
- (ii) The Board may review its opinion if new facts of decisive importance are brought to its knowledge.
- (iii) However, no request for interpretation or review under the provisions of paragraphs (i) and (ii) above may be made:
 - after the Director General has taken the decision referred to in Regulation 30.1 (i), either to terminate the appointment or to dismiss the staff member, or
 - after the dispute has been submitted to the Administrative Tribunal in accordance with Regulation 41.6, unless the President of the Tribunal agrees accordingly.

CHAPTER VIII

DISPUTES

REGULATION 33

ADMINISTRATIVE TRIBUNAL – COMPETENCE ¹

- 33.1** There shall be set up an Administrative Tribunal, independent of the Agency, to hear disputes relating to any explicit or implicit decision taken by the Agency and arising between it and a staff member, a former staff member or persons entitled under them.
- 33.2** The Administrative Tribunal shall rescind any decision against which there has been an appeal if the decision is contrary to the Staff Regulations, Rules or Instructions or to the claimant's terms of appointment or vested rights, and if the claimant's personal interests are affected.
- 33.3** The Administrative Tribunal may also order the Agency to repair any damage suffered by the claimant as a result of the decision referred to in paragraph 2 above.
- 33.4** Should the Agency - or the claimant - maintain that execution of a rescinding decision would raise major difficulties the Administrative Tribunal may, if it considers the argument valid, award compensation to the claimant for the damage he has suffered.
- 33.5** The Administrative Tribunal shall also be competent in the case where a staff member wishes to sue another staff member and such action has been prevented by the Director General's refusal to waive the immunity of the latter.
- 33.6** The Administrative Tribunal shall also be competent to settle disputes concerning its jurisdiction, as defined in these Regulations, or any question of procedure.

¹ Major update of Regulation 33: December 2020 (cf ESA/ADMIN/REG(2003)1, add. 98)

REGULATION 34

COMPOSITION – INCOMPATIBILITIES ¹

- 34.1 The Administrative Tribunal shall consist of six members of different nationalities, appointed by the Council in accordance with a procedure to be laid down by the Council. All members must be of recognised competence in law.**
- 34.2 The members of the Administrative Tribunal shall be independent; they shall not be members of the staff of the Agency nor of a delegation of a Member State. They shall not seek or accept instructions from anyone whatsoever.**
- 34.3 The members of the Administrative Tribunal shall be appointed by the Council for six years. Their appointments may be renewed.**

¹ Major update of Regulation 34, as well as of the corresponding Rule: December 2020 (cf ESA/ADMIN/REG(2003)1, add. 98)

Rule 34/1**Sponsorship of candidates**

- (i) Candidates shall be proposed by the Delegations of Member States. The Director General may also sponsor candidates after taking into account proposals that may be made by the Staff Association.
- (ii) Proposals shall be made in such a way as to ensure rotation among members of various nationalities.
- (iii) At least two members of the Tribunal shall be eminent persons with particular competence in labour legislation and in staff relations, preferably from the international field.

REGULATION 35

PRIVILEGES AND IMMUNITIES ¹

The members of the Administrative Tribunal shall enjoy the privileges and immunities provided for in Article XVII of Annex I to the Convention for the establishment of the Agency.

¹ Major update of Regulation 35: December 2020 (cf ESA/ADMIN/REG(2003)1, add. 98)

REGULATION 36

APPOINTMENT ¹

- 36.1 Before entering upon his duties, each member of the Administrative Tribunal shall take an oath in the Council to perform his duties impartially and conscientiously and to preserve the secrecy of the Tribunal's deliberations.**
- 36.2 The detailed terms of appointment shall be laid down in a letter of appointment to be agreed by the Council and to be signed by the Chairman of the Council.**

¹ Major update of Regulation 36: December 2020 (cf ESA/ADMIN/REG(2003)1, add. 98)

REGULATION 37

RESIGNATION ¹

Should a member of the Administrative Tribunal resign before the expiry of the period referred to in Regulation 34.3 his letter of resignation shall be addressed to the Chairman of the Council.

This notification shall constitute vacation of office; however, the member of the Administrative Tribunal concerned may be required to continue in office until his successor has taken up his duties.

¹ Major update of Regulation 37, as well as of the corresponding Rule: December 2020 (cf ESA/ADMIN/REG(2003)1, add. 98)

Rule 37/1**Replacement of a member**

- (i) Should a member of the Administrative Tribunal resign he shall be replaced, with due regard to the provisions of Regulation 34.1, for the period of time still to be served by the other members of the Tribunal.
- (ii) The same provisions shall apply in the event of the death of a member of the Administrative Tribunal, or his incapacity to exercise his functions.

REGULATION 38

DISMISSAL ¹

A decision to dismiss a member of the Administrative Tribunal from office can only be taken by the Council upon a unanimous recommendation by all the other members of the Tribunal.

¹ Major update of Regulation 38: December 2020 (cf ESA/ADMIN/REG(2003)1, add. 98)

REGULATION 39

PRESIDENCY ¹

- 39.1 The members of the Administrative Tribunal shall, every two years, designate two from amongst their number as their President and his deputy.**
- 39.2 The President shall ensure observance of the rules of procedure and establish the agenda of the Tribunal's meetings.**

¹ Major update of Regulation 39: December 2020 (cf ESA/ADMIN/REG(2003)1, add. 98)

REGULATION 40

REGISTRAR – FACILITIES – OFFICIAL SEAT ¹

40.1 The Council shall appoint a staff member to serve as the Registrar of the Administrative Tribunal. The Registrar shall in particular be responsible for matters of current administration of the Administrative Tribunal and for all communications. The Council shall appoint another staff member as deputy Registrar, who shall perform the same duties as the Registrar if the latter should be unavoidably prevented. Before taking up their duties the Registrar and deputy Registrar shall take an oath in the Council as laid down in Regulation 36.1.

In the discharge of his duties the Registrar shall be subject to the Authority of the Administrative Tribunal only.

40.2 The Agency shall provide for all necessary facilities in order to ensure the functioning of the Administrative Tribunal.

40.3 The Administrative Tribunal shall have its official seat at the Headquarters of the Agency; it may meet at other places if necessary.

¹ Major update of Regulation 40: December 2020 (cf ESA/ADMIN/REG(2003)1, add. 98)

REGULATION 41

RULES OF PROCEDURE ¹

Rules of procedure shall be laid down in the Staff Rules for the implementation of Chapter VIII of the Staff Regulations. They must conform with the following principles:

41.1 The sessions of the Administrative Tribunal shall be arranged by the President of the Administrative Tribunal, bearing in mind the need to take decisions as soon as possible on all cases submitted to it.

Rule 41.1/1 Convening of the Tribunal – Time limits for examination of cases

- (i) The Administrative Tribunal shall be convened by its President, who will determine the agenda for each session and the place of meetings.
- (ii) The Tribunal shall consider appeals submitted to it, not later than three months after the date on which they were lodged with the Registrar.
- (iii) For the purpose of enabling several appeals to be considered at the same session, the President may extend the time limit laid down in paragraph (ii) above to not more than six months.

Rule 41.1/2 Notice of hearings

The date of the hearings shall be communicated by the Registrar to the members of the Tribunal, the Director General, and the claimant, at least fifteen working days beforehand. A copy of the files shall be sent, within the same time limit, to each member of the Tribunal.

Regulation 41 (cont'd)

41.2 For the examination of a given case, the Administrative Tribunal shall not be validly constituted unless at least three members are present, including the President or his Deputy. For each session the two members due to attend will be selected in rotation, in alphabetical order. These same members shall in principle take part in all deliberations and decisions concerning a given case. In all cases, members taking part in a decision shall have attended the last meeting which preceded that decision.

¹ Major update of Regulation 41, as well as of the corresponding Rules and Instructions: December 2020 (cf ESA/ADMIN/REG(2003)1, add. 98)

Rule 41.2/1 Registrar

- (i) At the request of the Tribunal the Registrar will be present at all proceedings.
- (ii) When each case is examined, the Registrar shall report to the Tribunal on the preliminary investigation.

Regulation 41 (cont'd)

41.3 A member of the Administrative Tribunal may not participate in the settlement of any case in which he has previously participated as the representative or the assistant of one of the parties or on which he has been called upon to decide as a member of a tribunal or in any other capacity. In such case, either party may ask for a change in the composition of the Tribunal.

A party may not request a change in the Tribunal's composition on the grounds of a member's nationality, but may request such change on account of presumed partiality: in the event of such a request the Tribunal shall take a decision in the absence of the member concerned.

It shall also settle any difficulty arising from the application of this Regulation.

Rule 41.3/1 Pre-judicial decisions

- (i) Where necessary, the Tribunal shall, before examining an appeal submitted to it, rule on any objections concerning its own composition.
- (ii) The Tribunal shall rule, at any time it deems appropriate, on any challenge to its jurisdiction, and on any difficulties occasioned by the application of these rules of procedure.

Regulation 41 (cont'd)**41.4**

- (i) **A matter shall be referred to the Administrative Tribunal within three months of the notification of decision by the Appointing Authority following, if applicable, intervention of the Advisory Board under the terms of Regulation 30.1 (ii).**

In the absence of a decision, the time limit shall be six months from receipt of the claimant's request by the competent authority.

- (ii) **In circumstances beyond the claimant's control, however, the Tribunal may admit appeals brought after the time limits laid down in subparagraph (i) above.**

41.5 Recourse to the Administrative Tribunal shall not be admissible until the procedure provided for in Regulations 30.1 (ii) and 32 has been exhausted.

41.6 A matter shall be referred to the Administrative Tribunal in the form of either a written petition addressed to the Registrar or a verbal petition before the Registrar, giving the subject matter of the dispute and a summary of the grounds on which the petition is based. Where the petition is submitted verbally, the Registrar shall draw up a report, which shall be signed by himself and the claimant. Where appropriate, the petition shall be accompanied by the decision in writing, whose annulment is sought, together, if applicable, with the opinion of the Advisory Board.

Rule 41.6/1 Supporting documents

- (i) When presenting his appeal the claimant shall produce any documentary evidence he may have, and, if possible, the text of the contested decision, as well as the Advisory Board's recommendation, whether made before or after the contested decision.

In the absence of a decision he must produce a copy of the petition which he had sent to the competent authority.

Should the claimant's petition be insufficiently precise, the Registrar shall summon him and take down his statements in writing in order to define the subject-matter of the appeal. These statements shall then be signed by the claimant.

- (ii) The claimant may subsequently enlarge upon his grounds for appeal in an additional petition.
- (iii) The petitions and documentary evidence in support, as well as all other documents submitted to the Tribunal, may be in the official language, or one of the official languages of the Member State of which the claimant is a national. If the language is not one of those specified in the arrangements governing the use of languages of the Agency, the Registrar shall have the documents translated.

Rule 41.6/2 Withdrawal of appeal

- (i) Should the claimant withdraw his appeal before the documents specified in Rule 41.7-8/2 have been communicated to the Tribunal, the Registrar shall accept the withdrawal.
- (ii) Should the claimant withdraw his appeal after the documents specified in Rule 41.7-8/2 have been communicated to the Tribunal, the President may accept the withdrawal without convening the Tribunal for this purpose, provided that the withdrawal is unconditional and that the other party, having been duly informed of the withdrawal request, has not raised any objection within a period of fifteen working days.

Regulation 41 (cont'd)

41.7 All communications to the parties shall be made in writing without delay and within the time limits fixed by the Administrative Tribunal.

41.8 The parties shall have access to all evidence submitted to the Administrative Tribunal.

Rule 41.7-8/1 Communications between the parties

The petition shall be transmitted immediately to the Director General, who shall make his comments thereon in writing within thirty working days from the lodging of the appeal. These comments shall be conveyed to the claimant, who shall have thirty working days in which to present a written reply.

Rule 41.7-8/2 Communications to the Tribunal

The petition, together with the documentary evidence produced, the Director General's comments, and the claimant's reply, if any, shall be communicated by the Registrar to the members of the Tribunal not later than two months after the petition was lodged and at least fifteen working days before the date of the hearing at which they are to be considered.

Rule 41.7-8/3 Evidence of delivery

The Registrar of the Tribunal shall be responsible for the communication of documents to the parties in accordance with the provisions stated in Rules 41.7-8/1 and 41.7-8/2.

All communications and notifications provided for in these Rules of Procedure shall be either handed to the addressee against his signature or sent by registered mail and a receipt obtained.

Regulation 41 (cont'd)

41.9 The Agency shall be represented at the Administrative Tribunal. Its representative may be a member of the Agency. Both parties may be assisted by an external lawyer or another person of their choosing.

Rule 41.9/1 Personal appearance – Assistance

The claimant may arrange to be represented or assisted by an external lawyer or another person of his choosing; however, the Tribunal may invite the claimant to appear before it in person.

Regulation 41 (cont'd)

41.10 The parties shall be entitled to a hearing. On request of one party and with the agreement of the other party, the Administrative Tribunal may decide whether a case may be put forward only in writing.

Rule 41.10/1 Oral statements

- (i) Either party or its representative, and its assistant, shall have the right to adduce verbally any argument in support of the pleas advanced in the petition.
- (ii) The claimant shall have the right to use the official language, or one of the official languages, of the Member State of which he is a national.

The members of the Tribunal and the representative of the Agency shall have the right to request interpretation into one of the languages specified in the final agreements governing the use of languages in the Agency.

Either party may be assisted, if necessary, by an interpreter.

Rule 41.10/2 Hearings in absentia

The Tribunal may decide to examine a case in the absence of one or both of the parties, provided that the date of the hearing has been duly notified to the parties concerned.

If one or both of the parties, although duly summoned, fails or fail to appear before the Tribunal, without producing a valid reason, the Tribunal may close the hearings and make its final decision.

Regulation 41 (cont'd)

41.11 The Administrative Tribunal may undertake all enquiries which it deems necessary, and may in particular request the parties to produce all documents and to supply all information which it considers desirable for the proceedings.

The Tribunal may furthermore at any time charge a person or body of its own choice to make an expert study.

All parties may propose to the Tribunal to call witnesses and may submit other appropriate forms of evidence. Staff members, if so requested by the Tribunal, shall appear before it and give evidence.

Rule 41.11/1 Powers of the President between sessions

Between sessions of the Tribunal, the President, or a member of the Tribunal whom he shall designate to this end, shall give interim decisions concerning any measures which have been requested for the sole purpose of establishing any facts that may assist the Tribunal's decision. As far as possible, both parties to the appeal should be heard, and a report made to the Tribunal in writing.

Rule 41.11/2 Hearing of witnesses

- (i) A witness shall not be bound to disclose information to the Tribunal if he has professional or moral objections which are acceptable to the Tribunal in accordance with the general principles of law.
- (ii) Before each witness is heard, the President shall require of him an undertaking to answer fully and accurately any questions put to him. Where appropriate, he shall draw attention to the fact that all those attending hearings in camera are bound to secrecy, or to the obligation placed on staff members of the Agency to give any information required of them.

Regulation 41 (cont'd)

41.12 Minutes shall be kept of each hearing of witnesses, of the parties or of experts and shall be signed by the President and the Registrar.

Rule 41.12/1 Establishment of facts – Report

If necessary, and should the Tribunal so decide, any investigation or hearing of witnesses may be conducted by one of its members or by any other person not a member of the Agency whom it may designate for the purpose. Proceedings for the establishment of facts under this paragraph shall, so far as possible, give a full hearing to both parties; a written report shall be made to the Tribunal.

Regulation 41 (cont'd)

41.13 The proceedings shall be public, unless the Administrative Tribunal ex officio or at the request of one of the parties shall, for valid reasons, decide otherwise. Proceedings concerning disciplinary matters shall be secret. The Administrative Tribunal's deliberations shall be and shall remain secret.

Rule 41.13/1 Conduct of hearings

The Tribunal's examination of each case shall comprise a full hearing. The President shall be responsible for conducting the hearings.

Rule 41.13/2 Hearings in private

Any person having attended a hearing of the Tribunal held in camera shall observe the strictest secrecy concerning any facts that may have come to his knowledge in the course of the proceedings and any opinions expressed thereat.

Regulation 41 (cont'd)

41.14 The Administrative Tribunal shall not deliver its decision on a matter until it has afforded each of the two parties - or their representatives or assistants - the opportunity of making a final submission, either orally or in writing.

41.15 The decisions of the Administrative Tribunal shall be made by a simple majority. However, should the Tribunal consist of an even number of members, the President shall have the casting vote in the event of a tie. The grounds on which the Tribunal's decisions are based shall be stated. The findings stated in the decisions shall cover all the facts and legal arguments put forward by the two parties.

Certified true copies of the Tribunal's detailed decisions shall be sent to the parties within thirty days of being delivered. The names of the members of the Tribunal who took part in the deliberations shall be stated.

Where this time limit of thirty days cannot be respected, the President shall authorise its extension in a reasoned decision.

Rule 41.15/1 Deliberation and decision

- (i) Once the President has closed the hearing, the Tribunal shall deliberate on its decision. The Tribunal's deliberation shall be held out of the presence of either party or of any other person. Nonetheless, the Tribunal may enlist the aid of interpreters; in this case, the President will draw their attention to the fact that they are bound to secrecy.
- (ii) The Tribunal's decision shall be signed by the President and the Registrar.
- (iii) The true copy of the Tribunal's decision, certified by the Registrar, shall give the full text of the grounds accepted by the Tribunal and of the decision, and the date of the decision.
- (iv) The decision of the Tribunal shall be communicated by the Registrar to the Director General and to the claimant within the time laid down in Regulation 41.15. It shall also be communicated to the Chair of the Central Staff Committee and to the Registrars of the other Co-ordinated Organisations.

It may also be communicated to any person upon request.

Nevertheless, the Tribunal may decide that a decision shall only be communicated with the name of the claimant or any other person mentioned therein deleted.

Regulation 41 (cont'd)

41.16 The proceedings before the Administrative Tribunal shall be free of charge. The Agency shall in all cases pay its own costs. The expenses incurred in collecting evidence, and all other costs, shall be borne by the parties, in proportions to be decided on by the Tribunal.

Rule 41.16/1**Costs and Expenses**

In deciding on the apportionment of the expenses incurred in collecting evidence, and of all other costs, the Tribunal shall be guided by the following principles:

- (i) Expenses incurred in collecting evidence shall not be charged, even in part, to the claimant if it has been admitted that there were good grounds for the petition or that the claimant thought that he had good reason to lodge an appeal.
- (ii) The defence costs incurred by the claimant shall not be reimbursed, even in part, if the petition is deemed to be groundless, except where the Administration, through its attitude, or as a result of errors or mistakes, may have misled the claimant as to the chances of success in his appeal.
- (iii) The travel and subsistence expenses incurred by the claimant shall be reimbursed, except where it is shown that he was not acting in good faith or where it is deemed that the petition was inadmissible or was submitted with unwarranted delay.
- (iv) The Agency shall in all cases bear its own costs as well as the cost of interpretation as provided in Rule 41.15/1 and as determined by the Tribunal.

Regulation 41 (cont'd)

41.17

- (i) **No appeal shall be possible against the decision of the Administrative Tribunal, which shall be final and binding on both parties.**
- (ii) **However, the Tribunal may be asked by the parties to interpret a decision, should difficulties arise as to the meaning or scope of that decision.**
- (iii) **Either party may ask the Tribunal for a revision of a decision on the basis of the discovery of a decisive fact that was, at the time of pronouncement of the decision, unknown to the Tribunal and to the party applying for revision, always provided that such ignorance was not due to negligence.**

No request for review may be made after the expiry of a period of three months following the discovery of the fact mentioned above and - in any case - five years after the date of the decision. The period of three months shall not apply if the claimant was unable for valid reasons to make the request.

- (iv) **Any request for interpretation or review shall be submitted to the President. If he considers that this request clearly amounts to an appeal against a decision of the Tribunal and is not a request for interpretation or review, the President may, after consulting the members of the Tribunal who would be called upon to deal with the matter and provided none of them objects in writing, deliver a reasoned decision stating the request to be inadmissible. There shall be no appeal against this decision.**

Subject to the above provision, the procedure for review shall commence with a decision of the Tribunal formally declaring that a new fact exists,

that it is of a character which justifies the review, and that the request for review is admissible for that reason.

- (v) Clerical and arithmetical mistakes in the decision, or any accidental error or omission, may be corrected by the Tribunal, either on its own initiative or on the application of either party.**

CHAPTER IX
STAFF REPRESENTATION

REGULATION 42

TERMS OF REFERENCE OF THE STAFF ASSOCIATION

42.1 The Staff Association shall represent the whole of the staff of the Agency together with all other persons to whom these Regulations apply.

42.2 The Staff Association, acting through a Central Staff Committee for the staff as a whole and a Local Staff Committee for the staff of each Establishment, shall:

- (i) protect the interests of staff members, especially as regards the conditions and continuity of their employment, and appoint the staff representatives on the bodies provided for this purpose;**
- (ii) promote cooperation between the staff and the Administration with a view to improving general working conditions, and to this end submit to the Director General any proposal it deems appropriate;**
- (iii) strive to help to improve the living standards of the staff and strengthen the links between staff members of different nationalities; to this end it shall take part in the management and supervision of all services set up in the interests of the staff, in accordance with the provisions of the Regulations creating these;**
- (iv) advise the Appointing Authority, at the request of a staff member, in all circumstances where the latter considers that an administrative decision is or could be unfair to him or her or conflict with the terms of his or her appointment;**
- (v) take part, under the procedure set out in Regulation 46, in amending the Regulations, Rules or Instructions; it may in particular propose any draft amendment. The Central Staff Committee may, via the Director General, make known to the Council or the Administrative and Finance Committee its view on a proposed amendment to the Regulations or Rules;**
- (vi) take part, under the procedure laid down for this purpose in Regulation 46, in the examination of any measure affecting the working conditions of the whole, a group or a category of the Agency's staff.**

It may, in conformity with this procedure, make known its opinion to the body invested with power of decision, via the Director General if appropriate;

- (vii) attend, in the person of its Chair or his representative, meetings of the body invested with the power of decision when proposed amendments to the Regulations or Rules or matters affecting the conditions of employment are being discussed. On such occasions the Staff Association representative shall be able to express the staff's viewpoint, subject to the permission of the Chair of the body concerned;**

- (viii) express the views of ESA staff at any meetings to which it has been invited.**

Last update: December 2020 (cf ESA/ADMIN/REG(2003)1, add. 98)

Rule 42.2/1**Competence of the Central Staff Committee**

- (i) The Central Staff Committee and Local Staff Committees shall act in the name of the Staff Association in carrying out its remit as set out in Regulation 42.
- (ii) The Central Staff Committee shall be competent for all matters affecting
 - the Agency's staff as a whole, or
 - the staff of more than one Establishment.
- (iii) The Central Staff Committee shall coordinate the action of the various Local Staff Committees, and if it considers there are grounds for doing so may deal with a matter affecting the staff of a single Establishment. Decisions of the Central Staff Committee shall be binding on the various Local Staff Committees.
- (iv) The Central Staff Committee may bring to the Director General's notice any matter relating to a staff member when it has proved impossible to settle this at Local Joint Committee level.
- (v) A Local Staff Committee shall be competent for all matters concerning exclusively the staff of the Establishment for which it has been set up.
- (vi) The Local Committees shall inform the Central Staff Committee of advice given and action taken by them at Establishment level.
- (vii) A Local Committee's Resolutions shall be binding on, and commit collectively, all its members unless the latter have voiced express reservations when voting.

Rule 42.2/2**Briefing of the staff**

- (i) The Director General shall regularly and in good time inform the staff of the Agency's activities and general policy, and in particular of all matters relating to the staff including matters dealt with within the Co-ordinated Organisations. This information shall be provided in writing.
- (ii) The Central Staff Committee shall receive the same information in writing and as speedily as possible. The Central Staff Committee may ask for any further information, either in writing or at the meetings of the Central Joint Committee provided for in Regulation 46.
- (iii) The Local Staff Committees shall be informed by the Director General or Head of Establishment of any new matter affecting the whole or part of the staff of the Establishment. This information shall be given in writing. The Local Staff Committee may ask for any further information that may be useful, either in writing or at the meetings of the Local Joint Committee provided for in Regulation 46.
- (iv) The Central Staff Committee and Local Staff Committees shall inform the staff concerned of action taken in pursuance of the Committees' duties.

Rule 42.2/3 Participation in joint bodies

- (i) The staff representatives appointed in accordance with Regulation 42.2 (i) shall immediately inform the Chair of the Staff Committee concerned of action taken or advice given in the bodies in question, except where otherwise expressly provided for.
- (ii) For carrying out the remit set out in Regulation 42.2 (ii) and (iii), the Chair of the Central Staff Committee or Chair of the Local Staff Committee, as the case may be, or their deputies, shall be responsible for representing the staff vis-à-vis the Director General or the Head of the relevant Establishment.

Last update: December 2020 (cf ESA/ADMIN/REG(2003)1, add. 98)

REGULATION 43

WORK OF THE STAFF REPRESENTATIVES

The work of the members of the Staff Committees shall be considered to be part of their official duties. It shall be carried out under conditions laid down in the Staff Rules.

Rule 43/1**Discharging the office of staff representative**

- (i) The Director General and the immediate superiors of members of Local and Central Staff Committees shall afford them the necessary facilities to enable them to discharge their office; they shall guarantee them the necessary time, place and freedom of expression.
- (ii) Discharging the office of staff representative shall on no account affect the career of the staff member concerned or entail any disciplinary action, except where he has failed to discharge the duties or fulfil the obligations laid down under the Staff Regulations.
- (iii) In order to ensure that the discharge by the staff member concerned of his normal duties is not adversely affected by the holding of such office he shall, on no account, discharge the office of staff representative for more than six years in succession, except where justified by exceptional requirements.
- (iv) The members of the Central and Local Staff Committees and the staff representatives on the various bodies specified in the Staff Regulations and Rules shall be bound by the rules on professional secrecy under the provisions of Regulation 4.1 and Rule 4.1/1, even after leaving the Agency. They shall not communicate in any form whatsoever, to any persons not authorised to have knowledge thereof, any unpublished document or other unpublished information that may have come to their knowledge in, or in connection with, the exercise of their office. Documents and information concerning an individual case submitted to a Local Committee shall not be divulged outside that Committee without the agreement of the staff member concerned, especially in the case referred to in Rule 42.2/1 (i).

Rule 43/2**Facilities**

- (i) The facilities made available by the Administration to the Staff Committees shall include, in particular:
 - meeting rooms and the use of telephone, telex and facsimile facilities;
 - the supplies, equipment and staff they need for the drafting, reproduction, translation and circulation of information and documents to the staff - such information and documents to be communicated to the Head of Personnel before reproduction and circulation;
 - up-to-date documents relating to the terms of reference listed under Regulation 42. These facilities do not include the provision of interpreters.
- (ii) A Committee member who is required to travel in the discharge of his office shall be entitled to the benefits and allowances laid down for missions. His mission order and statement of expenses shall be approved and signed by the Chair of the Local or Central Committee, as the case may be, communicated to the Committee member's superior officer for his information and endorsed by him, and finally signed by his Head of Personnel.
- (iii) Staff members may pay voluntary subscriptions for the promotion of the Staff Association's activities. These subscriptions shall not, however, confer any special rights on the contributors.

Salary deductions corresponding to staff members' subscriptions to the Staff Association will be made by the Agency's finance offices at the express request of the staff members concerned.

Last update: December 2020 (cf ESA/ADMIN/REG(2003)1, add. 98)

REGULATION 44

LOCAL COMMITTEES AND CENTRAL COMMITTEE

- 44.1** The members of each Local Committee shall be elected by the staff of the Establishment concerned, by secret ballot, for a period of three years, one third of the seats on the committee being filled each year.
- 44.2** The election of a Local Staff Committee shall be valid if at least one half of the staff of the Establishment has participated in the election. Failing this, a second ballot shall take place, the result of which shall be valid irrespective of the percentage of participation.
- 44.3** Staff representation shall be provided for at every duty station at which there are more than 20 staff members serving for more than a year.
- 44.4** The Central Staff Committee shall comprise one representative from each Establishment; if the Establishment has a staff of more than 200, it will send one or two additional representatives to the Central Committee, under terms laid down in the Staff Rules.
- 44.5** The representatives of the Local Staff Committees on the Central Staff Committee shall be elected by the Local Staff Committees; they shall hold office for one year but will be eligible for re-election.

Rule 44/1**Establishment of Local Staff Committees**

Local Staff Committees shall be set up at Headquarters, ESTEC, ESOC, ESRIN, ESAC and ECSAT ; staff in other duty stations shall be represented by the Local Staff Committee set up at the place where the administrative unit directly responsible for them is located.

Last update: October 2015 (cf ESA/ADMIN/REG(2003)1, add. 71)

Rule 44.1-2/1**Composition of Local Staff Committees**

(i) Each Local Committee shall consist of members elected in the proportion of:

- 1 member for up to 20 electors,
- 2 members for 21 to 60 electors,
- 3 members for 61 to 100 electors,

and so on, proceeding by groups of 40 electors.

It shall comprise at least six members.

The calculations referred to above shall be based on the situation existing on the last day of the month preceding that in which the lists of candidates are published.

- (ii) Members of a Local Committee shall be elected for three years, one third of the Committee being renewed each year; deputies shall be appointed for one year only, except if they are called upon to replace a full member.
- (iii) The candidates obtaining the largest number of votes shall be declared elected: in the event of a tie, the candidate with the longest service with the Agency shall be declared elected.
- (iv) The Chair of a Local Committee and his deputy, as well as the representatives of the Local Committee on the Central Committee, shall be elected at the first meeting of the new Local Committee, and not later than 15 April.

Last update: December 2020 (cf ESA/ADMIN/REG(2003)1, add. 98)

Rule 44.1-2/2**Deputy members**

- (i) In principle, as many deputy members shall be elected as there are members in accordance with Rule 44.1-2/1 above but failure to elect deputy members will not invalidate the elections.
- (ii) The deputy members of Local Committees shall be the candidates who have obtained the most votes after the elected members.
- (iii) A full member who ceases to serve on his Staff Committee for any reason whatever, and in particular on posting to another duty station, shall be replaced by a deputy for the remainder of his term of office.

- (iv) If both a member and his deputy have ceased to serve on their Committee, they shall be replaced by the next candidates listed as having obtained the most votes.

Rule 44.3/1 Electors – Eligibility of candidates

- (i) All staff members of an Establishment shall be electors of the Local Staff Committee of that Establishment
- (ii) In order to be eligible for election a staff member must:
- belong to the Establishment concerned
 - have completed his probationary period;
 - hold an appointment still to run for at least one year.

Rule 44.3/2 Elections

- (i) Elections to Local Staff Committees shall be held at the beginning of each year so that the new Local Committees are formed by 1 April at the latest.
- (ii) Elections to a Local Committee shall be organised and supervised by an Election Committee consisting of three staff members who are neither staff committee members nor candidates, and are appointed as follows:
- one person appointed by the outgoing Committee,
 - one person appointed by the Director General or by the Director of Establishment, as the case may be, and
 - a third person appointed by the first two.

Its duties shall be as follows:

- One month before the poll the Election Committee shall inform the staff of:
 - the date of the elections and of the composition of the new committee, and
 - the conditions governing the submission of candidatures.
- It shall receive the applications, verify the applicants' eligibility and draw up the final list of candidates.
- Fifteen days before the poll it shall circulate the ballot papers and notify the place and date of the poll.
- It shall count the votes in public, check their validity and give a ruling on any disputes.
- It shall announce the poll results to the staff immediately.

- It shall report on the execution of its mission:
 - to the newly elected Local Committee, and
 - to the Director General or to the Head of Establishment.

Rule 44.3/3 Voting procedure

- (i) The ballot papers shall show the names of candidates in alphabetical order.
- (ii) Each elector may vote for one or more candidates by placing a cross against their names. He may not, however, vote for more candidates than there are seats to be filled.

Any ballot paper on which handwriting appears shall also be null and void.

An elector absent on leave or duty may vote by proxy, or by mailing to the Election Committee his ballot paper enclosed in two envelopes, namely a blank first envelope containing his ballot paper (eventually to be put in the ballot box), which is to be sealed by him and placed in a second envelope bearing his name and addressed to the Election Committee.

CENTRAL COMMITTEE

Rule 44.4/1 Composition of the Central Staff Committee

- (i) The Central Staff Committee shall comprise one representative elected by each of the Local Committees.
- (ii) The Local Committee of an Establishment having more than 200 staff members on the last day of the month preceding the setting up of the Central Committee shall elect an additional representative on the Central Committee.
- (iii) If the Establishment comprises 500 staff members, or more, its Local Committee shall elect a third representative on the Central Committee.

Rule 44.5/1 Term of office of members of the Central Committee – Re- election

Representatives on the Central Staff Committee shall be elected for one year by a simple majority of votes cast.

REGULATION 45

CHAIR

45.1 The members of each Local Staff Committee shall elect a chair; furthermore, the Central Staff Committee shall elect its Chair. The Chairs of the Local Committees and of the Central Committee shall hold office for one year.

45.2 The Chair of the Central Staff Committee shall ex officio be President of the Staff Association.

Last update: December 2020 (cf ESA/ADMIN/REG(2003)1, add. 98)

Rule 45/1 Transfer of powers

The Chair of the outgoing Central Committee shall convene the first meeting of the newly elected members of the committee by 1 May at the latest.

Last update: December 2020 (cf ESA/ADMIN/REG(2003)1, add. 98)

Rule 45/2 Chair

- (i) At its first meeting the Central Staff Committee shall elect its new Chair and his deputy, by a simple majority of votes cast.
- (ii) The Chair of the Central Committee shall not count as a member of that Committee and shall be replaced for this purpose by another representative from his Establishment.

Last update: December 2020 (cf ESA/ADMIN/REG(2003)1, add. 98)

REGULATION 46

PROCEDURE FOR NEGOTIATION

46.1 Procedures shall be instituted for negotiation between the Director General and the Staff Association. For this purpose, a Central Joint Committee shall be set up at central level and a Local Joint Committee in each Establishment.

46.2 All measures that affect the conditions of employment of the whole, a group or a category of the Agency's staff, and in particular any draft amendment to the Staff Regulations, Rules and Instructions, shall form the subject of a procedure of negotiation within the Central Joint Committee.

All measures that affect the local employment and working conditions in an Establishment shall form the subject of a procedure of negotiation within the relevant Local Joint Committee.

46.3 When the Joint Committee concerned reaches a consensus, the Director General or Head of Establishment shall take the relevant decision or propose the draft amendment or measure to the body competent to take the decision, accompanied where appropriate with his own comments and/or those of the Staff Committee.

46.4 If no consensus is reached in the Central Joint Committee, recourse shall be had to a procedure of negotiation within a restricted body. A Joint Panel shall be set up for this purpose.

46.5 If no consensus is reached in the Central Joint Committee after it has examined the conclusions of the Joint Panel on any draft amendment submitted by the Central Staff Committee or on any other measure affecting the conditions of employment and proposed by either the Director General or the Central Staff Committee, the Director General shall submit the proposed measure or amendment to the body invested with the power of decision, accompanied where appropriate with his own comments and/or those of the Central Staff Committee.

This submission shall be made without delay, at the request of the party that has proposed the measure in question.

46.6 If no consensus is reached in the Central Joint Committee after it has examined the conclusions of the Joint Panel on any draft amendment proposed by the Director General, this draft shall be submitted to a conciliation procedure. A Conciliation Board, as defined in Regulation 49, shall be set up for this purpose. The report from the Conciliation Board shall be examined by the Central Joint Committee.

If no consensus is reached in the Central Joint Committee after it has examined the report from the Conciliation Board, the Director General may put his draft amendment to the Staff Regulations or Rules before the competent bodies. He shall at the same time forward the comments of the Central Staff Committee, together with the report from the Conciliation Board.

If no consensus is reached in the Central Joint Committee after it has examined the report from the Conciliation Board, the Director General may promulgate an amendment to the Instructions, setting out his reasons. He shall forward a statement of these reasons to the Central Staff Committee.

- 46.7 Any amendment to Regulations 46 and 49 and Rule 46/4 may be proposed to the competent body only with the agreement of the Central Joint Committee.**

Rule 46/1**Local Joint Committees**

- (i) A Local Joint Committee shall comprise:
- Chair: the Head of Establishment (in the case of Headquarters, the Director of Administration) or the person to whom he has delegated his powers;
 - Vice-Chair: the Chair of the Local Staff Committee;
 - Members: the members of the Local Staff Committee and representatives of the local Administration.
- (ii) A Local Joint Committee may be seized of a matter by the Head of Establishment (in the case of Headquarters the Director of Administration) or by the Local Staff Committee.
- (iii) The Local Joint Committees shall try to arrive at a consensus on matters brought before them.

This opinion, or opinions of the two sides if there is not a consensus, shall be forwarded to the Head of Establishment; the latter shall communicate his decision to the Local Staff Committee, giving his reasons for the decision.

- (iv) The Central Joint Committee shall draw up the rules of procedure for the Local Joint Committees, after consulting the latter.

The Local Joint Committee may take the initiative of requesting changes in these rules of procedure.

Last update: December 2020 (cf ESA/ADMIN/REG(2003)1, add. 98)

Rule 46/2**Central Joint Committee**

- (i) The Central Joint Committee shall comprise:
- Chair: the Director General or the person to whom he has delegated his powers;
 - Vice-Chair: the Chair of the Central Staff Committee;
 - Members: the members of the Central Staff Committee and representatives of the Administration.
- (ii) The Central Joint Committee may be seized of matters by the Director General or by the Central Staff Committee. It shall try to arrive at a consensus on the matters brought before it.

It shall also serve as a framework for consultation and information between the Director General and the Central Staff Committee.

It shall try to arrive at a consensus on the appointment of the members of the Conciliation Board as provided for in Regulations 49.2 and 49.7. If no consensus is reached, each party shall appoint an equal number of members.

The members appointed must in particular have extensive experience in the running of international organisations, staff relations, personnel management, labour legislation, financial and budgetary management and the like.

- (iii) A meeting of the Central Joint Committee shall be scheduled in particular after every Council meeting at which important matters concerning the staff have been discussed; it shall meet at least three times a year.
- (iv) The Central Joint Committee shall draw up its own rules of procedure.

Last update: December 2020 (cf ESA/ADMIN/REG(2003)1, add. 98)

Rule 46/3 Joint Panel

- (i) The Joint Panel shall be seized of a matter by the Central Joint Committee if, within the Central Joint Committee, it has proved impossible to arrive at a consensus within a period of 3 months. It shall try to negotiate a consensus, taking account of the need to safeguard the interests of the staff and the smooth running of the Agency.
- (ii) The Joint Panel shall comprise:
 - two members and two alternates appointed by the Director General,
 - and
 - two members and two alternates appointed by the Central Staff Committee.
- (iii) The members and alternates shall be appointed to examine each matter, within five working days of the date on which the Central Joint Committee decided to submit it to the Joint Panel.
- (iv) The Chair shall be appointed by the Director General from among the members of the Joint Panel.
- (v) The Central Joint Committee shall indicate to the Joint Panel the date by which it wishes to have the latter's opinion.
- (vi) The Joint Panel may call on one or more experts from inside or outside the Agency to assist it in its work.
- (vii) The Central Joint Committee shall draw up the rules of procedure of the Joint Panel.

Last update: December 2020 (cf ESA/ADMIN/REG(2003)1, add. 98)

Rule 46/4 Procedure for negotiation in the Joint Committees

- (i) The matters the staff representatives or Director General - or Head of Establishment - intend to raise shall be placed on the draft agenda at least 10 working days before the meeting.

The draft agenda shall be made known to the members of the relevant Committee at least 8 days before the meeting.

The Committee shall adopt its agenda and may add any further matter to it, subject to the agreement of its members.

When a Joint Committee is convened to examine a draft amendment to the Staff Regulations, Rules or Instructions, the documents shall be communicated to its members one month in advance unless the parties agree to a shorter period.

- (ii) Any draft amendment or measure may be withdrawn at any time by the party proposing it. It may not be reintroduced by the latter within two years of its withdrawal, unless the Joint Committee concerned agrees.
- (iii) Minutes of each meeting of the Joint Committees shall be kept; these shall be approved by the Joint Committee concerned at the next meeting.

REGULATION 47

SPECIAL PROVISIONS

Special provisions designed to supplement Regulations 42 to 46 shall be laid down in Instructions issued by the Director General and shall state:

- 47.1 which staff members shall be entitled to elect representatives and to stand for election;**
- 47.2 the conditions and frequency of elections of staff representatives;**
- 47.3 the facilities to be granted by the Agency to the members of the Staff Association;**
- 47.4 the time limit for the statement of an opinion, due account being taken of the complexity and urgency of the matter referred to the Association;**
- 47.5 the voting rules regarding opinions for which the Association is asked.**

Rule 47/1**Rules of procedure**

- (i) The Chair of the Central Staff Committee shall be responsible for organising the meetings and secretariat of his Committee. The same shall apply to the Chair of each Local Staff Committee.
- (ii) The Central Committee or a Local Committee, as the case may be, shall be convened by its Chair:
 - whenever he deems it necessary;
 - whenever requested by a quarter of the members of the Committee in question;
 - whenever requested by the Director of Administration or the Head of Establishment;
 - whenever a meeting of the Central Committee is requested by a Local Committee.
- (iii) When the Central Committee or a Local Committee meets - in particular for the purpose of giving advice pursuant to Regulation 42 - the quorum shall consist of not less than two-thirds of all the members.

The Central Committee shall not examine any matter concerning an Establishment unless a representative of the Local Committee of that Establishment is present.

- (iv) The provisional Agenda for a Local or Central Committee meeting, and invitations to attend, shall be sent by the relevant Chair to the members and deputy members of his Committee at least three working days before the meeting.

The Agenda shall include all the items proposed by the Chair and those proposed in writing by the staff.

- (v) After opening the meeting the Chair may accept additions to the Agenda. He shall call for a vote on such additional items if he thinks it necessary, or shall decide to postpone them to a future meeting.

The Agenda shall then be adopted.

The Chair shall start the discussion on the different items of the Agenda.

Proposals submitted by a Committee member must be presented by their author and seconded by another member.

If an amendment to a proposal is presented, the Committee shall first decide on the amendment and then on the substance of the proposal, as amended.

- (vi) The Chair may decide, either on his own initiative or at the request of two Committee members, to adjourn a meeting whenever he considers this necessary.

The Chair may limit the time each Committee member may hold the floor in the discussion of a given item.

- (vii) Documents submitted to the Committee must be drawn up in one of the Agency's official languages.

Discussions shall also take place in one of the Agency's official languages.

- (viii) Committee meetings shall be confidential: they may be attended only by the Committee members and their deputies.

However, the Chair may decide that another staff member shall be heard during discussion of an item on the Agenda.

- (ix) A Committee Chair shall either carry out his secretarial tasks himself or entrust them to a Committee member. A permanent assistant shall be assigned to the Central Committee.

The Chair shall draw up the minutes of each meeting and have them approved at the next meeting.

- (x) Decisions shall be adopted by a simple majority of votes cast (i.e. not counting abstentions).

The Chair of a Local Committee shall have a right to vote: he shall hold the casting vote.

The Chair of the Central Committee shall vote only in the event of a tie.

The Committee shall vote by a show of hands, or by secret ballot, if this is requested by the majority of members present. The minutes of each meeting shall record the number of votes for and against a proposal, and the number of abstentions, without stating the names of the voters unless the latter have insisted that their reservation be recorded.

- (xi) Resolutions adopted by a Local Committee or by the Central Committee may be communicated only to the staff and authoritative bodies of the Agency. Resolutions bearing on matters of general interest may be communicated to the Standing Committee of the Chairmen of the Staff Associations of the Co-ordinated Organisations or to an equivalent body.

Local Committee resolutions must be notified to the relevant Head of Establishment or to the Director of Administration, as the case may be, and Central Committee resolutions to the Director General.

Central Committee resolutions may also be communicated to the Council in the cases, and under the conditions, laid down in Rule 42.2/1.

Last update: December 2020 (cf ESA/ADMIN/REG(2003)1, add. 98)

Rule 47/2 End of mandate

- (i) The Local Committees and the Central Committee shall draw up and circulate to the staff concerned a report on their activity at least one month before the expiry of their term of office.

At the same time, a copy of these reports shall be sent to the Head of the Establishment concerned and to the Director General.

- (ii) The outgoing Local or Central Committee must immediately hand over its powers to the new Committee.

Rule 47/3**General staff meetings**

- (i) The Local Staff Committee of an Establishment may convene a general staff meeting every year in the offices of the said Establishment at a date and time agreed with the Head of the Establishment concerned.
- (ii) Should the Local Committee wish to hold other staff meetings during the same year, it must first obtain the Director General's agreement.

REGULATION 48

RIGHT OF ASSOCIATION

The freedom of association of the staff is recognised; however, within the Agency, representation of the staff shall be exclusively assured by the Staff Association in conformity with Regulation 42.

Rule 48/1**Freedom of association**

- (i) Staff members shall be free to join whichever professional or trade unions, associations or other groups they choose: they shall in this respect be bound by the requirements regarding duties and obligations as laid down in Regulations 3 and 4.
- (ii) Each Establishment shall put at the staff's disposal a notice board for the display, for such time as is appropriate, of communications emanating from the aforementioned unions, associations or groups, but the latter may not hold meetings on the Agency's premises or make use of the facilities reserved for the Staff Association.

REGULATION 49

CONCILIATION BOARD

- 49.1** The Conciliation Board shall be competent to draw up a report giving its proposals for a solution on drafts submitted by the Director General that have been unable to win a consensus during the negotiation procedure set out in Regulation 46.6.
- 49.2** The Conciliation Board shall comprise six members appointed by the Central Joint Committee in accordance with Rule 46/2 (ii). The Council shall be informed hereof and of appointments in accordance with Regulation 49.7.
- 49.3** The members of the Conciliation Board shall be independent; they may not be members of the Agency's staff, nor of a delegation of a Member State. They shall neither seek nor accept instructions from whatever quarter.
- 49.4** The members of the Board shall be appointed for a period of 6 years; the conditions of appointment shall be set out in a letter, the terms of which shall be approved by the Central Joint Committee then signed by the Director General. Their term of office may be renewed.
- 49.5** Members of the Conciliation Board shall enjoy the privileges and immunities provided for under Article XVII of Annex I to the Convention establishing the European Space Agency.
- 49.6** Before taking office members of the Conciliation Board shall undertake in writing to carry out their duties impartially and conscientiously and to keep the Board's deliberations secret.
- 49.7** If a member of the Board wishes to resign before the end of the term of office, a letter of resignation must be sent to the Director General. A replacement shall be appointed by the Central Joint Committee in accordance with Rule 46/2 (ii) at its next meeting following reception of the letter of resignation.

The same provision shall apply if a member of the Conciliation Board dies or becomes unable to carry out his duties.

Other than in cases of force majeure, a Board member resigning shall be obliged to take part in the examination of a matter if, prior to notifying resignation, he was appointed by the Chair under Regulation 49.11.

- 49.8** A decision to remove one of the members of the Conciliation Board from office may be taken only by the Central Joint Committee, on the unanimous recommendation of the rest of the Board.
- 49.9** The members of the Conciliation Board shall, every two years, appoint two of their number as Chair and Deputy Chair respectively.

The Chair shall ensure that the rules of procedure, and in particular Regulation 49.6, are observed.

49.10 The Director General shall appoint a staff member to act as Secretary to the Board, and shall make available to the latter all the material facilities he needs for carrying out his work.

Before taking office, the Secretary to the Conciliation Board shall undertake in writing to carry out his duties impartially and conscientiously and to keep the Board's deliberations secret.

The Conciliation Board shall normally sit at ESA Headquarters; it may hold meetings elsewhere if necessary.

49.11 The Director General shall bring a matter to the Conciliation Board if the Central Joint Committee has been unable to reach a consensus after examining the conclusions of the Joint Panel.

He shall, to this end, pass the items in the file to the Secretary to the Board.

For examining each question the Board shall comprise its Chair and two members appointed by the Chair on the grounds of their special experience in the field on which the matter bears.

The Board shall hear the comments of the Director General and Central Staff Committee, who may also submit written comments. The Board may have any enquiries carried out that it deems necessary, and call on the parties to produce any document and supply any information it deems useful.

The Board shall draw up a report, giving its proposals for a solution. This report shall be adopted by majority vote. Each member of the Board may append his individual opinion.

The report shall be submitted to the Central Joint Committee.

The Conciliation Board shall meet in camera; its deliberations shall remain secret.

The Conciliation Board shall draw up its own rules of procedure, and shall be responsible for modifying them.

Last update: December 2020 (cf ESA/ADMIN/REG(2003)1, add. 98)

CHAPTER X

SPECIAL PROVISIONS FOR STAFF ON TRAINEESHIPS
OR
RESEARCH ASSIGNMENTS

REGULATION 50

STAFF ON TRAINEESHIPS OR RESEARCH ASSIGNMENTS

- 50.1** The term "graduate trainees" refers to recently graduated scientists, engineers or administrators, appointed to traineeships within the Agency.
- 50.2** The term "internal research fellows" refers to scientists and engineers holding a doctorate or the equivalent, appointed to perform individual research or to participate in an existing research project within the Agency.
- 50.3** The Staff Regulations, Rules and Implementing Instructions shall apply to graduate trainees and internal research fellows, except as otherwise provided in Regulation 51.

Last update: July 2025 (cf ESA/ADMIN/REG(2003)1, add. 123)

Rule 50.1/1**Graduate trainees**

- (i) ESA Graduate Trainees: ESA Graduate Trainees shall be appointed in the frame of traineeship opportunities offered by the Agency.
- (ii) National Graduate Trainees: In the case where a Member State, Associate Member or European Cooperating State sponsors a traineeship opportunity offered by the Agency, applications shall only be open to its nationals and its permanent residents holding the nationality of one of the aforementioned States.

Last update: July 2025 (cf ESA/ADMIN/REG(2003)1, add. 123)

REGULATION 51

APPLICABLE REGULATIONS ¹

The provisions in the following Regulations and the relevant implementing Rules and Instructions are not applicable to graduate trainees and internal fellows, and are replaced by the Rules under this Chapter.

- 51.1 Regulation 6.2 "Appointing Authority and staff categories";**
- 51.2 Regulation 7 "Recruitment";**
- 51.3 Regulation 8 "Letter of appointment";**
- 51.4 Regulation 9 "Duration of appointment";**
- 51.5 Regulation 10 "Probationary period";**
- 51.6 Regulation 11 "Re-assignment of staff";**
- 51.7 Regulation 12 "Performance assessment";**
- 51.8 Regulation 13 "Merit recognition and promotion";**
- 51.9 Regulation 15 "Termination of appointment";**
- 51.10 Regulation 16 "Resignation";**
- 51.11 Regulation 17 "Age limit";**
- 51.12 Regulation 18 "Non-active status";**
- 51.13 Regulation 19 "Secondment";**
- 51.14 Regulation 20.2, 20.3 and 20.4 "Emoluments";**
- 51.15 Regulations 21.1, 21.4, 21.5, 21.6, 21.7, 21.8 "Allowances and indemnities";**
- 51.16 Regulations 22.2 and 22.2 bis "Benefits";**
- 51.17 Regulations 23.2, 23.4, 23.5 and 23.6 "Working hours and leave".**

¹ Update of terminology in Regulation 51 and corresponding Rules and Instructions for referring to the Graduate Traineeship Programme: July 2025 (cf. ESA/ADMIN/REG(2003)1, add. 123).

Rule 51.2/1 Publication of training and research opportunities

At regular intervals training and/or research opportunities within the Agency will be published and circulated to the delegations of the Member States.

Rule 51.2/2 Recruitment criteria

ESA graduate trainees and fellows shall be recruited on the basis of their qualifications taking into account an adequate distribution among nationals of the Member States.

Last update: July 2025 (cf ESA/ADMIN/REG(2003)1, add. 123)

Rule 51.2/3 Selection procedure

For the purpose of recruiting graduate trainees and internal research fellows the Director General shall set up a selection procedure to advise him on the choice of the candidates.

Rule 51.3/1 Letter of appointment

Graduate trainees and internal research fellows shall be notified of their appointment by a letter signed by the Director General or his authorised representative.

The letter of appointment shall specify the terms of employment, and more especially:

- (i) the grade and step when taking up duty;
- (ii) the corresponding emoluments;
- (iii) the duration of the contract;
- (iv) the duties to be performed and the duty station.

This letter shall be accompanied by a copy of the Staff Regulations, Rules and Instructions.

Rule 51.3/2 Letter of appointment – Applicable provisions

The letter of appointment shall specify that these conditions of employment are governed by the provisions of these Regulations and of any other Rules and Instructions applicable to them, including any amendments which may be made thereto subject to staff member's retaining their vested rights.

Rule 51.3/3 Letter of appointment – Social Security benefits

The letter of appointment shall stipulate that the benefits referred to under Regulation 22.1 are subject to the results of the examination of the staff member's medical file by a doctor

designated by the Agency; this examination must take place before the staff member takes up his duties. A maximum of one year's suspension of these benefits may be imposed on the advice of the doctor in question and during that period the Agency shall be under no obligation to reimburse medical costs incurred as the result of a previous accident at work, or the cost of dental prosthesis.

Rule 51.3/4 Cancellation of appointment

The appointment shall be deemed null and void:

- (i) in the absence of a reply within the time limit specified in the letter of appointment;
- (ii) if the medical file called for in the letter of appointment is not obtained before the staff member is due to take up duty.

Rule 51.3/5 Effective date of appointment

The appointment and the right to corresponding allowances and benefits shall take effect from the date of taking up duty.

Where the specified date is the first of the month, the appointment shall take effect from that day, even if the staff member is unable to take up duty then because the month begins with one or more non-working days.

Rule 51.3/6 Modification of the terms and conditions of appointment

Any modification made, subject to the safeguarding of vested rights, to the terms and conditions of employment laid down in the letter of appointment signed in acceptance by a staff member on recruitment is to be the subject of a rider notified to him by the Appointing Authority (or the latter's authorised representative). All riders must be signed and dated by a staff member.

Rule 51.4/1 Duration of appointment

- (i) Appointment shall be, in principle, for one year.
- (ii) Appointment shall terminate at the end of the contract without further notice.
- (iii) The appointment of graduate trainees and internal research fellows may be extended for a period of up to twelve months.

Rule 51.6/1 Re-assignment to other duties

- (i) Graduate trainees and internal research fellows may be assigned to other duties at another place of work.

(ii) When assigned to another place of work outside the Agency with his consent, a graduate trainee or internal research fellow:

- shall retain his right to advancement and emoluments;
- will maintain his duty station, but the calculation of an entitlement to emoluments and benefits are based on the conditions at the new place of work; and
- will be entitled to the payment of one additional installation allowance provided the requirements of eligibility are met. However, he shall be eligible also when the posting at the new place of work is less than one year, in which case the amount of the additional allowance will represent the full allowance if the period to be served at the new place of work exceeds six months, and half of the full allowance, if the period to be served is six months or shorter.

The financial cost of the stay outside the Agency may be shared between the Agency and the hosting entity, but this must not cause the graduate trainee or internal research fellow any prejudice or any delay in payments due to him. However, there shall be no duplication of payment of identical benefits.

(iii) For assignment within the Agency, the graduate trainee or internal research fellow shall retain his right to advancement and emoluments. Furthermore, the following applies:

- Where a graduate trainee or an internal research fellow is assigned to other duties at the same duty station, if he refuses these duties, he will be considered to have resigned.
- Assignment to another duty station shall be subject to the agreement of the graduate trainee or internal research fellow. Any entitlement to installation allowance will be determined in accordance with Staff Regulation 21.3 and associated Rules and relevant Instructions, and paragraph (ii) above will not be applicable.

Rule 51.9/1 Termination of appointment –Resignation

Appointment may be terminated by either party before the end of the contract, subject to a period of notice of one month.

Rule 51.14/1 Salary

The Director General shall periodically submit salary scales for graduate trainees and internal research fellows to the Council for approval. These salary scales shall be determined with procedures and criteria distinct from those applicable to the Co-ordinated Organisations.

Rule 51.15 Family allowances

- (i) A graduate trainee or internal research fellow shall be entitled, where applicable, to Basic Family Allowance, dependent child supplement and supplement for disabled or severely disabled children. Any entitlement will be determined in accordance with Rule 21.1/10 et seq., Rule 21.1/14 et seq. and Rule 21.1/17 et seq.
- (ii) There will not be entitlement to any other family allowances.

Rule 51.16/1 Pension benefits

a) Provisions applying to graduate trainees and internal research fellows appointed before 1 September 2024

- (i) The periods of traineeships and research assignments referred to in Staff Regulation 50 are not considered as employment within the meaning of Instruction 4.1/2 (ii) of the New Pension Scheme nor, consequently, as service conferring entitlement to pension benefits within the meaning of Article 4 thereof.
- (ii) However, a staff member appointed on the basis of Staff Regulation 9 without interruption after a period of traineeship or research assignment referred to in Staff Regulation 50 may request that this period be considered as employment within the meaning of Instruction 4.1/2 (ii) of the New Pension Scheme, and consequently as service conferring entitlement to pension benefits within the meaning of Article 4 thereof. In such case, the staff member shall pay the full contribution for the period, including the Agency's share.

b) Provisions applying to graduate trainees and internal research fellows appointed as from 1 September 2024 and until 31 December 2025

Graduate trainees and internal research fellows are affiliated to the New Pension Scheme (NPS). As such, the periods of traineeships and research assignments referred to in Staff Regulation 50, are considered as employment within the meaning of Instruction 4.1/2 (ii) of the New Pension Scheme and consequently, as periods of service conferring entitlement to pension benefits within the meaning of Article 4 thereof and under the conditions prescribed by the said scheme.

c) Provisions applying to graduate trainees and internal research fellows appointed as from 1 January 2026

Graduate trainees and internal research fellows are affiliated to the Third Pension Scheme (TPS). As such, the periods of traineeships and research assignments referred to in Staff Regulation 50, are considered as employment within the meaning of Instruction 4.1/2 (ii) of the Third Pension Scheme and consequently, as periods of service conferring entitlement to pension benefits within the meaning of Article 4 thereof and under the conditions prescribed by the said scheme.

Last update: August 2025 (cf. ESA/ADMIN/REG(2003)1, add.125)

Rule 51.17/1 Annual leave

- (i) Graduate trainees and internal research fellows shall be entitled to paid annual leave at the rate of 2.5 working days for each month of service.
- (ii) Annual leave may be taken in one or more instalments at the convenience of the graduate trainee or internal research fellow concerned and with due regard to the requirements of the service. It shall, however, include at least one period of two consecutive weeks.
- (iii) Newly appointed graduate trainees and internal research fellows shall not be entitled to leave until they have completed three months' service, unless specially authorised on good grounds in exceptional cases.
- (iv) Under no circumstances shall any compensation be payable to the graduate trainee or internal research fellow in respect of outstanding annual leave on cessation of employment.
- (v) Where, during his annual leave, a graduate trainee or internal research fellow suffers from an ailment that would have kept him away from work, his annual leave entitlement shall be extended by the period of incapacity duly established by medical certificate, subject to the provision in paragraph (iv) above.

Rule 51.17/2 Sick leave

- (i) Graduate trainees and internal research fellows shall be entitled to paid sick leave for up to 2 months.
- (ii) The maximum amount of two months' paid sick leave shall be deemed to be reached when the aggregate amount of sick leave taken by the graduate trainee or internal research fellow.
 - either in one unbroken period,
 - or in several periods within twelve consecutive months, reaches two months.
- (iii) During paid sick leave a graduate trainee or internal research fellow shall retain full rights to all remuneration received before his sickness and shall in addition be entitled to other benefits provided by the Agency's Social Security rules. He shall also retain his appointment.
- (iv) Sick leave shall expire:
 - when the graduate trainee or internal research fellow resumes work, or, failing this,
 - on the expiry of the contract, or
 - when he does not resume duty on expiry of the two-month period of sick leave.

In the latter case, any further period of incapacity shall be treated as annual leave. Once the graduate trainee's or internal research fellow's entitlement to annual leave is exhausted in this way, his appointment shall be terminated effective immediately, and no payment in lieu of notice shall be made to him.

Rule 51.17/3 Bonding leave

- (i) A graduate trainee or internal research fellow becomes entitled to bonding leave upon becoming a parent either through the birth or adoption of a dependent child. Bonding leave shall be taken within three months as of the dependent child's date of birth, or in case of adoption, as of the moment that a child for which an adoption procedure is pending, becomes mainly resident with the concerned graduate trainee or internal research fellow. For graduate trainees and internal research fellows entitled to pregnancy leave in accordance with Staff Rule 51.17/4, bonding leave shall be taken within three months as of the end of that leave.
- (ii) Bonding leave shall consist of four weeks with full emoluments.
- (iii) The total bonding leave granted to the graduate trainee or internal research fellow shall be increased by two weeks in the case of multiple births, adoption of two or more dependent children, or in the case where the arrival of the dependent child would give rise to the graduate trainee or internal research fellow to become eligible for payment of the disabled child supplement or severely disabled child supplement.
- (iv) Bonding leave shall not be granted in the case where a graduate trainee or internal research fellow adopts a child that has been mainly resident with them for more than one year.

Rule 51.17/4 Pregnancy leave

- (i) In addition to the paid bonding leave above, pregnancy leave of fourteen weeks with full emoluments shall be granted to a graduate trainee or internal research fellow who gives birth, upon presentation of an appropriate medical certificate.
- (ii) The amount of pregnancy leave shall be increased to a total of twenty-two weeks:
 - (a) in the case of multiple births, or
 - (b) when an expectant graduate trainee or internal research fellow has already had two live births or their household already has two dependent children.
- (iii) The medical certificate shall show the probable date of confinement. Pregnancy leave shall start not earlier than six weeks (eight weeks for situations falling under (ii)) before the date shown in the certificate and end eight weeks (fourteen weeks for situations falling under (ii)) after the date of confinement. If the actual amount of leave taken before the confinement is less than six (eight) weeks, the latter period of eight (fourteen) weeks shall be extended accordingly.

Rule 51.17/5 General provisions relating to pregnancy and bonding leave

- (i) A graduate trainee or internal research fellow on pregnancy and/or bonding leave shall retain their right to remuneration and annual leave. Their post shall not be declared vacant.
- (ii) The concerned graduate trainee or internal research fellow shall continue to pay their personal contribution to the Social Security Scheme.

- (iii) In the event of their fixed-term appointment terminating during pregnancy leave, a graduate trainee or internal research fellow shall retain, until the termination of the said leave, their entitlement to emoluments and, where appropriate, to the other benefits specified in Regulation 22.1, provided they do not enter the service of another employer. Their post shall be declared vacant at the date of expiry of their contract.

Rule 51.17/6 Parental leave

- (i) Graduate trainees and internal research fellows shall be entitled to take parental leave for a maximum of six months on the birth of a child and up to the child's third birthday. The first two months of leave are granted upon request. Should a graduate trainee or internal research fellow request parental leave beyond two months, leave exceeding the said two months may be granted at the discretion of the hierarchy, in particular with due regard to the requirements of service and in view of the remaining duration of the contract of the graduate trainee or internal research fellow concerned.
- (ii) Taking this leave shall not have the effect of extending the duration of the graduate trainee's or internal research fellow's appointment.
- (iii) Graduate trainees and internal research fellows on parental leave shall retain the right to their post but that period shall not count towards the accrual of annual leave.
- (iv) Graduate trainees and internal research fellows on parental leave will during the first two months of leave receive the proportion of their salary corresponding to 30% of full-time working hours. No salary will be paid during the last four months of parental leave. During the entire leave period, the graduate trainee or the internal research fellow concerned shall continue to be entitled, as applicable, to the payment of the family allowances foreseen under Staff Rule 51.15.
- (v) During parental leave, graduate trainees and internal research fellows shall continue to pay their personal contributions to the Social Security Scheme and shall be entitled to the relevant benefits. The salary before the start of the leave period shall serve for the purpose of calculating the personal contributions.
- (vi) In case of multiple births from the same pregnancy, graduate trainees and internal research fellows shall be entitled to one additional month of unpaid parental leave, irrespective of the number of births.

Rule 51.17/7 Special leave with pay

- (i) Special leave with pay, the duration of which is left to the discretion of the Head of Personnel, may be granted in the following cases and up to the following maximum number of working days:
 - (a) For important family reasons:

Marriage of a graduate trainee or internal research fellow	5 days
Birth of a child	2 days

Death of a spouse or of a child	5 days
Death of a parent	4 days
Death of a brother, sister, or grandparent	2 days
Death of another blood-relation or relation by marriage	1 day
Illness of a child, spouse, parent or grandparent	8 days

Where travel outside the duty station is involved and the travel time between the duty station and the destination of the special leave and return by the usual shortest and cheapest route is more than 12 hours, extra leave will be granted on the basis of the overall travel time by the approved route as follows:

- Overall travel time of 12 to 30 hours : 1 day
- Overall travel time of 30 to 36 hours : 1^{1/2} days.

(b) For personal reasons:

Examinations	8 days
National elections or referenda in a graduate trainee or internal research fellow's home country	1 day

These maximum periods include travel time.

- (ii) If the special leave granted within a period of twelve months amounts to a cumulative total of eight days, no further special leave will be granted in that period.
- (iii) Graduate trainees and internal research fellows on special leave with pay shall retain their rights in the same way as in the case of their annual leave.